

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff/Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the
Northern District of Florida, Pensacola Division
Case No. 3:18-cv-01466-TKW-MJF

**APPENDIX TO INITIAL BRIEF OF APPELLANT
VOLUME II**

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Respectfully Submitted,

/s/ Braden K. Ball, Jr.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 5th day of October, 2020, a copy of the foregoing has been furnished to the Defendant/Appellee, Marc M. Moszkowski, Chalet De Bulvedere, Le Croy 73350, Champagny-EN, Vanoise, FF (m.moszkowski@deepgulf.net) via the Court's E-filing system.

/s/ Braden K. Ball, Jr.

BRADEN K. BALL, JR.

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**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-MCR-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

**DEFENDANT'S SECOND AMENDED
ANSWER AND COUNTER-CLAIM**

COMES NOW, Defendant Marc M. Moszkowski, by and through undersigned counsel, and pursuant to Federal Rule of Civil Procedure 8, and this Honorable Court's Order of 29 August 2019 (Doc. 112), submits the following Second Amended Answer and Counterclaim:

Defendant realleges and incorporates its Answer (Doc. 70, ¶¶ 1 – 98) as if fully set out herein.

AFFIRMATIVE DEFENSES

1. The action and/or the damages claimed in this action are barred by **duress.**

Plaintiffs subjected Defendant to improper pressure and deception which overcame his will and coerced him to comply with demands

to which he would not have yielded if acting as a free agent, including but not limited to entering into the Non-Competition Agreement at issue. Thus, Plaintiffs should be barred from asserting claims for, or recovering damages under Counts I and II based upon duress.

2. The action and/or the damages claimed in this action are barred by **failure of consideration.**

The parties entered into an agreement on or about 1 August 2005 wherein Defendant was to perform work for Plaintiff, DeepGulf, Inc. for a salary of approximately \$120,000.00. (See Offer of Employment, attached hereto as Exhibit "A"; see also Employment Confirmation Letter attached hereto as Exhibit "B" and Letter to Department of Homeland Security¹ attached hereto as Exhibit "C"). Defendant performed all work to which he was obligated under the contract, and more. Plaintiff, as a contracting party, neglected, refused, and/or failed to do, perform, or furnish, after making and entering into the contract, the consideration in substance and in fact agreed on, as Defendant did not receive a salary between 1 August 2005 through 31

¹ Page 5, § 2, ¶1-2; Referencing Job offer letter dated 1 August 2005 and Employment agreement dated 1 August 2005 (attached hereto as Exhibit "K").

December 2007, nor between 1 April 2013 through present (despite Plaintiffs' certification to the Department of Labor² (*see* Labor Condition Application, attached hereto as Exhibit "D") that said salary would continue to be paid.) Defendant is still President of DeepGulf, Inc. and still entitled to a salary. However, none has been paid since March 2013. As such, Defendant would assert that Plaintiffs are barred from asserting their claims, or recovering thereunder, based upon failure of consideration.

3. The action and/or the damages claimed in this action are barred by the **statute of limitations**.

Plaintiffs assert causes of action based upon Civil Theft in Counts III and IV, and Conversion in Counts V and VI. The statute of limitations for civil theft is 5 (five) years from when the civil theft was or should have been discovered. (*See* Fla. Stat. § 812.035 (10)). The statute of limitations for Conversion is 4 (four) years from the time of the incident or discovery of the wrong. (*See* Fla. Stat. § 95.11(3)(h)-(3)(i)).

² Certifying that for the period of employment of 07/04/2011-07/03/2014, Plaintiff, DeepGulf, would pay Defendant a salary of \$103,397.00-\$132,000.00. Defendant did not receive said salary for the years 2013 or 2014. Further, Plaintiff has continued to serve as President for years 2015, 2016, 2017, 2018 and 2019 without pay.

- a. Plaintiffs were sent (and confirmed receipt of) emails dated 26 January 2011 and 25 May 2012 reflecting salaries being paid to Defendant by Toke Oil and Gas, S.A. (hereinafter “Toke”). (*See* emails attached hereto as Exhibit “E”). Plaintiffs were aware that Defendant was a director of Toke, and Plaintiffs became aware Defendant was receiving a salary for his services as President Director of Toke more than 5 years before the institution of the pending lawsuit on 3 April 2018. Further, Defendant discussed extensively with other officers and directors of Plaintiffs on multiple occasions, including but not limited to during a ski vacation in France in 2012, his need for and receipt of income from Toke. Thus, Plaintiffs should be barred from bringing claims for Civil Theft because those claims are barred under the applicable the statute of limitations.
- b. Plaintiffs/ Counter-Defendants were sent an email by Defendant dated 6 March 2014 recapitulating all monies personally received by Defendant in France from Toke (*See* email attached hereto as Exhibit “F”). Plaintiffs/Counter-Defendants confirmed receipt of said email, as the same was

contained within Plaintiffs/Counter-Defendants' own discovery production in July 2019. This action was filed 3 April 2018, more than 4 years after the alleged conversion was or should have been discovered, or occurred. Thus, Plaintiffs are barred by the statute of limitations from asserting Conversion.

4. The action and/or the damages claimed in this action are barred by **waiver**.

a. Plaintiffs/Counter-Defendants waived the right to assert Count VII (Fraudulent Misrepresentation) by participating in the creation of³, and failure to object to, the Private Placement Memorandum ("PPM"). Further, any investments made as a result of the PPM or damages stemming therefrom would only be recoverable by investors, not by Plaintiffs/Counter-Defendants. Thus, Plaintiffs/Counter-Defendants should be barred from asserting a claim for, or recovering damages under, Count VII of the Complaint based upon waiver.

b. Plaintiffs/Counter-Defendants waived the right to assert Counts III - VI, as they acknowledged Defendant/Counter-

³ As evidenced in Exhibit "C", pg. 7, Section 3, Number 5(a)(i)

Plaintiff's *employment* (receiving a salary) as President of both Plaintiff/Counter-Defendant corporations in 2014. (See letter to UCIS dated 6 April 2014, attached hereto as Exhibit "J", at p.1, ¶1 and p. 2, ¶ 4). Plaintiffs/Counter-Defendants were aware of their right to object to Defendant/Counter-Plaintiff's dual employment, should they have deemed it inappropriate. However, they did not. Thus, Plaintiffs/Counter-Defendants should be barred from asserting a claim for, or recovering damages under, Count III-VI of the Complaint based upon waiver.

5. The action and/or the damages claimed in this action are barred by **failure or lack of standing** by Plaintiff/ Counter-Defendant Toke to bring this cause against this Defendant.

Plaintiff/Counter-Defendant Toke has not been verified as maintaining current corporate existence. Plaintiffs' 30(b)(6) representative confirmed his lack of knowledge as to whether Toke was a valid and existing corporation, capable of bringing suit. (*See* Deposition of Rustin Howard, pp. 143-44). As such, any claims on

behalf of Plaintiff, Toke Oil and Gas S.A., should be barred based on lack of standing.

COUNTER-CLAIM OF MARC M. MOSZKOWSKI

COUNT I: ACCOUNTING

1. This is an action for an accounting.
2. Defendant/Counter-Plaintiff is a stockholder, and officer of the Plaintiff/Counter-Defendant entities.
3. Florida law and equity requires Plaintiffs/Counter-Defendants to account for their use of their assets to the Counter-Plaintiff based upon the existence of complex transactions evident in Plaintiffs/Counter-Defendants' bank records received by Defendant/Counter-Plaintiff pursuant to subpoena. *See Zaki Kulaibee Establishment v. McFliker*, 771 F.3d 1301, 1311 (11th Cir. 2014).

WHEREFORE, Defendant/Counter-Plaintiff demands judgment for an accounting of all of the Plaintiffs/Counter-Defendants' assets and a lien against those assets for any judgment of amounts owed Counter-Claimant by Counter-Defendants plus attorney's fees and interest and any other relief that the trier of fact deems appropriate.

COUNT II: BREACH OF CONTRACT

4. On or about 1 August 2005, Plaintiffs/Counter-Defendants and Defendant/Counter-Plaintiff entered into agreement wherein Defendant/Counter-Claimant agreed to perform certain work for Plaintiffs in exchange for reasonable compensation ranging from \$120,000.00 per year to \$132,000.00 per year. (*See Exhibits "A"- "B", Exhibit "C" at p. 5, § 2, ¶¶1-2, and Exhibits "G"- "I", "K"; see also Exhibit "M").*
5. Plaintiffs breached these agreements in that they have failed to compensate your Defendant/Counter-Plaintiff as agreed.
6. As a consequence of Plaintiffs/ Counter-Defendants' breach, Defendant/Counter-Plaintiff suffered damages in the form of lost wages, and other special damages as a result of his advancing necessary money.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/ Counter-Defendants for breach of contract in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT III: WORK AND LABOR DONE

7. Defendant/Counter-Plaintiff claims, of the Plaintiffs/Counter-Defendants, sums due for work and labor done.
8. Defendant/ Counter-Plaintiff has served as the President of Plaintiff/Counter-Defendant corporations for over 14 years (1 August 2005 through present). (*See* Exhibit “B”; *see also* Exhibit “C” at p. 5, § 2, ¶2 (noting the existence of an employment agreement) and at p. 8, ¶ 8 (noting the existence of an affidavit executed by Rustin Howard concerning the past performance and intent of the DeepGulf Board to continue to employ Mr. Marc Moszkowski⁴)). ⁵
9. In addition to extensive travel and business dealings on behalf of Plaintiffs/Counter-Defendants, and in performance of his duties related to his employment with Plaintiffs/Counter-Defendants, Defendant/Counter-Claimant also conducted numerous surveys, acted as project manager over several underwater pipeline related

⁴ Proposed validity period would have been sometime after the letter dated 15 August 2014.

⁵ Employment agreement attached hereto as Exhibit “K”. The second document noted under Exhibit “C” is not attached as an individual exhibit to this Second Amended Answer because the same has not yet been provided by Plaintiffs.

projects, and negotiated commissions in favor of Plaintiff/Counter-Defendant DeepGulf.

10. Defendant/Counter-Plaintiff is owed monies for work and labor done between 1 August 2005 through 31 December 2007, and 1 April 2013 through present, at the rate of \$132,000.00 per year.
11. In the alternative, Defendant Counter/Claimant is owed, at minimum, the salary Plaintiffs/Counter-Defendants verified to the US Government that they would pay Defendant/Counter-Plaintiff pursuant to visa applications for the time periods of 1 August 2005 through 31 December 2007, and 1 April 2013 through 10 February 2017. (*See* I-29 Petition attached hereto as Exhibit “G”, at p. 5, ¶¶ 8,10, and I-29 Petition attached hereto as Exhibit “I”, at p.3, ¶¶ 6,8 and I-797A, Notice of Action (granting DeepGulf, Inc.’s petition for Defendant/Counter-Plaintiff’s H-1B visa for the time period of 4 July 2014 through 10 February 2017) attached hereto as Exhibit “L”; *see also*, Letter to U.S. Citizenship and Immigration Services, attached hereto as Exhibit “H”, at p.1, ¶1⁶ and p.2, ¶3⁷).

⁶ Wherein intention of employment is confirmed through 22 April 2014, and annual salary is confirmed at \$132,000.00

⁷ Wherein annual salary of \$132,000.00 is reaffirmed.

WHEREFORE, based on the foregoing, the Counter-Plaintiff demands judgment against the Plaintiffs/ Counter-Defendants for work and labor done in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT IV: BREACH OF CONTRACT

12.Plaintiffs/Counter-Defendants and Defendant/Counter-Claimant entered into an agreement whereby Plaintiffs/Counter-Defendants agreed to take all necessary and reasonable steps to obtain a permanent resident visa for the Defendant/Counter-Claimant.

13.Plaintiffs/Counter-Defendants breached said agreement in that they failed to obtain the permanent resident visa for the Defendant/Counter-Plaintiff.

14. Defendant/Counter-Plaintiffs suffered actual injury in loss of income and other damages, such as being forced to return to France, as a result of Plaintiff/ Counter-Defendant's breach.

WHEREFORE, based on the foregoing, the Defendant/Counter-Plaintiff demands judgment against the Plaintiffs/ Counter-Defendants for breach of contract in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

Respectfully submitted this 12th day of September 2019.

s/ Mary Allie E. Boller

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s/ Thomas R. Boller

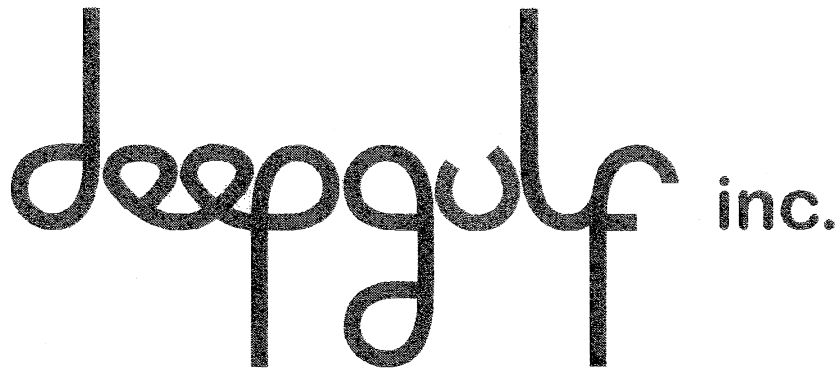
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CERTIFICATE OF SERVICE

I hereby certify that on 12 September 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing all other counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER



DeepGulf Inc,
700 South Palafox Place, Suite 200
Pensacola, Florida, 32502

1 August 2005

Dear Marc,

We are delighted to offer you the position of President of DeepGulf, Inc. We look forward to welcoming you to the company and we are excited about the wealth of knowledge and unique experience that you bring with you.

We would like to initially offer you a salary \$120,000 per year including the benefits package as discussed at your interview.

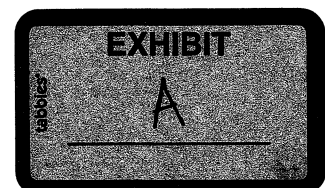
I have attached a copy of the job description for your information.

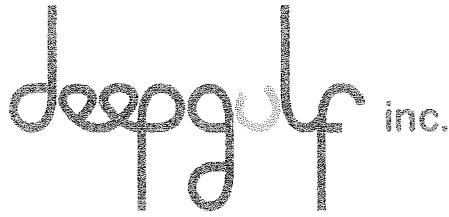
Please contact me at your earliest convenience to arrange a start date.

Sincerely

A handwritten signature in black ink, appearing to read "Rus Howard". The signature is fluid and cursive, with a long horizontal stroke extending to the right.

Rus Howard
SECRETARY (On behalf of the Board of Directors)





Re: Employment Confirmation Letter

To Whom it may concern:

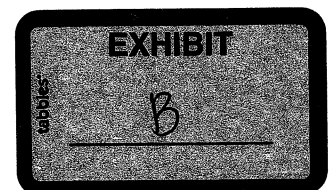
This letter confirms Marc Moszkowski's employment with DeepGulf Inc. Marc serves as president of DeepGulf, with a salary of \$120,000 per year with standard benefits.

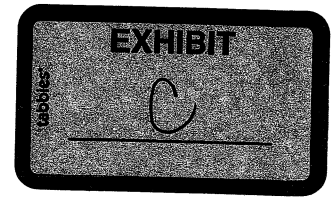
Mr. Moszkowski is responsible for all operations of DeepGulf, including corporate strategy, and oversight of marketing, business development, and engineering.

Sincerely,

A handwritten signature in dark ink, appearing to read "Rus Howard", is written over a horizontal line. The signature is fluid and cursive.

Rus Howard
Chairman





August 15, 2014

United States Department of Homeland Security
United States Citizenship and Immigration Services
VSC Premium Processing
ATTN: RFE Response
30 Houghton Street
St. Albans, Vermont 05478

Re: Response to Request for Evidence: I-129/H-1B Petition for a Nonimmigrant Worker filed by DeepGulf, Inc. on behalf of Mr. Marc Moszkowski

Dear Sir/Madam:

We submit this letter to respond to your Request for Evidence ("RFE") in connection with the H-1B petition DeepGulf, Inc. ("DeepGulf" or "the Company") has filed on behalf of Mr. Marc Moszkowski, issued by the Service on June 10, 2014. Specifically the Service would like clarification regarding the following:

- **Specialty Occupation:** The Service has questioned the nature of the job and whether or not it is a specialty occupation.
- **Right to Control:** The Service has requested evidence showing that DeepGulf has the right to control Mr. Maszkowski's employment.
- **Employer-Employee Relationship:** The Service seeks evidence that a valid employer-employee relationship will exist for the requested validity period and that we have maintained an employer-employee relationship during the previous H-1B approval period.

PLEASE NOTE: The following information is confidential and valuable in nature and we request that it not be disclosed to anyone outside USCIS or to any persons at USCIS who do not need to know for the purposes of approving the petition.

Section 1: The Proffered Position of President is a Specialty Occupation

About the Company

The Service has indicated that they would like additional documentation highlighting the nature, scope, and activity of our business. DeepGulf, Inc. is an energy transportation business. It was founded on technology that would enable it to lay ultra-deep, very large pipelines, larger and deeper than any of its

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competitors. While developing this technology, Deep Gulf's customers demanded they expand the scope of their business to include transportation of energy, specifically, compressed natural gas in a marine environment. This energy transportation system was developed by the Deep Gulf team whose core ideas were developed by Mr. Moszkowski. We want USCIS to have an excellent understanding of what our company does in order for you to fully appreciate why Mr. Moszkowski's duties require at least the equivalent of a U.S. Bachelor's degree in Marine Operations and Technology or a related field in order to be the Chief Executive of our company; thus at **Exhibit 1** we are attaching a copy of our power point presentation introducing our company to clients to provide further details.

Mr. Moszkowski will be relieved from Performing Non-Qualifying Functions

The Service incorrectly asserted that we have only 1 employee. In fact, DeepGulf, Inc. has three employee positions, as well as many contractual and professional relationships to accomplish the various daily tasks necessary to operate a business. Please see below for information regarding these employees and contractors:

- Rus Howard, Corporate Secretary and Chief Financial Officer of the Company, is responsible for administrative functions of the company. These functions include controller duties, research into current and future projects, and fundraising. Rus also oversees the corporate books and stock transactions of the company.
- Jennifer Cabbage is employed as an executive assistant who performs day to day office tasks such as answering phones, emails, and filing. She processes the mail and all bills and payments made out of the office. Any incoming revenue is received and deposited by this assistant. She also monitors the financial accounts to ensure all payables and receivables are completed in a timely manner.

NOTE: Mr. Howard and Ms. Cabbage are full time employees, and they take care of 99% of the day to day needs of the company so that Mr. Moszkowski can spend all of his time in the field, using his professional skills and training to lead our company.

- A Certified Professional Accountant, Beth Minor, of Breeze Bookkeeping, is contracted on a monthly basis to handle all bookkeeping and accounting functions, as well as some tax preparation. Beth also processes payroll for our employees. DeepGulf Breeze Bookkeeping payments documents payments for Mr. Minor's activities.
- Saltmarsh, Cleaveland and Gunn performs our US and international income tax preparation, as well as oversight for foreign exchange transactions. Ron Jackson, Managing Partner of Saltmarsh, Cleland and Gunn, is our direct contact within this company. DeepGulf Saltmarsh payments provides documentation that DeepGulf, Inc. has provided compensation for these duties.
- Carolyn Ward, of Clark, Partington, and Hart, acts as the corporate lawyer for DeepGulf, Inc., including handling corporate books, some contracts, and stock transactions.
- Rodney Lewis, of Sydney, Australia, manages all international legal issues, including gas delivery contracts and project contracts. He also has extensive experience and close relationships in the country of Timor. He represented the country of Timor Leste and helped draft some of the founding documents. Mr. Lewis also closely monitors political and energy news in Southeast Asia and offers advice and insights into happenings in the region.
- Bruce Gordon, former lead negotiator for Chevron in Southeast Asia, is our lead negotiator for energy purchase contracts and delivery contracts. Bruce is paid by a success fee.

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- Jason Fisher is the company's financial advisor and is located in Singapore. Mr. Fisher has extensive experience in financing oil and gas projects in Southeast Asia and has worked for several of the largest firms in the world, handling such projects. Mr. Fisher further gives advice on how to structure funding and operational needs of our projects.
- Bill Lott and Tom McMillan, members of the Board of Directors, advise the corporation on oil and gas and offshore construction matters. Bill Lott's company, Lott Ship, is one of the largest ship agents in the Gulf of Mexico, managing all of the on-shore needs of vessels for its many clients in the offshore industry. Tom McMillan has been in the oil and gas industry his entire career, developing many parcels and owning an oil refinery in Southern Alabama. The Board of Director's oversees all of Mr. Moszkowski activities. He reports directly to the board and the board reviews his work on a regular basis. The board establishes policy which Mr. Moszkowski and Mr. Howard must implement to the satisfaction of the board.
- Benton Baugh – Founder and Former CEO of Radoil, Inc. a specialty fabricator of reels and components that are used on offshore vessels and rigs. Mr. Baugh, has over 100 patents including patents for depth compensated actuators. He has helped the company develop its own patent portfolio.

To support the information detailed above, and as further evidence that the beneficiary will be performing specialty occupation work, we are submitting contractual agreements and work orders from each of the companies who will utilize Mr. Moszkowski's services as **Exhibits 2-4**, per the Service's request. This also satisfies your request for a list of engagements with which the beneficiary has been involved. These are detailed below:

- **Exhibit 2:** a copy of the draft Memorandum of Understanding for the C-Gas DGNK Joint Venture between NK and DeepGulf established for the marketing of the Compressed Gas Marine Transportation Systems throughout the world. C-GAS is the Joint Venture formed specifically for the development of integrated gas delivery projects: DeepGulf of Florida, United States, has joined with NK/ENK of the Republic of Korea to form C-GAS, Inc., a company which is intended to become the premier worldwide source for the construction and operation of marine compressed natural gas energy delivery systems. Together DeepGulf and NK/ENK contribute their expertise to C-GAS. DeepGulf designs and builds energy production and transportation systems primarily for use in maritime environments and NK/ENK is the world leading compressed gas containment system manufacturer, building systems and developing new technologies to create more efficient compressed gas systems.
- **Exhibit 3:** Memorandum of Understanding for the DGNK- Fabricators Joint Venture between NK and DeepGulf, for the fabrication of Offshore Marine Packages to be integrated into the Drill Rigs, Oil and Gas platforms, FPSO, and FLNG ships being constructed by DSME, Samsung, Hyundai and other ship builders in Korea. DeepGulf performs overall system design and engineering oversight and NK will market the products and services to their contacts and Samsung, DSME, Hyundai and other shipbuilders.
- **Exhibit 4:** MOU Timor Leste Natural Gas Delivery MM11 Signed X Scanned- (Toke is a wholly owned subsidiary of DeepGulf, Inc.) The Government of Timor Leste has signed a Memorandum of Understanding for the transportation of Natural Gas to its shore from the wellhead in the Timor Sea. The final contract is still under negotiation. Quantities, pricing and duration have been agreed to, and we have tentative agreement on the payment guarantee mechanism.

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Please also see **Exhibit 5** for an organizational chart including specific information such as individuals' names, titles, brief descriptions of job duties and responsibilities, educational attainments, immigration status, and whether they have or will have ownership/interest in the petitioning organization.

Mr. Moszkowski's Job Duties Require a Bachelor's Degree in a Specific Field of Study

Firstly, Mr. Moszkowski is a founder of DeepGulf, Inc., and President of the company. There have been no prior employees who have held the position of President. There is no documentation of other individuals in our establishment who are currently, or were, employed in this position. Please see **Exhibit 6** for the job description that was published internally for this specific position, as evidence to help establish the educational requirements of the proffered position of President. The position, however, is so complex and unique that it can be performed only by an individual with a bachelor's degree in a specific field of study. Furthermore, the knowledge required to perform the job duties is usually associated with the attainment of a baccalaureate or higher degree in a specific field of study.

In the position of President, Mr. Moszkowski is responsible for the management of the company, specifically the field operations for an offshore construction company and he reports directly to the Board of Directors. Below you will find a percentage breakdown of the amount of time Mr. Moszkowski spends on each of the duties:

- 49% Implement the Business Plan by developing the company's proprietary patented technologies (specifically develop and manage the engineering and construction of the largest offshore pipe laying system in the world) and by developing strategic business opportunities enabled by such technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations.
- 12% Negotiate and close contracts for offshore construction and pipe laying projects as well as preliminary supporting projects including bathymetric surveys, port construction, gas shipping and offshore oil and gas field production.
- 35% Personally oversee field operations while ensuring compliance with U.S. and international maritime laws.
- 4% Report to Board of Directors and interact with shareholders as needed

Your RFE correctly points out it is the job duties, not the title, which determine if the job is a specialty occupation. 84% of Mr. Moszkowski's time is spent overseeing, implementing and developing the engineering and construction of a pipeline through a proprietary system devised by the beneficiary. These duties are not possible to do by one without the intellectual abilities that result from the rigors of a course of study equivalent to a Bachelor's Degree in marine technology and operations. It is next to impossible to imagine a more specialized set of job duties than these.

Furthermore, Mr. Moszkowski is responsible for developing strategic business opportunities enabled by the Company's technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations. These are duties that entail setting the future direction of our Company and are critical to our continued success. These are duties in-line with those of an Executive as defined in the DOL's Occupational Outlook Handbook ("OOH"). The OOH specifies that most Executives, "...have a bachelor's or master's degree in business administration or

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in an area related to their field of work ... Executives are also expected to have experience in the organization's area of specialty" (Please see **Exhibit 7**). We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described (**Exhibit 8**).

In addition, if you return to the last page of **Exhibit 1**, it shows the Beneficiary with the President of East Timor as they both are signing a multi-million dollar contract. Clearly it shows that the executives in our company are constantly meeting with and discussing our proprietary marine operations and technology with high-level politicians and engineers from around the world. It is not possible to have a chief executive of our company who cannot converse in depth about the marine operations and technology that our company provides. We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described.

Section 1 Summary

DeepGulf is an energy transportation business that places very large pipelines on the ocean floor. We have presented ample evidence to prove that the position of President is a specialty occupation within our Company. The job duties can only be performed by an individual who possesses a baccalaureate or higher degree in a specific field of study and the majority of the beneficiary's time will be spent on specialty occupation work. The requirements of the position are further corroborated by evidence in the OOH and advertisements for similar executive positions in the natural gas industry.

Section 2: DeepGulf's Right to Control Mr. Moszkowski's Employment

In your RFE, you indicate that the record does not presently establish that DeepGulf has a valid employer-employee relationship. The RFE specifically questions if DeepGulf has the right to hire, fire, pay, supervise, change employee's compensation, or otherwise control the employee because of his position as a Founder and the President of DeepGulf.

We present the following explanations and evidence to establish by a preponderance of evidence that we have a right to control the beneficiary's employment and a valid employer/employee relationship will exist between DeepGulf and the beneficiary throughout the duration of the requested H-1B validity period:

- 1) Job offer letter (**Exhibit 9**) dated 1 August 2005, wherein DeepGulf offers Mr. Marc Moszkowski the position of President of DeepGulf, Inc. and signed by Mr. Howard as the Corporate Secretary and Chairman of the Board and on behalf of the Board of Directors.
- 2) Employment agreement (**Exhibit 10**) between DeepGulf, Inc., and Mr. Marc Moszkowski signed 1 Aug 2005. This agreement defines the Position, the terms and conditions of employment, compensation and benefits, duties, termination, confidentiality, and non-compete.

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- a) Furthermore, DeepGulf retains the Right to hire, fire, pay, supervise, or otherwise control the employee according to the following:
 - i) Marc Moszkowski and Mr. Howard are both founders of DeepGulf, Inc.
 - ii) Marc Moszkowski is the President
 - iii) Marc Moszkowski is the inventor of the technology that is the foundation of the business.
 - iv) Said technology has been contributed to the company in exchange for stock.
 - v) Marc Moszkowski has retained no rights to the technology.
 - vi) All new inventions made by Marc Moszkowski in the field of Oil and Gas and Energy transportation during his tenure as President are the property of DeepGulf.
 - vii) Mr. Howard and Mr. Moszkowski both have substantial beneficial interest in the company through their stock holdings.
- 3) Evidence of the ownership or control of DeepGulf, the petitioning organization:
 - a) Mr. Moszkowski does not control the Board of Directors
 - b) The Board of Directors are elected by the holders of the Class A common shares.
 - c) DG Stock Capital Chart (**Exhibit 11**) shows the stock owned by all DeepGulf Shareholders. No single person holds or controls the vote of the majority of the shares.
 - (1) Marc Moszkowski is the beneficial owner of 47% of the voting shares, however they are held in an irrevocable trust. He does not vote directly, but can provide input to the trustee, who is not required to listen to his input.
 - (2) Rus Howard's beneficial ownership is a close second at 46%.
 - (a) However, almost all of the other shareholders are Mr. Howard's friends, relatives and acquaintances. Marc Moszkowski has little to no influence over them.
 - (3) Mr. Howard's has extensive experience and success in entrepreneurial and high growth companies (i.e. biotech, computer software, payment processing, mobile commerce).
 - (a) He has been a founder and has served as the CEO in several of them and continues to serve on many Boards.
 - (4) Mr. Howard does not want the role as the executive officer in any them, but is happy to take a board position, and support and help with strategic planning, corporate structure, business decisions, corporate governance, and fund raising.
 - (5) Mr. Howard is willing to and has stepped into the Executive Officer position in this or other companies, on a temporary basis if necessary, due to unforeseen circumstances i.e. vacancy due to death, misappropriation of company assets, failure to perform, vote of confidence, etc.
- 4) Supervision and Governance: As President of DeepGulf, Marc Moszkowski is employed at the will of its Board of Directors, which is constituted by Rus Howard, Marc Moszkowski, William Lott, and Thomas McMillan II, who has the right to hire, fire, pay, supervise, change his compensation, or otherwise control the employee (Please see the DG By-laws at **Exhibit 12**). As President, Mr. Moszkowski reports directly to the Board who oversee his work (Please see **Exhibit 13** for Meeting Minutes).
- 5) Performance Reviews: The Board meets on a regular basis and the President gives his report of current activities, projects, financial condition and prospective projects and financial projections. The Board reviews and critiques Mr. Moszkowski. Further the Board sets policy, mandates and objectives (Please refer to **Exhibit 13** for Meeting Minutes). The Board meets

U.S. Department of Homeland Security
Page 7

in executive session without Mr. Moszkowski present to discuss any matters of concern, such as governance, performance, compliance, compensation or ethics etc.

Section 2 Summary

The Company has the right to hire, fire, review, criticize, and change the pay of Mr. Moszkowski despite his role as Founder and as President of the Company. NO single person has the absolute ability to control the company. Further there are no stock plans or agreements or voting agreements or any other agreement that would enable Mr. Moszkowski to regain voting control of the Company's shares or the Board. DeepGulf is a functioning company, doing real work with real revenue providing real services to its customers and clients. Many of those clients are household names. Through it is joint venture it is also providing important energy to third world economies that will enable them to lift themselves out of poverty. DeepGulf also provides profits and a return to all of its shareholders.

Section 3: Maintenance of Initial Employer-Employee Relationship and Intent to Maintain the Relationship in the Future

In the RFE, it was indicated that the petition was filed without sufficient evidence to document that a valid employer-employee relationship was maintained with the beneficiary throughout the H-1B approval period. We present the following explanations and evidence in support of the claim to establish that valid employer employee relationship was maintained with the beneficiary throughout the H-1B approval period:

- 1) Pay stubs dated 6/1/2012, 10/1/2012, 2/1/2013 and 3/1/2013 to provide evidence that the beneficiary received compensation for his performed duties during the period of the previously approved H-1B status (**Exhibit 14**).
- 2) Mr. Moszkowski's 2011 and 2012 W2s (**Exhibit 15**) to provide evidence of the beneficiary's payroll summaries and/or W-2 forms, evidencing wages paid to the beneficiary during the period of previously approved H-1B status.
- 3) Itineraries, lease renewal documents, and photos of the areas the beneficiary utilizes to perform his employment endeavors (**Exhibit 16**). This includes itineraries to provide a complete schedule of services or engagements with the dates and locations of the services, including an actual monthly documentation of the beneficiary's whereabouts and projects for the previous two years of the approved H1-B Visa period, as well as a projected itinerary of where the beneficiary is expected to be for the next 2 years and the projects he will be working on, which covers the requested recaptured extension period of the visa. This also serves to establish that we have had sufficient work premises available to the beneficiary.
- 4) Copies of the beneficiary's 2 or 3 most recently filed federal individual tax returns (**Exhibit 17**) with all required schedules and statements, as appropriate.
- 5) Documentary examples of work product created or produced by the beneficiary for the past H-1B validity period:
 - a. Business plans
 - i. DG PPM Final (**Exhibit 18**) – in includes a business plan. This Private Placement Memorandum (PPM) was composed by Moszkowski (technical

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Page 8

and operations) and Howard (administrative issues) with the help of legal counsel Ward. The PPM is an offering document used for fundraising in a private business. The core of the PPM is the business plan, which is disclosed to potential investors. In addition to the business plan, included are blue sky disclosures from every state wherein the money is raised as well as other requirements to meet SEC (Securities Exchange Commission) regulation D requirements.

b. Reports

- i. TOG Projects 2008 to 2011-02 Public (**Exhibit 19**) — a report provided by Mr. Moszkowski to the Board of Directors and is a summary of the projects completed during the time period of 2008-2011. Some of the pictures and data have been obscured for confidentiality reasons. Marc is the sole author of this report.
- ii. Geocean — Mr. Moszkowski provided consultation for Geocean (**Exhibit 20**)
 1. Geocean Invoice, 30 July 2013
 2. DG-GO Inspection Invoice 11

c. Presentations

- i. EDTL Energy Supply System (**Exhibit 21**) — a presentation that summarizes the compressed gas energy transportation system to deliver natural gas from the well head in the Timor Sea to the country of Timor to provide an energy source for the electric generation system. This presentation was prepared primarily by Marc Moszkowski with consultation, review and critique from Rus Howard, Rodney Lewis and Vincente Ximenes.

d. Designs/Blueprints

- i. Patent information for the J-Flex (**Exhibit 22**)
- ii. DG-Hyundai CNG Carrier initial engineering (**Exhibit 23**) — Marc Moszkowski's invention that was reduced to the initial engineering drawings created by the Hyundai Corporation with the oversight of Marc Moszkowski.
 1. engineering oversight evidence of work by Marc and Hyundai (**Exhibit 24**) —evidence of the exchange of technical information used for the creation of the engineering drawings
- iii. CNG Module DG-NK (**Exhibit 25**) Engineering Drawings of the CNG modules to be used in the C-Gas Marine Vessel. These drawings were produced by collaboratively by Marc Moszkowski and the engineers at NK, and incorporate all the design characteristics invented by Marc Moszkowski.

e. Photographs of prototypes (**Exhibit 26**) — J-Flex tower prototype, J-Flex prototype

- 6) Due to the position of President reporting directly to the Board of Directors, there are no written performance reviews. Performance reviews for this position are performed during the scope of Board of Director's meeting where the Board gives feedback and suggestions for improvements.
- 7) Copy of any employment history records
 - a. Job offer letter (**Exhibit 9**) to document date of hire.
 - b. Employment agreement (**Exhibit 10**) to document the terms of the beneficiary's employment in relation to the petitioning entity.
- 8) Affidavit of Rustin R. Howard (**Exhibit 27**) concerning the past performance and intent of the DeepGulf Board to employ Mr. Marc Moszkowski during the proposed validity period.

Section 3 Summary

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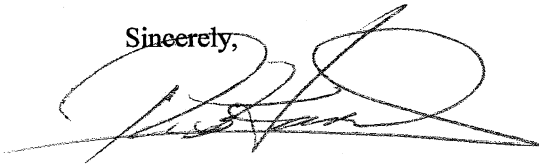
Mr. Moszkowski and DeepGulf have maintained a valid employer-employee relationship since the beneficiary first entered into valid H-1B status under our employ. We have paid and employed him according to the terms defined in our previous petitions on his behalf. We have every intent to continue to employ him according to those terms and by those defined in our most recent petition on his behalf.

Conclusion

We have provided you with sufficient documentation to satisfy your requests. Specifically, we have proven that: (a) the position of President is a specialty occupation. In order to perform the job duties of President, one must possess at minimum a bachelor's degree in a specific field. The duties of the President require this due to their complex nature. The responsibilities of President are also in line with those defined by the "Executive" occupation in the OOH, which specifies that a bachelor's degree is typically required; (b) DeepGulf has the right to control Mr. Moszkowski's employment, despite his position as a Founder and the President of DeepGulf. His employment is subject to review by the Board of Directors who may fire, review, criticize, and change the pay of Mr. Moszkowski at any time; and (c) a valid employer-employee relationship has existed between us and the beneficiary. The relationship was maintained with the beneficiary throughout the approved H-1B approval period, and we intend to maintain the relationship moving forward.

In light of this information, we respectfully request that you approve our H-1B petition on behalf of Mr. Moszkowski. If you have any questions regarding the information presented in this response, please do not hesitate to contact me. Thank you for your continued consideration of this petition.

Sincerely,

A handwritten signature in black ink, appearing to read 'Rustin Howard', written over a horizontal line.

Rustin Howard
Chairman

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



Please read and review the filing instructions carefully before completing the ETA Form 9035 or 9035E. A copy of the instructions can be found at <http://www.foreignlaborcert.doleta.gov/>. In accordance with Federal Regulations at 20 CFR 655.730(b), incomplete or obviously inaccurate Labor Condition Applications (LCAs) will not be certified by the Department of Labor. If the employer has received permission from the Administrator of the Office of Foreign Labor Certification to submit this form non-electronically, ALL required fields/items containing an asterisk (*) must be completed as well as any fields/items where a response is conditional as indicated by the section (\$) symbol.

A. Employment-Based Nonimmigrant Visa Information

1. Indicate the type of visa classification supported by this application (Write classification symbol): *	H-1B
--	------

B. Temporary Need Information

1. Job Title * PRESIDENT					
2. SOC (ONET/OES) code * 11-1011.00	3. SOC (ONET/OES) occupation title * CHIEF EXECUTIVES				
4. Is this a full-time position? * ☒ Yes ☐ No	<table border="1"> <tr> <th colspan="2">Period of Intended Employment</th> </tr> <tr> <td>5. Begin Date * (mm/dd/yyyy) 07/04/2011</td> <td>6. End Date * (mm/dd/yyyy) 07/03/2014</td> </tr> </table>	Period of Intended Employment		5. Begin Date * (mm/dd/yyyy) 07/04/2011	6. End Date * (mm/dd/yyyy) 07/03/2014
Period of Intended Employment					
5. Begin Date * (mm/dd/yyyy) 07/04/2011	6. End Date * (mm/dd/yyyy) 07/03/2014				
7. Worker positions needed/basis for the visa classification supported by this application					
<table border="1"> <tr> <td>1</td> <td>Total Worker Positions Being Requested for Certification *</td> </tr> </table>		1	Total Worker Positions Being Requested for Certification *		
1	Total Worker Positions Being Requested for Certification *				
Basis for the visa classification supported by this application (indicate the total workers in each applicable category based on the total workers identified above)					
0	a. New employment *				
0	d. New concurrent employment *				
1	b. Continuation of previously approved employment * without change with the same employer				
0	e. Change in employer *				
0	c. Change in previously approved employment *				
0	f. Amended petition *				

C. Employer Information

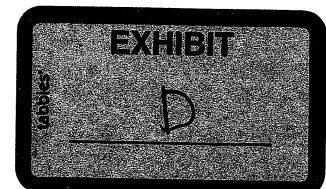
1. Legal business name * DEEPGULF INC.		
2. Trade name/Doing Business As (DBA), if applicable N/A		
3. Address 1 * 17 SOUTH PALAFOX PLACE, SUITE 370		
4. Address 2 N/A		
5. City * PENSACOLA	6. State * FL	7. Postal code * 32502
8. Country * UNITED STATES OF AMERICA		9. Province N/A
10. Telephone number * 8504709388		11. Extension N/A
12. Federal Employer Identification Number (FEIN from IRS) * 202250919		13. NAICS code (must be at least 4-digits) * 213112

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FOR DEPARTMENT OF LABOR USE ONLY

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Case Number: I-200-11008-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014



OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



D. Employer Point of Contact Information

Important Note: The information contained in this Section must be that of an employee of the employer who is authorized to act on behalf of the employer in labor certification matters. The information in this Section must be different from the agent or attorney information listed in Section E, unless the attorney is an employee of the employer.

1. Contact's last (family) name *	2. First (given) name *	3. Middle name(s) *
TAYLOR	PATRICIA	A.
4. Contact's job title * HR COORDINATOR		
5. Address 1 * 17 SOUTH PALAFOX PLACE		
6. Address 2 SUITE 370		
7. City * PENSACOLA	8. State * FL	9. Postal code * 32502
10. Country * UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number * 8504709388	13. Extension N/A	14. E-Mail address TRISH.TAYLOR@WHITESANDSINVESTMENTS.COM

E. Attorney or Agent Information (If applicable)

1. Is the employer represented by an attorney or agent in the filing of this application? *		☒ Yes ☐ No
If "Yes", complete the remainder of Section E below.		
2. Attorney or Agent's last (family) name §	3. First (given) name §	4. Middle name(s) §
GOLDMAN	JEFFREY	WILLIAM
5. Address 1 § ONE FINANCIAL CTR		
6. Address 2 N/A		
7. City § BOSTON	8. State § MA	9. Postal code § 02111
10. Country § UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number § 6173483025	13. Extension N/A	14. E-Mail address JGOLDMAN@MINTZ.COM
15. Law firm/Business name § MINTZ LEVIN		16. Law firm/Business FEIN § 042718459
17. State Bar number (only if attorney) § 54-8056	18. State of highest court where attorney is in good standing (only if attorney) § MASSACHUSETTS	
19. Name of the highest court where attorney is in good standing (only if attorney) § SUPREME JUDICIAL COURT		

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Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
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F. Rate of Pay

1. Wage Rate (Required) From: \$ 103397.00 * To: \$ 132000.00	2. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
---	---

G. Employment and Prevailing Wage Information

Important Note: It is important for the employer to define the place of intended employment with as much geographic specificity as possible. The place of employment address listed below must be a physical location and cannot be a P.O. Box. The employer may use this section to identify up to three (3) physical locations and corresponding prevailing wages covering each location where work will be performed and the electronic system will accept up to 3 physical locations and prevailing wage information. If the employer has received approval from the Department of Labor to submit this form non-electronically and the work is expected to be performed in more than one location, an attachment must be submitted in order to complete this section.

a. Place of Employment 1

1. Address 1 * 17 SOUTH PALAFOX PLACE	
2. Address 2 SUITE 370	
3. City * PENSACOLA	4. County * SANTA ROSA
5. State/District/Territory * FLORIDA	6. Postal code * 32502
Prevailing Wage Information (corresponding to the place of employment location listed above)	
7. Agency which issued prevailing wage \$ N/A	7a. Prevailing wage tracking number (if applicable) \$ N/A
8. Wage level * ☐ I ☒ II ☐ III ☐ IV ☐ N/A	
9. Prevailing wage * \$ 103397.00	10. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
11. Prevailing wage source (Choose only one) * ☒ OES ☐ CBA ☐ DBA ☐ SCA ☐ Other	
11a. Year source published * 2010	11b. If "OES", and SWA/NPC did not issue prevailing wage OR "Other" in question 11, specify source \$ OFLC ONLINE DATA CENTER

H. Employer Labor Condition Statements

Important Note: In order for your application to be processed, you **MUST** read Section H of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading "Employer Labor Condition Statements" and agree to all four (4) labor condition statements summarized below:

- Wages:** Pay nonimmigrants at least the local prevailing wage or the employer's actual wage, whichever is higher, and pay for non-productive time. Offer nonimmigrants benefits on the same basis as offered to U.S. workers.
- Working Conditions:** Provide working conditions for nonimmigrants which will not adversely affect the working conditions of workers similarly employed.
- Strike, Lockout, or Work Stoppage:** There is no strike, lockout, or work stoppage in the named occupation at the place of employment.
- Notice:** Notice to union or to workers has been or will be provided in the named occupation at the place of employment. A copy of this form will be provided to each nonimmigrant worker employed pursuant to the application.

1. I have read and agree to Labor Condition Statements 1, 2, 3, and 4 above and as fully explained in Section H of the Labor Condition Application – General Instructions – Form ETA 9035CP. *	☒ Yes ☐ No
--	---

ETA Form 9035/9035E

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Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012



Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor

I. Additional Employer Labor Condition Statements – H-1B Employers ONLY

! Important Note: In order for your H-1B application to be processed, you **MUST** read Section I – Subsection 1 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and answer the questions below.

a. Subsection 1

1. Is the employer H-1B dependent? §	☐ Yes ☒ No
2. Is the employer a willful violator? §	☐ Yes ☒ No
3. If “Yes” is marked in questions 1.1 and/or 1.2, you must answer “Yes” or “No” regarding whether the employer will use this application <u>ONLY</u> to support H-1B petitions or extensions of status for exempt H-1B nonimmigrants? §	☐ Yes ☐ No ☒ N/A

If you marked “Yes” to questions 1.1 and/or 1.2 and “No” to question 1.3, you **MUST** read Section I – Subsection 2 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and indicate your agreement to all three (3) additional statements summarized below.

b. Subsection 2

- A. **Displacement:** Non-displacement of the U.S. workers in the employer’s workforce
- B. **Secondary Displacement:** Non-displacement of U.S. workers in another employer’s workforce; and
- C. **Recruitment and Hiring:** Recruitment of U.S. workers and hiring of U.S. workers applicant(s) who are equally or better qualified than the H-1B nonimmigrant(s).

4. I have read and agree to Additional Employer Labor Condition Statements A, B, and C above and as fully explained in Section I – Subsections 1 and 2 of the Labor Condition Application – General Instructions Form ETA 9035CP. §	☒ Yes ☐ No
---	---

J. Public Disclosure Information

! Important Note: You **must** select from the options listed in this Section.

1. Public disclosure information will be kept at: *	☒ Employer’s principal place of business ☐ Place of employment
---	--

K. Declaration of Employer

By signing this form, I, on behalf of the employer, attest that the information and labor condition statements provided are true and accurate; that I have read sections H and I of the Labor Condition Application – General Instructions Form ETA 9035CP, and that I agree to comply with the Labor Condition Statements as set forth in the Labor Condition Application – General Instructions Form ETA 9035CP and with the Department of Labor regulations (20 CFR part 655, Subparts H and I). I agree to make this application, supporting documentation, and other records available to officials of the Department of Labor upon request during any investigation under the Immigration and Nationality Act. Making fraudulent representations on this Form can lead to civil or criminal action under 18 U.S.C. 1001, 18 U.S.C. 1546, or other provisions of law.

1. Last (family) name of hiring or designated official *	2. First (given) name of hiring or designated official *	3. Middle initial *
Howard	Rustin	R.
4. Hiring or designated official title *		
Secretary		
5. Signature *		6. Date signed *
		02/03/2011

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Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

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Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
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U.S. Department of Labor



L. LCA Preparer

Important Note: Complete this section if the preparer of this LCA is a person other than the one identified in either Section D (employer point of contact) or E (attorney or agent) of this application.

1. Last (family) name § GOLDMAN	2. First (given) name § JEFFREY	3. Middle initial § W
4. Firm/Business name § MINTZ LEVIN		
5. E-Mail address § JGOLDMAN@MINTZ.COM		

M. U.S. Government Agency Use (ONLY)

By virtue of the signature below, the Department of Labor hereby acknowledges the following:

This certification is valid from 07/04/2011 to 07/03/2014

Department of Labor, Office of Foreign Labor Certification

01/13/2011

Determination Date (date signed)

I-200-11006-405569

CERTIFIED

Case number

Case Status

The Department of Labor is not the guarantor of the accuracy, truthfulness, or adequacy of a certified LCA.

N. Signature Notification and Complaints

The signatures and dates signed on this form will not be filled out when electronically submitting to the Department of Labor for processing, but **MUST** be complete when submitting non-electronically. If the application is submitted electronically, any resulting certification **MUST** be signed *immediately upon receipt* from the Department of Labor before it can be submitted to USCIS for further processing.

Complaints alleging misrepresentation of material facts in the LCA and/or failure to comply with the terms of the LCA may be filed using the WH-4 Form with any office of the Wage and Hour Division, Employment Standards Administration, U.S. Department of Labor. A listing of the Wage and Hour Division offices can be obtained at <http://www.dol.gov/esa>. Complaints alleging failure to offer employment to an equally or better qualified U.S. worker, or an employer's misrepresentation regarding such offer(s) of employment, may be filed with the U.S. Department of Justice, Office of the Special Counsel for Immigration-Related Unfair Employment Practices, 950 Pennsylvania Avenue, NW, Washington, DC, 20530. Please note that complaints should be filed with the Office of Special Counsel at the Department of Justice only if the violation is by an employer who is H-1B dependent or a willful violator as defined in 20 CFR 655.710(b) and 655.734(a)(1)(ii).

O. OMB Paperwork Reduction Act (1205-0310)

These reporting instructions have been approved under the Paperwork Reduction Act of 1995. Persons are not required to respond to this collection of information unless it displays a currently valid OMB control number. Obligations to reply are mandatory (Immigration and Nationality Act, Section 212(n) and (t) and 214(c)). Public reporting burden for this collection of information, which is to assist with program management and to meet Congressional and statutory requirements is estimated to average 1 hour per response, including the time to review instructions, search existing data sources, gather and maintain the data needed, and complete and review the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Labor, Room C-4312, 200 Constitution Ave. NW, Washington, DC 20210. (Paperwork Reduction Project OMB 1205-0310.) Do NOT send the completed application to this address.

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

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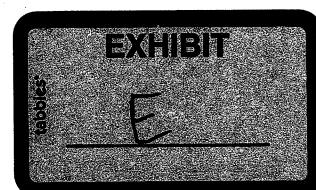
Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

From: Marc Moszkowski <m.moszkowski@tokeoilandgas.com>
Sent: Wednesday, January 26, 2011 8:20 PM
To: 'Rus Howard'
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls
Attachments: Income Statements TOG 2008 to 2010-Final.xls; Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



From: Rus Howard <rus@whitesandinvestments.com>
Sent: Thursday, January 27, 2011 5:42 PM
To: Marc Moszkowski
Subject: RE: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Received the spreadsheets.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@tokeoilandgas.com]
Sent: Wednesday, January 26, 2011 8:20 PM
To: Rus Howard
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.

Balance Sheet

TOKE OIL & GAS S.A.
Year 2008
Financial Statements in U.S. Dollars

ASSETS

Current Assets

Cash	\$279.92
Accounts receivable	
(less doubtful accounts)	
Inventory	
Temporary investment	
Prepaid expenses	
Total Current Assets	\$279.92

Fixed Assets

Long-term investments	
Land	
Buildings	
(less accumulated depreciation)	
Plant and equipment	
(less accumulated depreciation)	
Furniture and fixtures	
(less accumulated depreciation)	
Total Net Fixed Assets	\$0.00

TOTAL ASSETS \$279.92

LIABILITIES

Current Liabilities

Accounts payable	\$0.00
Short-term notes	
Current portion of long-term notes	
Interest payable	
Taxes payable	\$0.00
Accrued payroll	
Total Current Liabilities	\$0.00

Long-term Liabilities

Mortgage	\$0.00
Other long-term liabilities	
Total Long-Term Liabilities	\$0.00

Shareholders' Equity

Capital stock	\$0.00
Retained earnings	\$279.92
Total Shareholders' Equity	\$279.92

TOTAL LIABILITIES & EQUITY \$279.92

Balance Sheet

TOKE OIL & GAS S.A.
Year 2009
Financial Statements in U.S. Dollars

ASSETS

Current Assets

Cash	\$677.27
Accounts receivable	
(less doubtful accounts)	
Inventory	
Temporary investment	
Prepaid expenses	
Total Current Assets	\$677.27

Fixed Assets

Long-term investments	
Land	
Buildings	
(less accumulated depreciation)	
Plant and equipment	
(less accumulated depreciation)	
Furniture and fixtures	
(less accumulated depreciation)	
Total Net Fixed Assets	\$0.00

TOTAL ASSETS

\$677.27

LIABILITIES

Current Liabilities

Accounts payable	\$0.00
Short-term notes	
Current portion of long-term notes	
Interest payable	
Taxes payable	\$0.00
Accrued payroll	
Total Current Liabilities	\$0.00

Long-term Liabilities

Mortgage	\$0.00
Other long-term liabilities	
Total Long-Term Liabilities	\$0.00

Shareholders' Equity

Capital stock	\$0.00
Retained earnings	\$677.27
Total Shareholders' Equity	\$677.27

TOTAL LIABILITIES & EQUITY

\$677.27

Balance Sheet

TOKE OIL & GAS S.A.
Year 2010
Financial Statements in U.S. Dollars

ASSETS

Current Assets

Cash	\$4,725.00
Accounts receivable (less doubtful accounts)	\$52,000.00
Inventory	
Temporary investment	
Prepaid expenses	
Total Current Assets	\$56,725.00

Fixed Assets

Long-term investments	
Land	
Buildings (less accumulated depreciation)	
Plant and equipment (less accumulated depreciation)	
Furniture and fixtures (less accumulated depreciation)	
Total Net Fixed Assets	\$0.00

TOTAL ASSETS

\$56,725.00

LIABILITIES

Current Liabilities

Accounts payable	\$28,000.00
Short-term notes	
Current portion of long-term notes	
Interest payable	
Taxes payable	\$0.00
Accrued payroll	
Total Current Liabilities	\$28,000.00

Long-term Liabilities

Mortgage	\$0.00
Other long-term liabilities	
Total Long-Term Liabilities	\$0.00

Shareholders' Equity

Capital stock	\$0.00
Retained earnings	\$4,752.55
Total Shareholders' Equity	\$28,725.00

TOTAL LIABILITIES & EQUITY

\$56,725.00

Income Statement

TOKE OIL & GAS S.A.

Year 2010

Financial Statements in U.S. Dollars

Revenue

Gross Sales
Less: Sales Returns and Allowances
Net Sales

\$ 2,919,364.82	
	\$2,919,364.82

Cost of Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

Subtotal

Less: Miscellaneous

Cost of Goods Sold

\$2,068,277.50	
\$2,068,277.50	
	\$2,068,277.50

Gross Profit (Loss)

\$851,087.32

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

\$26,612.50	
\$763.58	
\$66.00	
\$11,868.55	
\$6,750.00	
\$484,895.00	
\$38,520.00	
\$115,175.70	
\$7,871.00	
\$16,038.45	
\$26,797.75	
\$18,000.00	
\$16,789.13	
\$24,898.76	
\$51,965.62	
	\$847,012.04

Total Expenses

Net Operating Income

\$4,075.28

Other Income

Gain (Loss) on Sale of Assets
Interest Income

Total Other Income

	\$0.00

Net Income (Loss)

\$4,075.28

Income Statement

TOKE OIL & GAS S.A.

Year 2011

Financial Statements in U.S. Dollars

Revenue

Gross Sales

\$ 6,153,867.00

Less: Sales Returns and Allowances

Net Sales

\$ 6,153,867.00

Cost of Goods Sold

Add: Purchase of Goods and Services

\$4,620,383.31

Direct Labor

Direct Operating Costs

Indirect Expenses

Subtotal

\$4,620,383.31

Less: Miscellaneous

Cost of Goods Sold

\$4,620,383.31

Gross Profit (Loss)

\$ 1,533,483.69

Expenses

ACCOMMODATION

\$128,333.65

ACCOUNTING FEES

\$1,668.34

BANK CHARGES

\$8,341.69

CASH ADVANCES

\$30,350.91

COMMUNICATIONS

\$50,050.12

DIRECTORS SALARIES

\$192,000.00

EQUIPMENT RENTAL

\$168,521.00

FUEL

\$256,667.30

FURNITURE

\$0.00

HARDWARE

\$7,685.65

MISCELLANEOUS

\$45,530.21

OFFICE RENTAL

\$40,602.17

OFFICE SUPPLIES

\$4,466.01

SHIP STORES

\$46,947.53

SALARIES

\$196,231.00

SHIP AGENCY

\$45,191.41

TRANSPORTATION

\$56,325.64

TRAVEL

\$0.00

VEHICLE PURCHASE

\$0.00

TAX

\$246,155.00

Total Expenses

\$1,525,067.64

Net Operating Income

\$ 8,416.05

Other Income

Gain (Loss) on Sale of Assets

\$0.00

Interest Income

\$0.00

Total Other Income

\$0.00

Net Income (Loss)

\$ 8,416.05

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard' (rus.howard@deep-gulf.com)
Cc: Trish Taylor (t.taylor@deep-gulf.com)
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls
Attachments: Income Statements TOG 2011.xls; Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

From: Rus Howard <rus.howard@deep-gulf.com>
Sent: Saturday, May 26, 2012 7:22 AM
To: 'Marc Moszkowski'
Subject: RE: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

OK Will talk to you when you are back in town. No need to discuss till then, enjoy your weekend.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@deep-gulf.com]
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard'
Cc: Trish Taylor
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

Balance Sheet

TOKE OIL & GAS S.A.
Year 2011
Financial Statements in U.S. Dollars

ASSETS

Current Assets

Cash	\$8,785.65
Accounts receivable (less doubtful accounts)	\$546,132.83
Inventory	
Temporary investment	
Prepaid expenses	
Total Current Assets	\$554,918.48

Fixed Assets

Long-term investments	
Land	
Buildings (less accumulated depreciation)	
Plant and equipment (less accumulated depreciation)	\$110,725.28
Furniture and fixtures (less accumulated depreciation)	\$25,000.00
Total Net Fixed Assets	\$85,725.28

TOTAL ASSETS

\$640,643.76

LIABILITIES

Current Liabilities

Accounts payable	\$615,002.08
Short-term notes	
Current portion of long-term notes	
Interest payable	
Taxes payable	
Accrued payroll	\$12,753.00
Total Current Liabilities	\$627,755.08

Long-term Liabilities

Mortgage	
Other long-term liabilities	
Total Long-Term Liabilities	\$0.00

Shareholders' Equity

Capital stock	
Retained earnings	\$12,888.68
Total Shareholders' Equity	\$12,888.68

TOTAL LIABILITIES & EQUITY

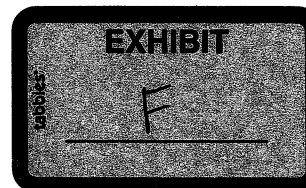
\$640,643.76

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Thursday, March 06, 2014 4:58 PM
To: 'Rustin Howard'; Jen Cabbage
Subject: Emailing: releve_00050136739_20110221.pdf, releve_00050136739_20110621.pdf, releve_00050136739_20111122.pdf, releve_00050136739_20120721.pdf, Copy of Recapitulatif crédits exceptionnels.xlsx, releve_00050136739_20100721.pdf
Attachments: Copy of Recapitulatif crédits exceptionnels.xlsx; SG-12 Jan 10.pdf; SG-24 Jun 10.pdf; SG-08 Feb 11.pdf; SG-27 May 11.pdf; SG-21 Nov 11.pdf

Your message is ready to be sent with the following file or link attachments:

releve_00050136739_20110221.pdf
releve_00050136739_20110621.pdf
releve_00050136739_20111122.pdf
releve_00050136739_20120721.pdf
Copy of Recapitulatif crédits exceptionnels.xlsx releve_00050136739_20100721.pdf

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



2011	21/11/2011	21/11/2011	VIR RECU 321R48805 DE: VICENTE XIMENES VILA VERDE MOTIF: SALARY MONTANT RECU: 59875,00 USD TAUX CHANGE: EUR/USD 1,35570 ORIGINE: 60000,00 USD	44 239,14	21-Nov-11	\$60,000

2011	27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74975,00 USD TAUX CHANGE: EUR/USD 1,41540 ORIGINE: 75000,00 USD	52 970,89	27-May-11	\$75,000

2011	08/02	VIR RECU 035R55931 DE: TOKE OIL AND GAD SA HOTEL DILI SUITE 1 56 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000,00 USD TAUX CHANGE: EUR/USD 1,37200	36 443,15	+239 051,39	08/02/11	08-Feb-11	\$50,000

2010	24/06	VIR RECU 173R48601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965,00 USD TAUX CHANGE: EUR/USD 1,23830	48 425,26	+317 648,88	24/06/10	24-Jun-10	\$60,000

2010	12/01	VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965,00 USD TAUX CHANGE: EUR/USD 1,44150	69 347,90	+454 892,40	12/01/10	12-Jan-10	\$100,000



RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIÉTÉ GÉNÉRALE

Tél. :

REFERENCES BANCAIRES

Banque Agence Numéro de compte Clé

IDENTIFICATION INTERNATIONALE

IBAN :

BIC-ADRESSE SWIFT : **SOGEFRPP**

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

du 23 12 2009 au 21 01 2010

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

envoi n° 1 page 1/2

Toute l'équipe de votre Agence se joint à moi afin de vous présenter
*** nos MEILLEURS VOEUX pour l'année 2010. ***
Votre Conseiller.

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		180,83	+1.186,17	
	*** SOLDE AU 31/12/2009				
	+180,83 ***				
12/01	VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965,00 USD TAUX CHANGE: EUR/USD 1,44150		69 347,90	+454 892,40	12/01/10
12/01	VIREMENT VIRT FAV.50138438 REG DECOUVERT	5 000,00		-32 797,85	12/01/10
12/01	> FRAIS SUR VIR INTL RECU 008R42486 REF 0082091 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 34,67	51,17*		-335,65	12/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: ARTHUR MOSZKOWSKI REF: 0139531500006 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.ARTHUR MOSZKOWSKI LIB: ORDRE FAX	4 000,00		-26 238,28	15/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: BERGEREAU JACQUELINE REF: 0139531500004 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.JACQUELINE BERGEREAU LIB: ORDRE FAX	6 000,00		-39 357,42	15/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 6 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 4 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
18/01	VIREMENT VIRT FAV.50138438 ORDRE FAX	38 052,00		-249 604,76	18/01/10
20/01	> COTISATION JAZZ	7,80*		-51,16	20/01/10
	TOTAUX DES MOUVEMENTS	53.117,37	69.347,90		

AGENCE :
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

du 23 12 2009 au 21 01 2010

envoi n° 1 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		16.411,36	+107.651,46	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et

Code Client : M. MARC MOSZKOWSKI

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,95%
(Taux effectif global 19,66% équivalent au Taux journalier de 0,0492%),
à compter du 01/01/2010.

Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigiane

LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 31/12/2009

36303 solde précédent	+	588 points acquis	-	0 points utilisés	-	12584 points annulés	=	24307 * nouveau solde
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*dont 7741 points à utiliser avant le 31/12/2010.

Avec JAZZ, votre fidélité est récompensée !

Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933

tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77

appel non surtaxé

SOCIETE GENERALE
RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
[REDACTED]
Tél. : [REDACTED]

REFERENCES BANCAIRES

Banque Agence Numéro de compte Clé

IDENTIFICATION INTERNATIONALE

IBAN : [REDACTED]

BIC-ADRESSE SWIFT : **SOGEFRPP**

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

n° [REDACTED]

du 23 06 2010 au 21 07 2010

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

BDB

envoi n° 7 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT	-463,79		-3.042,26	
24/06	VIR RECU 173R48601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965,00 USD TAUX CHANGE: EUR/USD 1,23830		48 425,26	+317 648,88	24/06/10
24/06	➤ FRAIS SUR VIR INTL RECU 173R48601 REF 1733420 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 24,21	40,71*		-267,04	24/06/10
	*** SOLDE AU 30/06/2010	+47 920,76 ***			
02/07	VIREMENT 50138438	40 000,00		-262 382,80	02/07/10
02/07	CARTE X7272 27/05 VINCIPARK NICE	4,80		-31,49	02/07/10
02/07	CARTE X7272 27/05 ORANGE WIFI COMMERCE ELECTRONIQUE	9,90		-64,94	02/07/10
02/07	CARTE X7272 27/05 MAC DONALD GASSIN	10,50		-68,88	02/07/10
02/07	CARTE X7272 27/05 LE SAFARI	54,50		-357,50	02/07/10
02/07	CARTE X7272 28/05 ANCA BORNE PARC	4,00		-26,24	02/07/10
02/07	CARTE X7272 28/05 IVAC	11,25		-73,80	02/07/10
02/07	CARTE X7272 28/05 ESCOT 2705-3005	21,50		-141,03	02/07/10
02/07	CARTE X7272 28/05 TOTAL PUGET THENIER	79,79		-523,39	02/07/10
02/07	CARTE X7272 29/05 A.R.E.A.	20,60		-135,13	02/07/10
02/07	CARTE X7272 03/06 SUPER U	7,99		-52,41	02/07/10
02/07	CARTE X7272 04/06 OSCARO.COM COMMERCE ELECTRONIQUE	15,86		-104,03	02/07/10
02/07	CARTE X7272 04/06 BOUYG TEL COMMERCE ELECTRONIQUE	108,99		-714,93	02/07/10
02/07	CARTE X7272 07/06 REL.ELF DU DORON	65,86		-432,01	02/07/10
02/07	CARTE X7272 14/06 ESCOT 1406-1606	4,90		-32,14	02/07/10
02/07	CARTE X7272 14/06 A.R.E.A.	10,80		-70,84	02/07/10
02/07	CARTE X7272 14/06 MC DONALD'S	11,65		-76,42	02/07/10
02/07	CARTE X7272 16/06 LECLERC	64,32		-421,91	02/07/10
02/07	CARTE X7272 17/06 GEANT CG835	52,10		-341,75	02/07/10
02/07	CARTE X7272 18/06 PASCAL COSTE	20,50		-134,47	02/07/10
02/07	CARTE X7272 21/06 ESCOT 2106-2306	7,20		-47,23	02/07/10
02/07	CARTE X7272 21/06 R.BREGUIERES SUD	58,10		-381,11	02/07/10
17/07	➤ COTISATION JAZZ	8,00*		-52,48	17/07/10
	TOTAUX DES MOUVEMENTS	40.693,82	48.425,26		

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE

en euros

n°

du 23 06 2010 au 21 07 2010

BDB

envoi n° 7

page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		7.267,65	+47.672,66	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et

Code Client : M. MARC MOSZKOWSKI

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,60%

(Taux effectif global 19,24% équivalent au Taux journalier de 0,0482%),
à compter du 01/07/2010.

Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigrane

LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 30/06/2010

29376 solde précédent	+	455 points acquis	-	0 points utilisés	-	0 points annulés	=	29831 * nouveau solde
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*dont 7741 points à utiliser avant le 31/12/2010.

Depuis le 1er juin 2010, Nouveau barème de points Filigrane !

Retrouvez-le et commandez vos cadeaux sur www.particuliers.societegenerale.fr, E

Service Clientèle Filigrane : 09 69 36 7000 appel non surtaxé

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933

tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77

appel non surtaxé

SOCIETE GENERALE
RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
Tél. :

REFERENCES BANCAIRES

Banque Agence Numéro de compte Clé

IDENTIFICATION INTERNATIONALE

IBAN

BIC-ADRESSE SWIFT : **SOGEFRPP**

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

n°

du 22 01 2011 au 21 02 2011

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

BDB

envoi n° 2 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		432,61	+2.837,74	
25/01	CARTE X5147 RETRAIT DAB 22/01 20H54 CA DES SAVOIE 04842124	40,00		-262,38	25/01/11
26/01	CARTE X5147 RETRAIT DAB 25/01 14H20 CA DES SAVOIE 04842124	40,00		-262,38	26/01/11
	*** SOLDE AU 31/01/2011 +352,61 ***				
01/02	CARTE X5147 31/12 DISSERKOI	69,00		-452,61	01/02/11
01/02	CARTE X5147 02/01 GGE DU GD PONT	0,19		-1,25	01/02/11
01/02	CARTE X5147 02/01 LAGODA	42,06		-275,90	01/02/11
01/02	CARTE X5147 03/01 GGE DU GD PONT	25,02		-164,12	01/02/11
01/02	CARTE X5147 12/01 LA POYA	81,60		-535,26	01/02/11
01/02	CARTE X5147 16/01 SULPICE TELE COMMERCE ELECTRONIQUE	10,80		-70,84	01/02/11
01/02	CARTE X5147 19/01 LAGODA	25,87		-169,70	01/02/11
01/02	CARTE X5147 21/01 EUROSPOORT COMMERCE ELECTRONIQUE	4,90		-32,14	01/02/11
01/02	CARTE X5147 22/01 LE CANADA	29,25		-191,87	01/02/11
01/02	CARTE X5147 23/01 CHAL BOUQUETIN	68,30		-448,02	01/02/11
08/02	VIR RECU 035R55931 DE: TOKE OIL AND GAD SA HOTEL DILI SUITE 1 56 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000,00 USD TAUX CHANGE: EUR/USD 1,37200		36 443,15	+239 051,39	08/02/11
08/02	> FRAIS SUR VIR INTL RECU 035R55931 REF 0358003 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 18,22	34,72*		-227,75	08/02/11
14/02	VIR RECU 041R49088 DE: MARC MICHEL MOSZKOWSKI 10440 DEERWOOD RD 337 MONTANT RECU: 5400,00 USD TAUX CHANGE: EUR/USD 1,37370		3 930,99	+25 785,60	14/02/11
14/02	VIREMENT VIRT FAV.01395/00050138438 ORDRE FAX	39 000,00		-255 823,23	14/02/11
14/02	> FRAIS SUR VIR INTL RECU 041R49088 REF 0415353 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 14,00	30,50*		-200,07	14/02/11
	TOTAUX DES MOUVEMENTS	39.502,21	40.374,14		

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE

en euros

n° [REDACTED]

du 22 01 2011 au 21 02 2011

BDB

envoi n° 2 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		1.304,54	+8.557,22	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et [REDACTED]

Code Client : M. MARC MOSZKOWSKI [REDACTED]

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le [REDACTED] touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933
tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77
appel non surtaxé

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 933 027 038,75 EUR. SIÈGE SOCIAL, 29 BD HAUSSMANN, 75009 PARIS. 552 120 222 R.C.S. PARIS

RA4-39G



RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

VOS CONTACTS

n° [REDACTED]

du 21/05/2011 au 21/06/2011
envoi n°6 Page 1/2

Votre Banque à Distance, 24 h/24

Code client
M. MARC MOSZKOWSKI [REDACTED]
Internet : [REDACTED]
Internet mobile : [REDACTED]
Téléphone : [REDACTED]

Votre agence NICE MUSICIENS

Par messagerie dans votre Espace Client

Téléphone : [REDACTED]
Fax : [REDACTED]

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

Votre Conseiller en agence

Téléphone : [REDACTED]

BDB

RELEVÉ DES OPÉRATIONS

Contre-valeur indicative 1 euro = 6.55957 francs

Date	Valeur	Nature de l'opération	Débit	Crédit
SOLDE PRÉCÉDENT AU 20/05/2011			219,72	
23/05/2011	23/05/2011	CARTE X5147 RETRAIT DAB 21/05 11H25 HSBC FRANCE DRAGUIGNAN 771641	20,00	
27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74975,00 USD TAUX CHANGE: EUR/USD 1,41540 ORIGINE: 75000,00 USD		52.970,89
27/05/2011	27/05/2011	> FRAIS SUR VIR INTL RECU 145R54813 REF 1454002 1 COMMISSION DE CHANGE POUR: 26,49	26,49*	
*** SOLDE AU 31/05/2011 + 52.704,68 ***				
01/06/2011	01/06/2011	CARTE X5147 03/05 ESCOT 0205-0405	5,00	
01/06/2011	01/06/2011	CARTE X5147 03/05 A.R.E.A.	11,10	
01/06/2011	01/06/2011	CARTE X5147 03/05 REL.ELF DU DORON	77,70	
01/06/2011	01/06/2011	CARTE X5147 04/05 MC DONALD'S/TRANS	7,80	
01/06/2011	01/06/2011	CARTE X5147 06/05 SPF DL	62,37	
01/06/2011	01/06/2011	CARTE X5147 06/05 CARREFOUR DRAGUI	106,63	
01/06/2011	01/06/2011	CARTE X5147 13/05 CARREFOUR MARKET	35,87	
01/06/2011	01/06/2011	CARTE X5147 16/05 INTERMARCHÉ	63,17	
01/06/2011	01/06/2011	CARTE X5147 19/05 LECLERC STATION	79,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 ESCOT 1905-2205	4,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 MAISON DE LA BOU	19,96	
01/06/2011	01/06/2011	CARTE X5147 20/05 CARREFOUR TRANS	73,03	
01/06/2011	01/06/2011	CARTE X5147 21/05 SPF DL	45,36	
01/06/2011	01/06/2011	CARTE X5147 29/04 Agip Suisse SA 220 30,89 EUR SUISSE	30,89	

1 Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2011 : 0,34 eur TTC/min depuis une ligne fixe France Télécom, en France métropolitaine.
Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.



RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

n° [REDACTED]

du 21/05/2011 au 21/06/2011
envoi n°6 Page 2/2

Date	Valeur	Nature de l'opération	Débit	Crédit
01/06/2011	01/06/2011	CARTE X5147 30/04 Restaurant Le Sonalon 70,80 CHF SUISSE 1 EUR=1,2861 CHF	55,05	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 55,05 EUR A 2,70%	2,49*	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 30,89 EUR A 2,70%	1,83*	
06/06/2011	06/06/2011	VIREMENT	45.000,00	
18/06/2011	18/06/2011	> COTISATION JAZZ	7,50*	
18/06/2011	18/06/2011	> OPTION TRANQUILLITE	0,50*	
TOTAUX DES MOUVEMENTS			45.736,94	52.970,89

NOUVEAU SOLDE AU 21/06/2011 + 7.014,23

Soit pour information, solde en francs de + 46.010,33 F

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

Filigane LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 31/05/2011

24964 solde précédent	+	319 points acquis	-	0 points utilisés	-	0 points annulés	=	25283* nouveau solde
--------------------------	---	----------------------	---	----------------------	---	---------------------	---	-------------------------

* dont 8839 points à utiliser avant le 31/12/2011

Avec JAZZ, votre fidélité est récompensée !
Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous
sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Department of Homeland Security
U.S. Citizenship and Immigration Services

OMB No. 1615-0009; Expires 10/31/2013

**I-129, Petition for a
Nonimmigrant Worker**

START HERE - Type or print in black ink.

Part 1. Petitioner Information

(If the employer is an individual, complete Number 1; Organizations complete Number 2.) Use the mailing address of the petitioner.

1. Legal Name of Employer:

a. Last Name (Family Name)

b. First Name (Given Name)

c. Full Middle Name

2. Company or Organization:

Name of Company or Organization

DeepGulf, Inc.

3. Mailing Address:

a. C/O: (In Care Of, if any)

Mr. Rus Howard - Chairman

b. Street Number and Name

17 South Palafox Place

c. Suite/Apt. Number

370

d. City

Pensacola

e. State/Province

FL

f. Country

USA

g. Zip/Postal Code

32502

h. Telephone Number (include area code) (Do not leave spaces or type any special characters)

(850) 470-9388

i. E-Mail Address

rus.howard@deep-gulf.com

j. Federal Employer Identification Number

20-2250919

k. Individual Tax Number

N/A

l. Social Security Number

N/A

Receipt

Class: _____

of Workers: _____

Job Code: _____

Validity Dates: _____

From: _____

To: _____

☐ **Classification Approved**

☐ Consulate/POE/PFI Notified
At _____

☐ Extension Granted

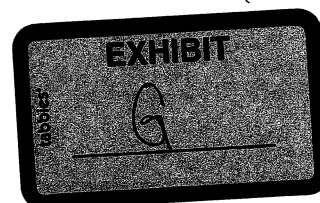
☐ COS/Extension Granted

Partial Approval (explain)

Action Block



Form I-129 (Rev. 11/23/10)N



Part 2. Information About This Petition (See instructions for fee information.)

1. Requested Nonimmigrant Classification (Write classification symbol): **H-1B**

2. Basis for Classification (Check one):

- ☐ a. New employment.
- ☒ b. Continuation of previously approved employment without change with the same employer.
- ☐ c. Change in previously approved employment.
- ☐ d. New concurrent employment.
- ☐ e. Change of employer.
- ☐ f. Amended petition.

3. Provide the most recent petition/application receipt number for the beneficiary. If none exists, indicate "N/A."

EAC-08-157-53678

4. Requested Action (Check one):

- ☐ a. Notify the office in Part 4 so each beneficiary can obtain a visa or be admitted. (NOTE: A petition is not required for an E-1, E-2, H-1B1 Chile/Singapore, or TN visa.)
- ☐ b. Change each beneficiary's status and extend their stay since he, she, or they are all now in the U.S. in another status (see instructions for limitations). This is available only where you check "New Employment" in Item 2, above.
- ☒ c. Extend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ d. Amend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ e. Extend the status of a nonimmigrant classification based on a Free Trade Agreement. (See Free Trade Supplement for TN and H1B1 to Form I-129.)
- ☐ f. Change status to a nonimmigrant classification based on a Free Trade Agreement. (See Free Trade Supplement for TN and H1B1 to Form I-129.)

5. Total number of workers in petition (See instructions relating to when more than one worker can be included.): **1**



Part 3. Beneficiary Information: Information about the beneficiary/beneficiaries you are filing for. Complete the blocks below. Use the continuation sheet to name each beneficiary included in this petition.

1. If an Entertainment Group, Give the Group Name

N/A

a. Family Name (Last Name)

Moszkowski

b. Given Name (First Name)

Marc

c. Full Middle Name

Michel

d. All Other Names Used (include aliases, maiden name and names from all previous marriages)

None

e. Date of Birth (mm/dd/yyyy)

06/25/1954

f. Gender



Male



Female

g. U.S. Social Security Number (if any)

629-72-7315

h. A-Number (if any)

A- N/A

i. Country of Birth

The Netherlands

j. Province of Birth

Drenthe

k. Country of Citizenship

France

2. If in the United States, complete the following:

a. Date of Last Arrival
(mm/dd/yyyy)

05/02/2011

b. I-94 Number (Arrival/Departure Document)

507611812 25

c. Current Nonimmigrant Status

H-1B

d. Date Status Expires
(mm/dd/yyyy) or D/S

08/11/2011

e. Student & Exchange Visitor Information
System (SEVIS) Number (if any)

N/A

f. Employment Authorization Document (EAD)
Number (if any)

N/A

g. Passport Number

08CT98641

h. Date Passport Issued
(mm/dd/yyyy)

10/14/2008

i. Date Passport Expires
(mm/dd/yyyy)

03/06/2015

j. Current U.S. Address (if applicable)

427 E. Zaragoza St., Pensacola, FL 32502

Part 4. Processing Information

1. If the beneficiary or beneficiaries named in Part 3 is/are outside the United States or a requested extension of stay or change of status cannot be granted, state the U.S. consulate or inspection facility you want notified if this petition is approved.

a. Type of Office (Check one): ☒ Consulate

☐ Pre-flight inspection

☐ Port of Entry

b. Office Address (City)

Paris

c. U.S. State or Foreign Country

France

d. Beneficiary's Foreign Address

Le Verdos, Chateaudouble, 83300, France



Part 4. Processing Information (Continued)

2. Does each person in this petition have a valid passport?

☐ Not required to have passport

☐ No - Go to **Page 7, Part 9** and write your explanation

☒ Yes

3. Are you filing any other petitions with this one?

☒ No

☐ Yes - How many?

4. Are applications for replacement/initial I-94s being filed with this petition?

☒ No

☐ Yes - How many?

5. Are applications by dependents being filed with this petition?

☒ No

☐ Yes - How many?

6. Is any beneficiary in this petition in removal proceedings?

☒ No

☐ Yes - explain on **Page 7, Part 9**

7. Have you ever filed an immigrant petition for any beneficiary in this petition?

☒ No

☐ Yes - explain on **Page 7, Part 9**

8. If you indicated you were filing a new petition in **Part 2** within the past 7 years, has any beneficiary in this petition:

a. Ever been given the classification you are now requesting? N/A

☐ No

☐ Yes - explain on **Page 7, Part 9**

b. Ever been denied the classification you are now requesting? N/A

☐ No

☐ Yes - explain on **Page 7, Part 9**

9. Have you ever previously filed a petition for this beneficiary?

☐ No

☒ Yes - explain on **Page 7, Part 9**

10. If you are filing for an entertainment group, has any beneficiary in this petition not been with the group for at least 1 year? N/A

☐ No

☐ Yes - explain on **Page 7, Part 9**

11a. Has any beneficiary in this petition ever been a J-1 exchange visitor or J-2 dependent of a J-1 exchange visitor? N/A

☐ No

☐ Yes

11b. If yes to 11a, provide the dates the beneficiary maintained status as a J-1 exchange visitor or J-2 dependent. Also, provide evidence of this status by attaching a copy of either a DS-2019, Certificate of Eligibility for Exchange Visitor status, a Form IAP-66, or a copy of the passport that includes the J visa stamp.

N/A

Part 5. Basic Information About the Proposed Employment and Employer (Attach the supplement relating to the classification you are requesting.)

1. Job Title

President

2. LCA or ETA Case Number

I-200-11006-405569

3. Address where the beneficiary(es) will work if different from address in **Part 1**. (Street number and name, city/town, state, zip code)

Same as above.

4. Is an itinerary included with the petition? ☒ No ☐ Yes

5. Will the beneficiary work off-site? ☒ No ☐ Yes



Part 5. Basic Information About the Proposed Employment and Employer (Attach the supplement relating to the classification you are requesting.) (Continued)

6. Will the beneficiary(ies) work exclusively in the CNMI? ☒ No ☐ Yes

7. Is this a full-time position?

☐ No ☒ Yes If "No," Hours per week:

8. Wages per week or per year:

9. Other Compensation (Explain)

10. Dates of intended employment (mm/dd/yyyy):

From:

To:

11. Type of Business

12. Year Established

13. Current Number of Employees in the U.S.

14. Gross Annual Income

15. Net Annual Income

Part 6. Certification Regarding the Release of Controlled Technology or Technical Data to Foreign Persons in the United States

(For H-1B, H-1B1 Chile/Singapore, L-1, and O-1A petitions only. This section of the form is not required for all other classifications. See Page 3 of the Instructions before completing this section.)

Check Box 1 or Box 2 as appropriate:

With respect to the technology or technical data the petitioner will release or otherwise provide access to the beneficiary, the petitioner certifies that it has reviewed the Export Administration Regulations (EAR) and the International Traffic in Arms Regulations (ITAR) and has determined that:

- ☒ 1. A license is not required from either U.S. Department of Commerce or the U.S. Department of State to release such technology or technical data to the foreign person; or
- ☐ 2. A license is required from the U.S. Department of Commerce and/or the U.S. Department of State to release such technology or technical data to the beneficiary and the petitioner will prevent access to the controlled technology or technical data by the beneficiary until and unless the petitioner has received the required license or other authorization to release it to the beneficiary.

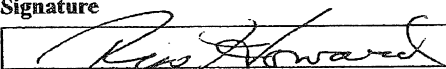


Part 7. Signature *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury that this petition and the evidence submitted with it are true and correct to the best of my knowledge. I authorize the release of any information from my records, or from the petitioning organization's records that U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought. I recognize the authority of USCIS to conduct audits of this petition using publicly available open source information. I also recognize that supporting evidence submitted may be verified by USCIS through any means determined appropriate by USCIS, including but not limited to, on-site compliance reviews.

If filing this petition on behalf of an organization, I certify that I am authorized to do so by the organization.

Signature

 Chairman

Daytime Phone Number (Area/Country Code)

(850) 470-9388

Print Name

Rus Howard

Date (mm/dd/yyyy)

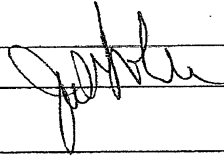
02/03/2011

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 8. Signature of Person Preparing Form, If Other Than Above

I declare that I prepared this petition at the request of the above person and I certify that it is true and correct to the best of my knowledge.

Signature



Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey W. Goldman

Date (mm/dd/yyyy)

2.8.11

Firm Name and Address

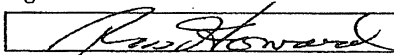
Mintz Levin Cohn Ferris Glovsky & Popeo PC
One Financial Center, 45th Floor Boston, MA 02111



Part 9. Explanation Page

Part 4. Processing Information (Continued). 9. Yes. The Petitioner filed an H-1B on behalf of the Beneficiary on May 13, 2008 under EAC-08-157-53678, which was approved on June 16, 2008 and valid for H-1B status from 08/02/2008 to 08/01/2011. Prior to this, the Petitioner filed an initial H-1B on behalf of the Beneficiary on August 22, 2005 under SRC-05-232-52893, which was approved on September 8, 2005 and valid for H-1B status from 09/08/2005 to 08/01/2008.

Signature



Chairman

Date (mm/dd/yyyy)

02/03/2011

Print Name

Rus Howard



OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services

H Classification
Supplement to Form I-129

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary or if this petition includes multiple beneficiaries, the total number of beneficiaries

Marc Michel Moszkowski

3. List each beneficiary's prior periods of stay in H or L classification in the United States for the last 6 years (beneficiaries requesting H-2A or H-2B classification need only list the last 3 years). Be sure to only list those periods in which each beneficiary was actually in the United States in an H or L classification. Do not include periods in which the beneficiary was in a dependent status, for example, H-4 or L-2 status.

NOTE: Submit photocopies of Forms I-94, I-797, and/or other USCIS issued documents noting these periods of stay in the H or L classification. If more space is needed, attach an additional sheet.

Subject's Name	Period of Stay (mm/dd/yyyy)	
	From	To
Marc Moszkowski	2005	Present except
		dates in
		attached chart

4. Classification sought (Check one):

☒ a. H-1B Specialty Occupation

☐ e. H-2A Agricultural worker

☐ b. H-1B2 Exceptional services relating to a cooperative research and development project administered by the U.S. Department of Defense (DOD)

☐ f. H-2B Non-agricultural worker

☐ c. H-1B3 Fashion model of national or international acclaim

☐ g. H-3 Trainee

☐ d. H-1C Registered Nurse

☐ h. H-3 Special education exchange visitor program

5. Are you filing this petition on behalf of an alien subject to the Guam-CNMI cap exemption under Public Law 110-229?

☒ No

☐ Yes

Section 1. Complete This Section If Filing for H-1B Classification

1. Describe the proposed duties

As President, the Beneficiary will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting the marine pipelaying industry and computer programming. See Petitioner's Support Letter attached.

2. Beneficiary's present occupation and summary of prior work experience

The Beneficiary is currently investigating business opportunities for DeepGulf, Inc. he began his career in 1982 in the offshore oil and gas construction industry as marine operation manager with ETPM (now Stolt Offshore). He later served as a field engineer and project manager. In 1981, he earned a Bachelor's degree from the National Marine Academy in France. See Petitioner's Support Letter attached.



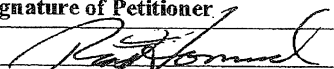
Section 1. Complete This Section If Filing for H-1B Classification (Continued)

Statement for H-1B specialty occupations only:

By filing this petition, I agree to, and will abide by, the terms of the labor condition application (LCA) for the duration of the beneficiary's authorized period of stay for H-1B employment. I certify that I will maintain a valid employer-employee relationship with the beneficiary at all times. If the beneficiary is assigned to a position in a new location I will obtain and post an LCA for that site prior to reassignment.

I further understand that I cannot charge the beneficiary the ACWIA fee, and that any other required reimbursement will be considered an offset against wages and benefits paid relative to the LCA.

Signature of Petitioner



Print or Type Name

Rus Howard, Chairman

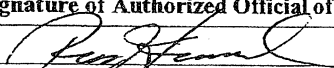
Date (mm/dd/yyyy)

02/03/2011

Statement for H-1B specialty occupations and U.S. Department of Defense projects:

As an authorized official of the employer, I certify that the employer will be liable for the reasonable costs of return transportation of the alien abroad if the beneficiary is dismissed from employment by the employer before the end of the period of authorized stay.

Signature of Authorized Official of Employer



Print or Type Name

Rus Howard, Chairman

Date (mm/dd/yyyy)

02/03/2011

Statement for H-1B U.S. Department of Defense projects only:

I certify that the beneficiary will be working on a cooperative research and development project or a co-production project under a reciprocal government-to-government agreement administered by the U.S. Department of Defense.

Signature of DOD Project Manager

Print or Type Name

Date (mm/dd/yyyy)

Section 2. Complete This Section If Filing For H-1C Classification

I certify under penalty of perjury, under the laws of the United States of America, that this attachment and the evidence submitted with it is true and correct. If filing this petition on behalf of an organization or entity, I certify that I am empowered to do so by that organization or entity. I authorize the release of any information from my records, or from the petitioning organization or entity's records, that U.S. Citizenship and Immigration Services may need to determine eligibility for the benefit being sought.

Signature

Print or Type Name

Title

Date (mm/dd/yyyy)

Firm Name and Address



OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services

**H-1B Data Collection and
Filing Fee Exemption Supplement**

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary

Marc Michel Moszkowski

Part A. General Information

1. Employer Information - (check all items that apply)

- a. Is the petitioner an H-1B dependent employer? ☒ No ☐ Yes
- b. Has the petitioner ever been found to be a willful violator? ☒ No ☐ Yes
- c. Is the beneficiary an H-1B nonimmigrant exempt from the Dept. of Labor attestation requirements? ☐ No ☒ Yes
1. If yes, is it because the beneficiary's annual rate of pay is equal to at least \$60,000? ☐ No ☒ Yes
2. Or is it because the beneficiary has a master's or higher degree in a specialty related to the employment? ☒ No ☐ Yes
- d. Has the petitioner received TARP funding (provide explanation on Page 7, Part 9 if the petitioner has subsequently repaid all TARP funding)? ☒ No ☐ Yes
- e. Does the petitioner employ 50 or more individuals in the U.S.? ☒ No ☐ Yes
- If yes, are more than 50% of those employees in H-1B or L nonimmigrant status? ☐ No ☐ Yes

2. Beneficiary's Highest Level of Education (Check one box below)

- ☐ a. NO DIPLOMA
- ☐ b. HIGH SCHOOL GRADUATE DIPLOMA or the equivalent (example: GED)
- ☐ c. Some college credit, but less than 1 year
- ☐ d. One or more years of college, no degree
- ☐ e. Associate's degree (for example: AA, AS)
- ☒ f. Bachelor's degree (for example: BA, AB, BS)
- ☐ g. Master's degree (for example: MA, MS, MEng, MEd, MSW, MBA)
- ☐ h. Professional degree (for example: MD, DDS, DVM, LLB, JD)
- ☐ i. Doctorate degree (for example: PhD, EdD)

3. Major/Primary Field of Study

Maritime Operations

4. Rate of Pay Per Year

\$132,000.00 per year

5. DOT Code

0 1 0

6. NAICS Code

5 6 1 1 1 0

Part B. Fee Exemption Determination

In order for USCIS to determine if you must pay the additional \$1,500 or \$750 American Competitiveness and Workforce Improvement Act (ACWIA) fee, answer all of the following questions:

- ☒ No ☐ Yes 1. Are you an institution of higher education as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 2. Are you a nonprofit organization or entity related to or affiliated with an institution of higher education, as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 3. Are you a nonprofit research organization or a governmental research organization, as defined in 8 CFR 214.2(h)(19)(iii)(C)?
- ☐ No ☒ Yes 4. Is this the second or subsequent request for an extension of stay that this petitioner has filed for this alien?
- ☒ No ☐ Yes 5. Is this an amended petition that does not contain any request for extensions of stay?





February 3, 2011

Via Federal Express

U.S. Citizenship and Immigration Services
Vermont Service Center
ATTN: I-129
75 Lower Welden Street
St. Albans, VT 05479-0001

Re: I-129 (H-1B) Petition filed by DeepGulf, Inc. on behalf of Marc M. Moszkowski

Dear Sir or Madam:

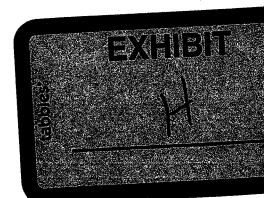
This letter is written to support our H-1B Nonimmigrant Petition to continue to temporarily employ Mr. Marc M. Moszkowski, a national of France, as an H-1B Professional Worker in the Specialty Occupation of President. We will continue to employ Mr. Moszkowski for a period of time up to 2 years and 8 months and pay him at an annual salary rate of \$132,000.

The Petitioner

Founded in 2005, DeepGulf, Inc. builds underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, primarily in the Gulf of Mexico. The company intends to become the world's leading deep underwater oil and gas transportation business by leveraging the strategic advantages offered by its exclusive novel technologies. DeepGulf's patented technologies give it several strategic advantages over competitors and will enable it to secure a major market share of the industry. Specifically, the proprietary J-Flex and Remote Dynamic Positioning technologies will allow the company to install deeper and bigger deep water equipment, infrastructure and pipelines at a fraction of the investment and cost of competitors. **See Exhibit 1, Petitioner's descriptive information. Also see Exhibit 2, Petitioner's financial information.**

The Specialty Occupation

We wish to continue to employ Mr. Moszkowski in the professional position of President. In this role, he will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting, the marine pipelaying industry and computer programming. He will implement the company's business plan by improving the company's market share and will be responsible for ensuring that the company complies with U.S. maritime laws. Mr. Moszkowski will also promote the company's proprietary patented technologies in order to leverage the company's strategic advantages into a bigger market share in the industry.



This position is professional in nature and requires at a minimum a Bachelor's degree or the equivalent in Engineering, Maritime Operations, Business, Economics or a related field. This is clearly a specialty occupation because it is standard practice in the industry to hire individuals for this position with a degree, or its equivalent, in this area.

The Beneficiary

Mr. Moszkowski is well qualified for the offered position. In 1981 he earned a degree from the National Merchant Marine Academy in France. This degree has been professionally evaluated and is equivalent to a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. In addition, Mr. Moszkowski also has experience in the Engineering field. Mr. Moszkowski has extensive management and engineering experience with substantial projects completed in offshore gas and oil. His ability to bring projects to completion within the schedule and budget will enable him to lead the company to success. See Exhibit 3, copies of Beneficiary's educational credentials.

Terms of Employment

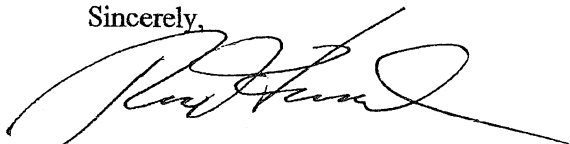
Please note that we have obtained from the U.S. Department of Labor a certified Labor Condition Application in connection with this H-1B petition, and we will abide by the terms of that application for the duration of Mr. Moszkowski's employment by us in H-1B status. See Exhibit 4, signed certified Labor Condition Application Form 9035. As noted, Mr. Moszkowski will be paid an annualized salary of \$132,000.00. This is an at-will employment relationship.

Conclusion

Mr. Moszkowski is currently in the U.S. in H-1B status valid to August 1, 2011. Mr. Moszkowski is seeking to extend his H-1B visa status to April 22, 2014 upon approval of this petition. See Exhibit 5, copies of Beneficiary's biographic page in current Passport, H-1B and B1/B2 visas, Form I-94, Forms I-797, and payslip.

In light of the foregoing, we respectfully request that you approve our H-1B petition on behalf of Mr. Marc M. Moszkowski. Thank you for your consideration of our petition.

Sincerely,



Mr. Rus Howard
Chairman

OMB No.1615-0009

**I-129, Petition for a
Nonimmigrant Worker**

Department of Homeland Security
U.S. Citizenship and Immigration Services

START HERE - Please type or print in black ink.

For USCIS Use Only..

Part 1. Information about the employer filing this petition. *If the employer is an individual, complete Number 1. Organizations should complete Number 2.*

1. Family Name (Last Name)		Given Name (First Name)	
Full Middle Name		Telephone No. w/Area Code	
2. Company or Organization		Telephone No. w/Area Code	
DeepGulf, Inc.		(850) 377-1856	
Mailing Address: (Street Number and Name)		Suite #	
700 South Palafox Pier		160	
C/O: (In Care Of)			
City		State/Province	
Pensacola		FL	
Country	Zip/Postal Code	E-Mail Address (If Any)	
USA	32502		
Federal Employer Identification #	U.S. Social Security #	Individual Tax #	
20-2250919			

Returned	Receipt
Date	
Date	
Resubmitted	
Date	
Date	
Reloc Sent	
Date	
Date	
Reloc Rec'd	
Date	
Date	
☐ Petitioner Interviewed on _____ ☐ Beneficiary Interviewed on _____	

Class: _____
 # of Workers: _____
 Priority Number: _____
 Validity Dates: _____
 From: _____
 To: _____

☐ **Classification Approved**
☐ Consulate/POE/PFI Notified
 At _____
☐ Extension Granted
☐ COS/Extension Granted

Partial Approval (explain)

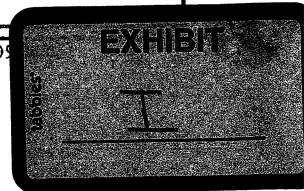
Action Block

To Be Completed by
 Attorney or Representative, if any.
☒ Fill in box if G-28 is attached to represent the applicant.

ATTY State License #
 54-8056

Part 2. Information about this petition. *(See instructions for fee information.)*

1. Requested Nonimmigrant Classification. (Write classification symbol):	H-1B
2. Basis for Classification (Check one):	
a. ☒ New employment (including new employer filing H-1B extension). b. ☐ Continuation of previously approved employment without change with the same employer. c. ☐ Change in previously approved employment. d. ☐ New concurrent employment. e. ☐ Change of employer. f. ☐ Amended petition.	
3. If you checked Box 2b, 2c, 2d, 2e, or 2f, give the petition receipt number.	n/a
4. Prior Petition. If the beneficiary is in the U.S. as a nonimmigrant and is applying to change and/or extend his or her status, give the prior petition or application receipt #:	n/a
5. Requested Action (Check one):	
a. ☒ Notify the office in Part 4 so the person(s) can obtain a visa or be admitted. (NOTE: a petition is not required for an E-1, E-2 or R visa). b. ☐ Change the person(s) status and extend their stay since the person(s) are all now in the U.S. in another status (see instructions for limitations). This is available only where you check "New Employment" in Item 2, above. c. ☐ Extend the stay of the person(s) since they now hold this status. d. ☐ Amend the stay of the person(s) since they now hold this status. e. ☐ Extend the status of a nonimmigrant classification based on a Free Trade Agreement. (See Free Trade Supplement for TN and H1B1 to Form I-129). f. ☐ Change status to a nonimmigrant classification based on a Free Trade Agreement. (See Free Trade Supplement for TN and H1B1 to Form I-129).	
6. Total number of workers in petition (See instructions relating to when more than one worker can be included):	one



Part 3. Information about the person(s) you are filing for. Complete the blocks below. Use the continuation sheet to name each person included in this petition.

1. If an Entertainment Group, Give the Group Name

n/a		
Family Name (Last Name)	Given Name (First Name)	Full Middle Name
MOSZKOWSKI	Marc	Michel
All Other Names Used (include maiden name and names from all previous marriages)		
none		
Date of Birth (mm/dd/yyyy)	U.S. Social Security # (if any)	A # (if any)
06/25/1954	629-72-7315	none
Country of Birth	Province of Birth	Country of Citizenship
The Netherlands	Drenthe	France

2. If in the United States, Complete the Following:

Date of Last Arrival (mm/dd/yyyy)	I-94 # (Arrival/Departure Document)	Current Nonimmigrant Status	
06/16/2005	76331606111	B2	
Date Status Expires (mm/dd/yyyy)	Passport Number	Date Passport Issued (mm/dd/yyyy)	Date Passport Expires (mm/dd/yyyy)
12/15/2005	04FK57470	03/07/2005	03/06/2015
Current U.S. Address			
10220 Memorial Drive, 19, Houston, TX 77024, USA			

Part 4. Processing Information.

1. If the person named in **Part 3** is outside the United States or a requested extension of stay or change of status cannot be granted, give the U.S. consulate or inspection facility you want notified if this petition is approved.

Type of Office (Check one): ☒ Consulate ☐ Pre-flight inspection ☐ Port of Entry

Office Address (City)	U.S. State or Foreign Country
Paris	France
Person's Foreign Address	
Le Verdos, Chateaudouble, 83300, France	

2. Does each person in this petition have a valid passport?

☐ Not required to have passport ☐ No - explain on separate paper ☒ Yes

3. Are you filing any other petitions with this one?	☒ No ☐ Yes - How many?	
4. Are applications for replacement/initial I-94s being filed with this petition?	☒ No ☐ Yes - How many?	
5. Are applications by dependents being filed with this petition?	☒ No ☐ Yes - How many?	
6. Is any person in this petition in removal proceedings?	☒ No ☐ Yes - explain on separate paper	

Part 4. Processing Information. (Continued)

7. Have you ever filed an immigrant petition for any person in this petition? ☒ No ☐ Yes - explain on separate paper
8. If you indicated you were filing a new petition in **Part 2**, within the past seven years has any person in this petition:
- a. Ever been given the classification you are now requesting? ☐ No ☒ Yes - explain on separate paper
- b. Ever been denied the classification you are now requesting? ☒ No ☐ Yes - explain on separate paper
9. Have you ever previously filed a petition for this person? ☒ No ☐ Yes - explain on separate paper
10. If you are filing for an entertainment group, has any person in this petition not been with the group for at least one year? ☐ n/a ☐ No ☐ Yes - explain on separate paper

Part 5. Basic information about the proposed employment and employer. Attach the supplement relating to the classification you are requesting.

1. Job Title
President
2. Nontechnical Job Description
Manage corporation specializing in offshore pipelaying
3. LCA Case Number
I-05189-1883137
4. NAICS Code
561110
5. Address where the person(s) will work if different from address in **Part 1**. (Street number and name, city/town, state, zip code)
Same as Part 1 plus 10220 Memorial Drive, 19, Houston, TX 77024, USA
6. Is this a full-time position?
☐ No - Hours per week:
☒ Yes - Wages per week or per year: \$120,000 / year
7. Other Compensation (Explain)
Standard Benefits Package
8. Dates of intended employment (mm/dd/yyyy):
From: 08/01/2005 To: 08/01/2008
9. Type of Petitioner - Check one:
☐ U.S. citizen or permanent resident ☒ Organization ☐ Other - explain on separate paper
10. Type of Business
Offshore pipelaying company
11. Year Established
2005
12. Current Number of Employees
2
13. Gross Annual Income
see attached
14. Net Annual Income
see attached

Part 6. Signature. *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury under the laws of the United States of America, that this petition and the evidence submitted with it is all true and correct. If filing this on behalf of an organization, I certify that I am empowered to do so by that organization. If this petition is to extend a prior petition, I certify that the proposed employment is under the same terms and conditions as stated in the prior approved petition. I authorize the release of any information from my records, or from the petitioning organization's records that the U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought.

Signature

Rus Howard Chairman

Daytime Phone Number (Area/Country Code)

(850) 377-1856

Print Name

Rus Howard, Chairman

Date (mm/dd/yyyy)

7/20/05

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 7. Signature of person preparing form, if other than above.

I declare that I prepared this petition at the request of the above person and it is based on all information of which I have any knowledge.

Signature

Jeffrey Goldman

Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey Goldman

Date (mm/dd/yyyy)

Firm Name and Address

Mintz Levin Cohn Ferris Glovsky & Popeo PC, One Financial Center, Boston, MA 02111

April 6, 2014

USCIS
Attn: AOS
2501 S. State Hwy, 121 Business
Suite 400
Lewisville, TX 75067

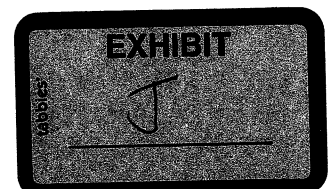
**RE: FORM I-140 IMMIGRANT PETITION FOR ALIEN WORKER
(EB-1 MULTINATIONAL EXECUTIVE)**

Petitioner: DeepGulf, Inc.
Beneficiary: Marc MOSZKOWSKI
Executive Position: President

Dear Sir/Madam:

This letter is submitted in support of the enclosed I-140 Immigrant Petition on behalf of Mr. Marc Moszkowski, a citizen of the Netherlands. We wish to employ Mr. Moszkowski on an indefinite basis as our Company's President, the Executive position he assumed in valid H-1B status on October 4, 2005. **See Exhibit 1, copies of Beneficiary's visa stamp and I-94 information.** Immediately prior to his U.S. transfer, and continuing to the present, Mr. Moszkowski has been employed concurrently as the President of Toke Oil and Gas, SA ("Toke Oil"), DeepGulf Inc.'s wholly-owned subsidiary located in Timor-Leste (East Timor) in Southeast Asia.

At this time, DeepGulf Inc. seeks to continue Mr. Moszkowski's executive employment. In the United States, he will continue to serve as our most senior executive with respect to conceiving large-scale energy transportation and engineering projects involving the Company's proprietary technologies (of which Mr. Moszkowski is himself the inventor), the negotiation of major contracts, and the exercise of independent decision-making authority in financial, administrative and regulatory matters. While he will continue to be the individual chiefly responsible for financial oversight of the company globally, his presence in the U.S. has become increasingly important as DeepGulf seeks new sources of investment capital and responds to requests for proposals for a number of complex energy transportation projects. Reporting to the Company's Board of Directors, Mr. Moszkowski will be compensated at a base annual salary of \$132,000.00, plus standard benefits and other equity-based consideration appropriate to the senior executive of a successful energy technology company.



**DESCRIPTION OF THE PETITIONER AND THE FOREIGN EMPLOYER
AND THEIR QUALIFYING "SUBSIDIARY" RELATIONSHIP**

Founded in 2005, DeepGulf, Inc. is in the business of building energy transportation systems incorporating marine compressed gas technology, and underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, increasingly in the Gulf of Mexico. DeepGulf's proprietary J-Flex 3600 marine pipelay system, with its 3,000-ton tensioning capacity and Remote Dynamic Positioning technologies, enables the company to install deeper and larger deep-water equipment, infrastructure and pipelines at a fraction of the investment and overall cost of its competitors. DeepGulf's proprietary marine compressed gas transportation system enables the company to access stranded gas and deliver it to proximate niche markets at favorable prices. Its principal customers are in Southeast Asia, Indonesia, Timor. In carrying out these activities, DeepGulf has entered into joint venture partnerships with NK and Posco, two major technology manufacturing companies in South Korea.

DeepGulf currently employs 3 workers in the United States and, together with our affiliates in the U.S. and abroad, a total of approximately 120 employees worldwide. Descriptive information regarding DeepGulf products will provide you with an insight into the spirit of innovation that has fuelled the Company's success. **See Exhibit 2, descriptive and financial information on Petitioner and the Foreign Employer, including DeepGulf Inc.'s most recent federal income tax returns.**

Toke Oil and Gas SA, a corporation formed under the laws of Timor Leste, is a wholly-owned subsidiary of the Petitioner, DeepGulf, Inc. We attach as **Exhibit 3** an Officer's Certificate incorporation documents, share certificates and the stock ledger which verify the qualifying corporate relationship between the petitioner, DeepGulf Inc., and Toke Oil and Gas SA, Mr. Moszkowski's employer abroad, necessary for a multinational executive transfer.

THE BENEFICIARY'S EXECUTIVE POSITION ABROAD

As noted above, since October 2005 and continuing to the present, Mr. Moszkowski has served as the President of both Toke Oil and Gas, SA and DeepGulf, Inc. In this capacity, for more than 8 years, Mr. Moszkowski has served as the chief executive officer of both companies.

Mr. Moszkowski is charged by the Board of Directors with the responsibility of finding and creating new opportunities for Toke Oil and Gas. He devotes his maritime engineering expertise to the process of analyzing and assessing a prospective client's problems, how they can be solved, determining what engineering needs to be performed and what inventions need to be created to complete such an imagined potential project ("imagineering"). He consults with the executives and professional technical staff of prospective clients to assess the potential value and the likelihood that the client will want to complete such project. If the client determines it is an attractive venture,

Mr. Moszkowski is responsible for overseeing the creation of business plans defining the project, i.e., specify engineering, operations, logistics and scope of the project. If the client decides to move forward, Mr. Moszkowski then oversees the final overall design and creation of the engineering drawings, and the sourcing of subcontractors where necessary. He oversees legal compliance, and he negotiates contracts for both clients and subcontractors. Finally, he exercises executive oversight of the work being performed and the preparation of deliverables including any final report. Since 2005, Mr. Moszkowski has spent more than 60% of his time traveling internationally.

We offer the following breakdown illustrating the percentage of time spent accomplishing each specific duty.

Determine and formulate policies, and provide overall direction of DeepGulf and Toke Gas and Oil, within guidelines set up by the board of directors. Plan and direct high-value energy projects at the highest level of management, with the help of subordinate executives and staff managers	20%
Be responsible for long-ranging planning and business strategy for DeepGulf and Toke, with advice and consent from the board	10%
Imagineering – use maritime engineering expertise to analyze and assess prospective clients’ construction needs and potential long-range solutions; evaluate what engineering needs to be done and what inventions need to be created to complete potential projects in a way that maximizes operational efficiency and return on investment	10%
Confer on a weekly basis with members of the Board and report project progress, from inception to completion	5%
Meet with executives of clients and potential subcontractors, potential investors, permitting agencies, government officials and representatives of NGOs on project logistics	10%
Define the project, specify engineering, operations, logistics and scope of the project. Oversee the final overall design and creation of the engineering drawings, and sourcing of subcontractors where necessary	10%
Direct human resources activities, including the approval of human resource plans and engagement of sub-contractors, selection of directors or other high-level staff	5%
Direct legal preparation and permitting for projects and oversee regulatory compliance	10%
Negotiate or approve contracts or agreements with clients, suppliers, distributors, federal or state agencies, or other organizational entities	5%

Oversee the execution of construction and engineering for projects, including overall management of budgets	15%
Total:	100%

These duties, which Mr. Moszkowski has been performing continuously for more than 8 years clearly establish that he meets all four of the criteria identifying employment in an executive capacity as set forth in 8 U.S.C. §1101(a)(44)(B). He (1) directs the overall management of the organization; (2) establishes its long-range goals and policies; (3) exercises wide latitude in discretionary decision making; and (4) receives only general supervision and direction only from the Company's Board of Directors.

A letter from Mr. Vicente Ximenes, Managing Director of Toke Gas and Oil verifying Mr. Moszkowski's qualifying executive employment abroad is attached to this letter as **Exhibit 4**.

THE BENEFICIARY'S U.S. EXECUTIVE POSITION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's executive employment as President of Deep Gulf. In this capacity, he will continue to serve as the face of the corporation and the primary liaison to government officials, the media and shareholders. He will be responsible for directing and coordinating all aspects of Company operations, and for providing leadership and in the administrative, business planning, accounting and budgeting efforts of the Company. More particularly, Mr. Moszkowski will continue to report to the Board of Directors and will continue to perform the following duties:

Responsibilities and Duties

1. Provide overall leadership to the company giving clear direction;
2. Develop a corporate strategy using top-level decision making, subject to advise and consent of the Board of Directors;
3. Play leading role in shaping organizational values and implement new strategies where required;
4. Execute the Company's business plan to ensure the future growth of the business;
5. In conjunction with the Board of Directors, conduct a periodic review and revision of the business plan, including mission, strategic goals and tactics;

6. Be responsible for financial viability of the company including overall Profit and Loss;
7. Develop policy and procedures in keeping with the mission of the Company;
8. Set performance criteria for all upper management and complete performance evaluations for all upper management;
9. Report to shareholders and investors at least annually and provide updates when he deems necessary. Make himself available to communicate with shareholders to understand, address their concerns;
10. Exercise ultimate responsibility for accurate reporting of company activities, including financial reports and audits;
11. Represent the company by communicating with national and international press and media on company progress and developments;
12. Work with Governments, administrations and companies in a range of overseas countries in order to advance specific projects; and
13. Finalize funding, technical and management arrangements leading to exclusive agreements with Governments to build energy transportation systems from existing and proven resources. This will include overseeing the building of associated ports, roads and structures.

The President reports in person to the Board of Directors on a quarterly basis, and more frequently in writing and telephonically. The President also reports to shareholders annually at shareholder meetings and periodically as needed, transmitting any necessary communications from shareholders to the Board. All upper-level managers will report directly to the President. In the performance of these duties, Mr. Moszkowski will continue to meet all four of the criteria establishing employment in an executive capacity, as set forth in 8 U.S.C. §1101(a)(44)(B). **See Exhibit 5, Petitioner's Organization Chart illustrating the Beneficiary's senior executive position.**

THE BENEFICIARY'S QUALIFICATIONS AND PROFESSIONAL BACKGROUND

Mr. Moszkowski is extremely well-qualified for the offered position. In 1981, he earned a Diploma of Higher Studies of the Merchant Marine from the National Merchant Marine Academy in Nice, France. This degree has been evaluated by a professional credential evaluation service as the equivalent of a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. Since his graduation, Mr. Moszkowski has gained significant engineering experience leading substantial projects in offshore gas and oil development. **See Exhibit 6, Beneficiary's credential evaluation and professional resume.** In addition, Mr. Moszkowski is the author and inventor on a series of U.S. patents for the construction and operation of deep water pipelines. **See Exhibit 7.** This maritime engineering expertise is the essence of Mr. Moszkowski's leadership role in our Company.

CONCLUSION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's employment as the Company's President. In this capacity, he will continue to perform the same executive-level decision-making duties, primarily in the U.S., but also in the creation of major energy transportation systems and pipeline projects in Southeast Asia.

If you have any questions or require additional information, please contact me or our counsel for this matter, Mr. Jeffrey W. Goldman at (978) 219-5055.

Sincerely yours,

DEEPGULF, INC.

By: _____
Rustin Howard
Corporate Secretary

Employment Agreement

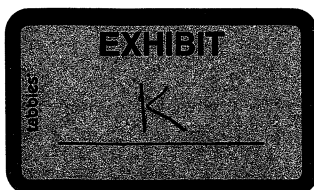
This Employment Agreement is entered into as of the date of the last signature affixed hereto, by and between Deep Gulf, a Florida Incorporation ("Deep Gulf, Inc." or "the Employer"), and Marc Moszowski ("Employee").

In consideration of the mutual promises and covenants set forth herein, and other good and valuable consideration, the sufficiency of which is hereby acknowledged, Deep Gulf, Inc. and Employee hereby agree as follows:

1. **Position of Employment.** The Company will employ the Employee in the position of President of Deep Gulf, Inc., and, in that position, Employee will report to the Board of Directors of Deep Gulf, Inc. Deep Gulf, Inc. retains the right to change Employee's title, duties, and reporting relationships as may be determined to be in the best interests of the Company; provided, however, that any such change in Employee's duties shall be consistent with Employee's training, experience, and qualifications.

The terms and conditions of the Employee's employment shall, to the extent not addressed or described in this Employment Agreement, be governed by Deep Gulf, Inc.'s Policies and Procedures Manual and existing practices. In the event of a conflict between this Employment Agreement and the Policies and Procedures Manual or existing practices, the terms of this Agreement shall govern.

2. **Term of Employment.** Employee's employment with Deep Gulf, Inc. shall begin on 1 August, 2005, and shall continue for a period of three (3) years, after which time continued employment shall be on an "at will" basis, unless:
 1. Employee's employment is terminated by either party in accordance with the terms of Section 5 of this Employment Agreement; or
 2. Such term of employment is extended or shortened by a subsequent agreement duly executed by each of the parties to this Employment Agreement, in which case such employment shall be subject to the terms and conditions contained in the subsequent written agreement.
3. **Compensation and Benefits.**
 1. **Base Salary.** Employee shall be paid a base salary of \$10,000 monthly, which is \$120,000 annually ("Base Salary"), subject to applicable federal, state, and local withholding. Such Base Salary is to be paid to Employee in the same manner and on the same payroll schedule in which all Deep Gulf, Inc. employees receive payment. Any increases in Employee's Base Salary for years beyond the first year of Employee's employment shall be in the sole discretion of Deep Gulf, Inc. management, and nothing herein shall be deemed to require any such increase.



2. Incentive and Deferred Compensation. Employee shall be eligible to participate in all incentive and deferred compensation programs available to other executives or officers of Deep Gulf, Inc., such participation to be in the same form, under the same terms, and to the same extent that such programs are made available to other such executives or officers. Nothing in this Employment Agreement shall be deemed to require the payment of bonuses, awards, or incentive compensation to Employee if such payment would not otherwise be required under the terms of Deep Gulf, Inc.'s incentive compensation programs.
3. Employee Benefits. Employee shall be eligible to participate in all employee benefit plans, policies, programs, or perquisites in which other Deep Gulf, Inc. executive or officers participate, including the Deep Gulf, Inc. Stock Option program. The terms and conditions of Employee's participation in Deep Gulf, Inc.'s employee benefit plans, policies, programs, or perquisites shall be governed by the terms of each such plan, policy, or program.
4. Duties and Performance. The Employee acknowledges and agrees that he is being offered a position of employment by the Company with the understanding that the Employee possesses a unique set of skills, abilities, and experiences which will benefit the Company, and he agrees that his continued employment with the Company, whether during the term of this Employment Agreement or thereafter, is contingent upon his successful performance of his duties in his position as noted above, or in such other position to which he may be assigned.
 1. General Duties.
 1. Employee shall render to the very best of Employee's ability, on behalf of the Company, services to and on behalf of the Company, and shall undertake diligently all duties assigned to him by the Company.
 2. Employee shall devote his full time, energy and skill to the performance of the services in which the Company is engaged, at such time and place as the Company may direct. Employee shall not undertake, either as an owner, director, shareholder, employee or otherwise, the performance of services for compensation (actual or expected) for any other entity without the express written consent of the Board of Directors.
 3. Employee shall faithfully and industriously assume and perform with skill, care, diligence and attention all responsibilities and duties connected with his employment on behalf of the Company.
 4. Employee shall have no authority to enter into any contracts binding upon the Company, or to deliberately create any obligations on the part of the Company, except as may be specifically authorized by the Board of Directors of DeepGulf, Inc.
 2. Specific Duties. [See job description appended as attachment to the agreement].

5. Termination of Employment. Employee's employment with the Company may be terminated, prior to the expiration of the term of this Employment Agreement, in accordance with any of the following provisions:
1. Termination by Employee. The Employee may terminate his employment at any time during the course of this agreement by giving 4 (four) months' notice in writing to the Board of Directors of Deep Gulf, Inc. During the notice period, Employee must fulfill all his duties and responsibilities set forth above and use his best efforts to train and support his replacement, if any. Failure to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period.
 2. Termination by the Company without Cause. Deep Gulf, Inc. may terminate Employee's employment at any time during the course of this agreement by giving 6 (six) months' notice in writing to the Employee. During the notice period, Employee must fulfill all of Employee's duties and responsibilities set forth above and use Employee's best efforts to train and support Employee's replacement, if any. Failure of Employee to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period. Deep Gulf, Inc., may, in its sole discretion, give Employee severance pay in the amount of the remaining notice period in lieu of actual employment, and nothing herein shall require Company to maintain employee in active employment for the duration of the notice period.
 3. Termination by the Company for Cause. The Company may, at any time and without notice, terminate the Employee for "cause". Termination by the Company of the Employee for "cause" shall include but not be limited to termination based on any of the following grounds: (a) failure to perform the duties of the Employee's position in a satisfactory manner; (b) fraud, misappropriation, embezzlement or acts of similar dishonesty; (c) conviction of a felony involving moral turpitude; (d) illegal use of drugs or excessive use of alcohol in the workplace; (e) intentional and willful misconduct that may subject the Company to criminal or civil liability; (f) breach of the Employee's duty of loyalty, including the diversion or usurpation of corporate opportunities properly belonging to the Company; (g) willful disregard of Company policies and procedures; (h) breach of any of the material terms of this Agreement; and (i) insubordination or deliberate refusal to follow the instructions or policies of the Board of Directors of Deep Gulf, Inc.
 4. Termination By Death or Disability. The Employee's employment and rights to compensation under this Employment Agreement shall terminate if the Employee is unable to perform the duties of his position due to death or disability lasting more than 90 days, and the Employee's heirs, beneficiaries, successors, or assigns shall not be entitled to any of the compensation or benefits to which Employee is entitled under this Agreement, except: (a) to the extent specifically provided in this Employment Agreement (b) to the extent required by law; or (c) to the extent that such benefit plans

or policies under which Employee is covered provide a benefit to the Employee's heirs, beneficiaries, successors, or assigns.

6. **Confidentiality.** Employee agrees that at all times during Employee's employment and following the conclusion of Employee's employment, whether voluntary or involuntary, Employee will hold in strictest confidence and not disclose Confidential Information (as defined below) to anyone who is not also an employee of the Company or to any employee of the Company who does not also have access to such Confidential Information, without express written authorization of the Board of Directors of the Company. "Confidential Information" shall mean any trade secrets or Company proprietary information, including but not limited to manufacturing techniques, processes, formulas, customer lists, inventions, experimental developments, research projects, operating methods, cost, pricing, financial data, business plans and proposals, data and information the Company receives in confidence from any other party, or any other secret or confidential matters of the Company. Additionally, Employee will not use any Confidential Information for Employee's own benefit or to the detriment of the Company during Employee's employment or thereafter. Employee also certifies that employment with the Company does not and will not breach any agreement or duty that Employee has to anyone concerning confidential information belonging to others.
7. **Noncompetition.** To the fullest extent permitted by applicable law, the terms of the Noncompetition Agreement executed by the Employee are incorporated by reference into this Employment Agreement and are made a part hereto as if they appeared in this Employment Agreement itself.
8. **Expenses.** The Company shall pay or reimburse Employee for any expenses reasonably incurred by him in furtherance of his duties hereunder, including expenses for entertainment, travel, meals and hotel accommodations, upon submission by him of vouchers or receipts maintained and provided to the Company in compliance with such rules and policies relating thereto as the Company may from time to time adopt.
9. **General Provisions.**
 1. **Notices.** All notices and other communications required or permitted by this Agreement to be delivered by Deep Gulf, Inc. or Employee to the other party shall be delivered in writing to the address shown below, either personally, by facsimile transmission or by registered, certified or express mail, return receipt requested, postage prepaid, to the address for such party specified below or to such other address as the party may from time to time advise the other party, and shall be deemed given and received as of actual personal delivery, on the first business day after the date of delivery shown on any such facsimile transmission or upon the date or actual receipt shown on any return receipt if registered, certified or express mail is used, as the case may be.

Deep Gulf, Inc:

Deep Gulf, Inc., Inc.
17 S Palafox Place Suite 370

Pensacola, FL 32502
[Attention: Board of Directors]

Employee:

Marc Moszkowski
425C East Zaragoza Ave
Pensacola, FL 32502

2. Amendments and Termination; Entire Agreement. This Agreement may not be amended or terminated except by a writing executed by all of the parties hereto. This Agreement constitutes the entire agreement of Deep Gulf, Inc. and Employee relating to the subject matter hereof and supersedes all prior oral and written understandings and agreements relating to such subject matter.
3. Successors and Assigns. The rights and obligations of the parties hereunder are not assignable to another person without prior written consent; provided, however, that Deep Gulf, Inc., without obtaining Employee's consent, may assign its rights and obligations hereunder to a wholly-owned subsidiary and provided further that any post-employment restrictions shall be assignable by Deep Gulf, Inc. to any entity which purchases all or substantially all of the Company's assets.
4. Severability; Provisions Subject to Applicable Law. All provisions of this Agreement shall be applicable only to the extent that they do not violate any applicable law, and are intended to be limited to the extent necessary so that they will not render this Agreement invalid, illegal or unenforceable under any applicable law. If any provision of this Agreement or any application thereof shall be held to be invalid, illegal or unenforceable, the validity, legality and enforceability of other provisions of this Agreement or of any other application of such provision shall in no way be affected thereby.
5. Waiver of Rights. No waiver by Deep Gulf, Inc. or Employee of a right or remedy hereunder shall be deemed to be a waiver of any other right or remedy or of any subsequent right or remedy of the same kind.
6. Definitions; Headings; and Number. A term defined in any part of this Employment Agreement shall have the defined meaning wherever such term is used herein. The headings contained in this Agreement are for reference purposes only and shall not affect in any manner the meaning or interpretation of this Employment Agreement. Where appropriate to the context of this Agreement, use of the singular shall be deemed also to refer to the plural, and use of the plural to the singular.
7. Counterparts. This Agreement may be executed in separate counterparts, each of which shall be deemed an original but both of which taken together shall constitute but one and the same instrument.
8. Governing Laws and Forum. This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Florida. The parties hereto further

agree that any action brought to enforce any right or obligation under this Agreement shall be subject to the exclusive jurisdiction of the courts of the State of Florida.

IN WITNESS WHEREOF, Deep Gulf, Inc. and Employee have executed and delivered this Agreement as of the date written below.

Deep Gulf, Inc., Inc.

Marc Moszkowski

By: Rustin Howard, Chairman DeepGulf, Inc.

Date: _____

Date: _____

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 1 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.
JEFFREY W GOLDMAN LAW OFFICES OF JEFF GOLDMAN LLP 125 WASHINGTON ST STE 204 SALEM MA 01970		Notice Type: Approval Notice Class: H1B Valid from 07/04/2014 to 02/10/2017 Consulate:

The above petition and extension of stay have been approved. The status of the named foreign worker(s) in this classification is valid as indicated above. The foreign worker(s) can work for the petitioner, but only as detailed in the petition and for the period authorized. Changes in employment or training may require you to file a new Form I-129 petition. Since this employment or training authorization stems from the filing of this petition, separate employment or training authorization documentation is not required. Please contact the IRS with any questions about tax withholding.

The petitioner should keep the upper portion of this notice. The lower portion should be given to the worker. He or she should keep the right part with his or her Form I-94, Arrival-Departure Record. The I-94 portion should be given to the U.S. Customs and Border Patrol when he or she leaves the United States. The left part is for his or her records. A person granted an extension of stay who leaves the U.S. must normally obtain a new visa before returning. The left part can be used in applying for the new visa. If a visa is not required, he or she should present it, along with any other required documentation, when applying for reentry in this new classification at a port of entry or pre-flight inspection station. The petitioner may also file Form I-824, Application for Action on an Approved Application or Petition, to request that we notify a consulate, port of entry, or pre-flight inspection office of this approval.

The approval of this visa petition does not in itself grant any immigration status and does not guarantee that the alien beneficiary will subsequently be found to be eligible for a visa, for admission to the United States, or for an extension, change, or adjustment of status.

THIS FORM IS NOT A VISA NOR MAY IT BE USED IN PLACE OF A VISA.

The Small Business Regulatory Enforcement and Fairness Act established the Office of the National Ombudsman (ONO)

Please see the additional information on the back. You will be notified separately about any other cases you filed.

U.S. CITIZENSHIP & IMMIGRATION SVCS

VERMONT SERVICE CENTER

75 LOWER WELDEN STREET

SAINT ALBANS VT 05479-0001

Customer Service Telephone: (800) 375-5283

Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

Receipt# EAC-14-171-52995

I-94# 311615380 30

NAME MOSZKOWSKI, MARC M.

CLASS H1B

VALID FROM 07/04/2014 UNTIL 02/10/2017

PETITIONER: DEEPGULF INC

17 S PALAFOX PL STE 370

PENSACOLA FL 32502

311615380 30

Receipt Number EAC-14-171-52995

United States Citizenship and Immigration
Services

I-94

Departure Record

Petitioner: DEEPGULF INC

14. Family Name
MOSZKOWSKI

15. First (Given) Name
MARC

17. Country of Citizenship
FRANCE

16. Date of Birth
06/25/1954

EXHIBIT

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 2 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.

(continued)
at the Small Business Administration. The ONO assists small businesses with issues related to federal regulations. If you are a small business with a comment or complaint about regulatory enforcement, you may contact the ONO at www.ombudsman.sba.gov or phone 202-205-2417 or fax 202-481-5719.

NOTICE: Although this application/petition has been approved, USCIS and the U.S. Department of Homeland Security reserve the right to verify the information submitted in this application, petition and/or supporting documentation to ensure conformity with applicable laws, rules, regulations, and other authorities. Methods used for verifying information may include, but are not limited to, the review of public information and records, contact by correspondence, the internet, or telephone, and site inspections of businesses and residences. Information obtained during the course of verification will be used to determine whether revocation, rescission, and/or removal proceedings are appropriate. Applicants, petitioners, and representatives of record will be provided an opportunity to address derogatory information before any formal proceeding is initiated.

Please see the additional information on the back. You will be notified separately about any other cases you filed.

U.S. CITIZENSHIP & IMMIGRATION SVCS

VERMONT SERVICE CENTER

75 LOWER WELDEN STREET

SAINT ALBANS VT 05479-0001

Customer Service Telephone: (800) 375-5283

Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

VOID	VOID	VOID
Receipt#	VOID	VOID
I-94#	VOID	VOID
NAME	VOID	VOID
CLASS	VOID	VOID
VOID	VOID	VOID
VOID	VOID	VOID
PETITIONER:	VOID	VOID
VOID	VOID	VOID
VOID	VOID	VOID

VOID	VOID	VOID
Receipt Number	VOID	VOID
United States Citizenship and Immigration Services	VOID	VOID
I-94	VOID	VOID
Departure Record	VOID	VOID
14. Family Name	VOID	VOID
15. First (Given) Name	VOID	VOID
17. Country of Citizenship	VOID	VOID
16. Date of Birth	VOID	VOID

MINTZ LEVIN
MINTZ LEVIN COHN FERRIS GLOVSKY AND POPEO

One Financial Center
Boston, MA 02111
617-542-6000
617-542-2241 fax
www.mintz.com

Jeffrey W. Goldman | 617 348 3025 | jgoldman@mintz.com

August 12, 2005

EV392160463US

VIA FEDERAL EXPRESS
U.S. Citizenship & Immigration Services
Texas Service Center
P.O. Box 852211
Mesquite, TX 75185-2211

Re: Form I-129, H-1B Petition for Nonimmigrant Worker - NOT SUBJECT TO CAP
Petitioner: DeepGulf, Inc.
Beneficiary: Mr. Marc MOSZKOWSKI

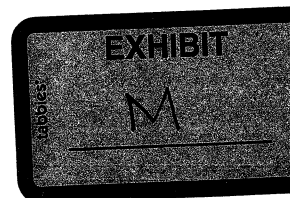
PLEASE NOTIFY THE CONSULATE IN PARIS, FRANCE

Dear Sir or Madam:

In connection with the above-captioned matter, enclosed please find the following forms and documentation submitted in support of the Petitioner's request to sponsor Mr. Moszkowski for H-1B employment until August 1, 2008:

- Attorney Representation Form G-28 with attached checks to cover the government filing fees (\$185, \$500, and \$750);
- Form I-129, Petition for a Nonimmigrant Worker;
- H Classification Supplement to Form I-129;
- H-1B Data Collection and Filing Fee Exemption Supplement;
- Form ETA 9035E, Certified Labor Condition Application (ETA Case # I-05189-1883137);
- Petitioner Letter of Support;
- Petitioner Information including business plan and PowerPoint presentation;
- Personal Guarantee of Rus Howard, Chairman of DeepGulf, Inc., attesting that he will use personal assets including the equity in his home to assure the Citizenship and Immigration Service that the H-1B prevailing wage will be paid. Also attached are tax returns and Settlement Statements from the real estate/residences owned by Mr. Howard;
- Copy of the Beneficiary's educational credentials and professional evaluation;

BOSTON | WASHINGTON | RESTON | NEW YORK | STAMFORD | LOS ANGELES | LONDON



MINTZ, LEVIN, COHN, FERRIS, GLOVSKY AND POPEO, P.C.

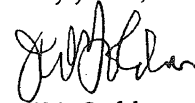
August 12, 2005

Page 2

- Copies of the Beneficiary's Form I-94, Form I-797 Approval Notice for prior H-1B status (SRC-00-069-52123), passport identity page and visa pages.

Please contact me at (617) 348-3025 if you have any questions or require additional information. Thank you in advance for your time and attention to this matter.

Very truly yours,



Jeffrey W. Goldman

JWG/kwf

Enclosures

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

Department of the Treasury — Internal Revenue Service Form 1040 U.S. Individual Income Tax Return 2004		(99) IRS Use Only — Do not write or staple in this space.																										
For the year Jan 1 - Dec 31, 2004, or other tax year beginning , 2004, ending , 20		OMB No. 1545-0074																										
Label (See instructions.) Use the IRS label. Otherwise, please print or type.	Your first name MI Last name RUSTIN R HOWARD		Your social security number 529-90-3650																									
	If a joint return, spouse's first name MI Last name		Spouse's social security number 518-90-6066																									
	Home address (number and street). If you have a P.O. box, see instructions. Apartment no. 431 C East Zarragossa Street		▲ Important! ▲ You must enter your social security number(s) above.																									
	City, town or post office. If you have a foreign address, see instructions. State ZIP code Pensacola, FL 32502																											
Presidential Election Campaign (See instructions.)		You Spouse Note: Checking 'Yes' will not change your tax or reduce your refund. Do you, or your spouse if filing a joint return, want \$3 to go to this fund? ☐ Yes ☒ No ☐ Yes ☐ No																										
Filing Status 1 ☐ Single 4 ☐ Head of household (with qualifying person). (See instructions.) If the qualifying person is a child but not your dependent, enter this child's name here. 2 ☐ Married filing jointly (even if only one had income) 3 ☒ Married filing separately. Enter spouse's SSN above & full name here. MAUREEN W HOWARD 5 ☐ Qualifying widow(er) with dependent child (see instructions)																												
Exemptions 6a ☒ Yourself. If someone can claim you as a dependent, do not check box 6a. Boxes checked on 6a and 6b 1 b ☐ Spouse. No. of children on 6c who: c Dependents: <table border="1" style="width:100%; border-collapse: collapse;"> <thead> <tr> <th>(1) First name</th> <th>Last name</th> <th>(2) Dependent's social security number</th> <th>(3) Dependent's relationship to you</th> <th>(4) ☒ if qualifying child for child tax credit (see instrs)</th> </tr> </thead> <tbody> <tr><td> </td><td> </td><td> </td><td> </td><td>☐</td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td>☐</td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td>☐</td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td>☐</td></tr> </tbody> </table> • lived with you • did not live with you due to divorce or separation (see instrs) ... Dependents on 6c not entered above. Add numbers on lines above 1				(1) First name	Last name	(2) Dependent's social security number	(3) Dependent's relationship to you	(4) ☒ if qualifying child for child tax credit (see instrs)					☐					☐					☐					☐
(1) First name	Last name	(2) Dependent's social security number	(3) Dependent's relationship to you	(4) ☒ if qualifying child for child tax credit (see instrs)																								
				☐																								
				☐																								
				☐																								
				☐																								

Form 1040 (2004)		RUSTIN R HOWARD		529-90-3650		Page 2	
Tax and Credits		37	Amount from line 36 (adjusted gross income)	37		6,708.	
Standard Deduction for - • People who checked any box on line 38a or 38b or who can be claimed as a dependent, see instructions. • All others: Single or Married filing separately, \$4,850 Married filing jointly or Qualifying widow(er), \$9,700 Head of household, \$7,150		38a	Check if: ☐ You were born before January 2, 1940, ☐ Spouse was born before January 2, 1940, ☐ Blind. ☐ Blind. Total boxes checked ▶ 38a	38a			
		b	If your spouse itemizes on a separate return, or you were a dual-status alien, see instructions and check here. ▶ 38b	38b			
		39	Itemized deductions (from Schedule A) or your standard deduction (see left margin).	39		5,227.	
		40	Subtract line 39 from line 37	40		1,481.	
		41	If line 37 is \$107,025 or less, multiply \$3,100 by the total number of exemptions claimed on line 6d. If line 37 is over \$107,025, see the worksheet in the instructions.	41		3,100.	
		42	Taxable income. Subtract line 41 from line 40. If line 41 is more than line 40, enter -0-	42		0.	
		43	Tax (see instrs). Check if any tax is from: a ☐ Form(s) 8814 b ☐ Form 4972	43		0.	
		44	Alternative minimum tax (see instructions). Attach Form 6251.	44		0.	
		45	Add lines 43 and 44	45		0.	
		46	Foreign tax credit. Attach Form 1116 if required.	46			
		47	Credit for child and dependent care expenses. Attach Form 2441.	47			
		48	Credit for the elderly or the disabled. Attach Schedule R.	48			
		49	Education credits. Attach Form 8863.	49			
		50	Retirement savings contributions credit. Attach Form 8880.	50			
		51	Child tax credit (see instructions).	51			
		52	Adoption credit. Attach Form 8839.	52			
		53	Credits from: a ☐ Form 8396 b ☐ Form 8859	53			
		54	Other credits. Check applicable box(es): a ☐ Form 3800 b ☐ Form 8801 c ☐ Specify	54			
		55	Add lines 46 through 54. These are your total credits.	55			
		56	Subtract line 55 from line 45. If line 55 is more than line 45, enter -0-	56		0.	
Other Taxes		57	Self-employment tax. Attach Schedule SE.	57			
		58	Social security and Medicare tax on tip income not reported to employer. Attach Form 4137.	58			
		59	Additional tax on IRAs, other qualified retirement plans, etc. Attach Form 5329 if required.	59		100.	
		60	Advance earned income credit payments from Form(s) W-2.	60			
		61	Household employment taxes. Attach Schedule H.	61			
		62	Add lines 56-61. This is your total tax. See Statement 2	62		250.	
Payments		63	Federal income tax withheld from Forms W-2 and 1099.	63			
		64	2004 estimated tax payments and amount applied from 2003 return.	64			
		65a	Earned income credit (EIC).	65a			
		b	Nontaxable combat pay election. ▶ 65b	65b			
		66	Excess social security and tier 1 RRTA tax withheld (see instructions).	66			
		67	Additional child tax credit. Attach Form 8812.	67			
		68	Amount paid with request for extension to file (see instructions).	68			
		69	Other pmts from: a ☐ Form 2439 b ☐ Form 4136 c ☐ Form 8885	69			
		70	Add lines 63, 64, 65a, and 66 through 69. These are your total payments.	70		0.	
Refund		71	If line 70 is more than line 62, subtract line 62 from line 70. This is the amount you overpaid.	71			
		72a	Amount of line 71 you want refunded to you.	72a			
		b	Routing number. ▶ c Type: ☐ Checking ☐ Savings				
		d	Account number.				
		73	Amount of line 71 you want applied to your 2005 estimated tax.	73			
		74	Amount you owe. Subtract line 70 from line 62. For details on how to pay, see instructions.	74		250.	
Amount You Owe		75	Estimated tax penalty (see instructions).	75			
Third Party Designee		Do you want to allow another person to discuss this return with the IRS (see instructions)? ☒ Yes. Complete the following. ☐ No					
		Designee's name	Preparer	Phone no.		Personal identification number (PIN)	
Sign Here		Under penalties of perjury, I declare that I have examined this return and accompanying schedules and statements, and to the best of my knowledge and belief, they are true, correct, and complete. Declaration of preparer (other than taxpayer) is based on all information of which preparer has any knowledge.					
		Your signature	Date	Your occupation	Daytime phone number		
				EXECUTIVE	850 437-5880		
		Spouse's signature. If a joint return, both must sign.	Date	Spouse's occupation			
Paid Preparer's Use Only		Preparer's signature	Thomas R. Hatfield	Date	3/30/05	Check if self-employed	☒
		Firm's name (or yours if self-employed), address, and ZIP code	Tom Hatfield, CPA P.O. Box 1107 Dryden, NY 13053	EIN	133-38-5768	Phone no.	(607) 835-6300,

Form 1040 (2004)

(Printed on Dec 03, 2004 @ 15:39)

US Department of Housing and Urban Development

OMB No. 2502-0265

A.

SETTLEMENT STATEMENT

B. Type of Loan

1. ☐ FHA 2. ☐ FmHA 3. ☐ Conv. Unins.	6. File Number: 01344-104690	7. Loan Number: 78903242	8. Mortgage Ins. Case #:
4. ☐ VA 5. ☐ Conv. Ins.			

C. NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "POC" were paid outside the closing; they are shown here for information purposes and are not included in the totals.

D. NAME AND ADDRESS OF BORROWER:

R. R. HOWARD 8 Calle Hermosa Pensacola Beach, FL 32561

E. NAME AND ADDRESS OF SELLER:

DONNA LEE 9423 S. Hollybrook Dr., #201 Pembroke Pines, FL 33025

F. NAME AND ADDRESS OF LENDER:

WHITNEY NATIONAL BANK 410 Labarre Road Jefferson, LA 70121

G. PROPERTY LOCATION:

431-B East Zarragossa Street Pensacola, FL 32501

H. SETTLEMENT AGENT:

Emmanuel, Sheppard & Condon (850) 433-6581 Contact: Janet Rogers

PLACE OF SETTLEMENT:

30 S. Spring Street Pensacola, FL 32501

I. SETTLEMENT DATE:

12/03/2004

DISBURSEMENT DATE:

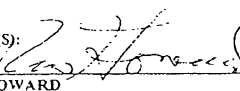
12/03/2004

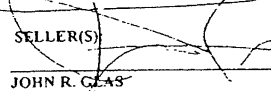
J. SUMMARY OF BORROWER(S) TRANSACTION

J. SUMMARY OF BORROWER(S) TRANSACTION		K. SUMMARY OF SELLER(S) TRANSACTION	
100. GROSS AMOUNT DUE FROM BORROWER :		400. GROSS AMOUNT DUE TO SELLER :	
101. Contract sales price	360,000.00	401. Contract sales price	360,000.00
102. Personal Property		402. Personal Property	
103. Settlement charges to borrower (line 1400)	12,613.69	403.	
104.		404.	
105.		405.	
Adjustments for items paid by Seller in advance		Adjustments for items paid by Seller in advance	
106. City/town taxes		406. City/town taxes	
107. County taxes 12/03/2004 to 12/31/2004	194.92	407. County taxes 12/03/2004 to 12/31/2004	194.92
108. Assessments		408. Assessments	
109.		409.	
110.		410.	
111.		411.	
112.		412.	
120. Gross Amount Due From Borrower	372,808.61	420. Gross Amount Due Seller	360,194.92
200. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :		500. REDUCTIONS IN AMOUNT DUE TO SELLER :	
201. Deposit or earnest money	10,000.00	501. Excess deposit (see instructions)	
202. Principal amount of new loan(s)	292,000.00	502. Settlement charges to seller (line 1400)	16,718.50
203. Existing loan(s) taken subject to		503. Existing loan(s) taken subject to	
204.		504. Payoff Mortgage to Wachovia Mortgage Corp. thru	298,960.33
205.		505. Payoff	
206.		506. 2004 Taxes	2,460.08
207.		507.	
208.		508.	
209.		509.	
Adjustments for items unpaid by Seller in advance		Adjustments for items unpaid by Seller in advance	
10. City/town taxes		510. City/town taxes	
11. County taxes		511. County taxes	
12. Assessments		512. Assessments	
13.		513.	
14.		514.	
15.		515.	
16.		516.	
17.		517.	
18.		518.	
19.		519.	
20. Total Paid By/For Borrower	302,000.00	520. Total Reduction Amount Due Seller	318,138.91
300. CASH AT SETTLEMENT FROM/TO BORROWER :		600. CASH AT SETTLEMENT TO/FROM SELLER :	
301. Gross Amount due from borrower (line 120)	372,808.61	601. Gross amount due to seller (line 420)	360,194.92
302. Less amounts paid by/for borrower (line 220)	302,000.00	602. Less reductions in amt. due seller (line 520)	318,138.91
303. Cash [X]From []To Borrower	70,808.61	603. Cash [X]To []From Seller	42,056.01

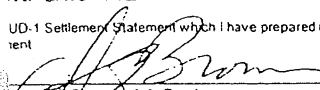
SETTLEMENT CHARGES		
	Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
Total Sales/Broker's Commission based on price		
Listing Realtor Commission To: Tanner Realty		
Selling Realtor Commission		
Commission paid at Settlement		46,000.00
ITEMS PAYABLE IN CONNECTION WITH LOAN		
Loan Origination Fee		
Loan Discount		
Appraisal Fee		
Credit Report		
Lender's Inspection Fee		
Mortgage Insurance Application Fee		
ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE		
Interest from		
Mortgage Insurance Premium for		
Hazard Insurance Premium for		
1. RESERVES DEPOSITED WITH LENDER		
1. Hazard insurance		
2. Mortgage insurance		
3. City property taxes		
4. County property taxes		
5. Annual assessments		
6.		
7.		
8. Aggregate Accounting Adjustment		
2. TITLE CHARGES		
1. Settlement or closing fee To: Emmanuel, Sheppard & Condon	250.00	
2. Abstract or title search To: American Pioneer Title Insurance Company	110.00	
3. Title examination To: Emmanuel, Sheppard & Condon	25.00	
4. Title insurance binder		
5. Document preparation To: Emmanuel, Sheppard & Condon	200.00	
6. Notary Fees		
7. Attorney's Fees To: Clark, Partington, Hart (includes above item numbers:)		350.00
8. Title Insurance To: American Pioneer Title Insurance Company & ES&C (includes above item numbers:)	6,398.25	
9. Lender's coverage @		
10. Owner's coverage 1,529,226.28 @ 6,398.25		
1.		
2.		
3. Overnight Courier & Handling Fees To: ES&C GL 600.10 Acct.		40.00
3. GOVERNMENT RECORDING AND TRANSFER CHARGES		
1. Recording fees:		
2. City/county tax/stamps:		
3. State tax/stamps: Deed \$10,705.10 Mortgage \$0.00 To: Clerk of the Court		10,705.10
4. Recording Releases To: ES&C GL 600.10 Acct.		12.00
5. Record Assignment of Lease To: Clerk of the Court	10.50	
6. Record Power of Attorney To: Clerk of the Court		6.00
4. ADDITIONAL SETTLEMENT CHARGES		
1. Survey		
2. Pest inspection To: Superior Termite & Pest Management		75.00
3. SRIA Lease (3/4/04-3/3/05) To: Santa Rosa Island Authority	1,293.82	
4. Home Warranty To: American Home Shield		550.00
5. Home Inspection To: David Walker Home Inspection Service	300.00	
6. A/C Inspection To: M.D. Air Conditioning	55.00	
5. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)		
		8,642.57
		57,738.10

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BORROWER(S): 
TINA B. HOWARD

SELLER(S): 
JOHN R. GEAS

HUD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.


Emmanuel Sheppard & Condon

Date: 2/27/04

Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and other fees) have been paid or will be paid upon receipt of final bills.

It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For more information, see: Title 18 U.S. Code Section 1001 and Section 1010.

Revised Feb 26, 2004 (4-15-15)

U.S. Department of Housing and Urban Development
SETTLEMENT STATEMENT

OMB No. 2502-0265

Type of Loan			
☐ FHA 2. ☐ FmHA 3. ☐ Conv. Unins. ☒ VA 5. ☐ Conv. Ins.		6. File Number: 00451-098512	7. Loan Number: 8. Mortgage Ins. Case #:
NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "POC" were paid outside the closing; they are shown here for information only and are not included in the totals.			
NAME AND ADDRESS OF BORROWER: RUSTIN R. HOWARD 2101 Scenic Highway, Apt. #D-101 Pensacola, FL 32503			
NAME AND ADDRESS OF SELLER: JOHN R. GLAS 1001 Old Metairie Drive Metairie, LA 70001			
NAME AND ADDRESS OF LENDER:			
PROPERTY LOCATION: 3 Calle Hermosa Pensacola Beach, FL 32561			
SETTLEMENT AGENT: Emmanuel, Sheppard & Condon (850) 433-6581 Contact: Janet Rogers		PLACE OF SETTLEMENT: 30 S. Spring Street Pensacola, FL 32501	
SETTLEMENT DATE: 02/27/2004		DISBURSEMENT DATE: 02/27/2004	
SUMMARY OF BORROWER(S) TRANSACTION		K. SUMMARY OF SELLER(S) TRANSACTION	
0. GROSS AMOUNT DUE FROM BORROWER :		400. GROSS AMOUNT DUE TO SELLER :	
1. Contract sales price	1,529,226.28	401. Contract sales price	1,529,226.28
2. Personal Property		402. Personal Property	
3. Settlement charges to borrower (line 1400)	8,642.57	403.	
4.		404.	
5.		405.	
Adjustments for items paid by Seller in advance		Adjustments for items paid by Seller in advance	
6. City/town taxes		406. City/town taxes	
7. County taxes		407. County taxes	
8. Assessments		408. Assessments	
9. SRIA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21	409. SRIA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21
0.		410.	
1.		411.	
2.		412.	
0. Gross Amount Due From Borrower	1,537,890.06	420. Gross Amount Due Seller	1,529,247.49
0. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :		500. REDUCTIONS IN AMOUNT DUE TO SELLER :	
1. Deposit or earnest money	35,250.00	501. Excess deposit (see instructions)	
2. Principal amount of new loan(s)		502. Settlement charges to seller (line 1400)	57,738.10
3. Existing loan(s) taken subject to		503. Existing loan(s) taken subject to	
4.		504. Payoff Mortgage to AmSouth Bank	229,622.17
5.		505. Payoff Mortgage to Bank of America	92,051.82
6.		506.	
7.		507.	
8.		508.	
9.		509.	
Adjustments for items unpaid by Seller in advance		Adjustments for items unpaid by Seller in advance	
0. City/town taxes		510. City/town taxes	
1. County taxes		511. County taxes	
2. Assessments		512. Assessments	
3. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40	513. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40
4.		514.	
5.		515.	
6.		516.	
7.		517.	
8.		518.	
9.		519.	
0. Total Paid By/For Borrower	35,314.40	520. Total Reduction Amount Due Seller	379,476.49
0. CASH AT SETTLEMENT FROM/TO BORROWER :		600. CASH AT SETTLEMENT TO/FROM SELLER :	
1. Gross Amount due from borrower (line 120)	1,537,890.06	601. Gross amount due to seller (line 420)	1,529,247.49
2. Less amounts paid by/for borrower (line 220)	35,314.40	602. Less reductions in amt. due seller (line 520)	379,476.49
3. Cash [X]From []To Borrower	1,502,575.66	603. Cash [X]To []From Seller	1,149,771.00

L.

SETTLEMENT CHARGES

UNITED STATES

700. Total Sales/Broker's Commission based on price		
701. Listing Realtor Commission To: Tanner Realty	Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
702. Selling Realtor Commission		
703. Commission paid at Settlement		13,680.00
800. ITEMS PAYABLE IN CONNECTION WITH LOAN		
801. Loan Origination Fee		
802. Loan Discount		
803. Appraisal Fee To: WHITNEY NATIONAL BANK	450.00	
804. Credit Report To: EQUIFAX	18.00	
805. Lender's Inspection Fee		
806. Mortgage Insurance Application Fee		
807. Underwriting fee To: WHITNEY NATIONAL BANK	200.00	
808. Document Preparation Fee To: WHITNEY NATIONAL BANK	100.00	
809. Flood Certification Fee To: GEOTRAC	10.00	
810. Tax Service Fee To: WHITNEY NATIONAL BANK	71.00	
900. ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE		
901. Interest from 12/03/2004 to 01/01/2005 @ 51/day To: WHITNEY NATIONAL BANK	1,479.00	
902. Mortgage Insurance Premium for		
903. Hazard Insurance Premium for(Windstorm) To: Underwood-Anderson	1,913.00	
904. Hazard Insurance Premium To: Underwood-Anderson	947.00	
000. RESERVES DEPOSITED WITH LENDER		
001. Hazard insurance 3 months @ 159.42 per month To: WHITNEY NATIONAL BANK	478.26	
002. Mortgage insurance		
003. City property taxes		
004. County property taxes 4 months @ 211.35 per month To: WHITNEY NATIONAL BANK	845.40	
005. Annual assessments		
006.		
007.		
008. Aggregate Accounting Adjustment To: WHITNEY NATIONAL BANK	-211.42	
100. TITLE CHARGES		
101. Settlement or closing fee To: Emmanuel, Sheppard & Condon	250.00	
102. Abstract or title search To: Attorneys Title Insurance Fund	85.00	
103. Title examination To: Emmanuel, Sheppard & Condon	25.00	
104. Title insurance binder		
105. Document preparation To: Emmanuel, Sheppard & Condon	200.00	
106. Notary Fees		
107. Attorney's Fees		
(Includes above item numbers:)		
108. Title Insurance To: Attorneys Title Insurance Fund & ES&C	1,900.00	
(Includes above item numbers:)		
09. Lender's coverage 292,000.00 @ 25.00		
10. Owner's coverage 360,000.00 @ 1,875.00		
11. Alta Form 8.1 FF9 To: Attorneys Title Insurance Fund & ES&C	215.00	
12.		
13. Overnight Courier & Handling Fees To: ES&C GL 600.10 Acct.	20.00	20.00
00. GOVERNMENT RECORDING AND TRANSFER CHARGES		
01. Recording fees: Deed \$10.00 Mortgage \$0.00 To: Clerk of the Court	10.00	
02. City/county tax/stamps: Mortgage \$584.00 To: Clerk of the Court	584.00	
03. State tax/stamps: Deed \$2,520.00 Mortgage \$1,022.00 To: Clerk of the Court	1,022.00	2,520.00
04. Recording Releases To: ES&C GL 600.10 Acct.		20.00
05. Record Power of Attorney (Buyer) To: Clerk of the Court	10.00	
06. Record Power of Attorney (Seller) To: Clerk of the Court		18.50
30. ADDITIONAL SETTLEMENT CHARGES		
301. Survey To: Lands End Surveying, Inc.		385.00
302. Pest inspection To: Superior Termite & Pest Management		75.00
303. Termite Treatment To: Superior Termite & Pest Management	917.00	
304. Home Inspection To: C. A. Capital Corp. \$300 POC by Buyer to C. A. Capital Corp.		
305. Payoff #70701017752 To: CBCS/Cornell University	65.00	
306. Payoff \$359 \$188 \$144 & \$84 To: CBCS/Medical	775.00	
307. Payoff #1401600100000 To: Verizon Wireless	235.45	
0. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)	12,613.69	16,718.50

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BROWER(S):

R. Howard
C. HOWARD By: *Madreen W. Howard*

SELLER(S):

Donna Lee
DONNA LEE By: *Kathleen I. Tanner*

HUD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Emmanuel, Sheppard & Condon
Emmanuel, Sheppard & Condon

12/03/04
Date

Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and finance fees) have been paid or will be paid upon receipt of final bills.
WARNING: It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For see: Title 18 U.S. Code Section 1001 and Section 1010.

119

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

PLAINTIFFS' RESPONSES TO DEFENDANT'S COUNTER-CLAIM

COUNT I- ACCOUNTING

Comes now, Plaintiffs, DeepGulf and Toke Oil and Gas, S.A., and responds to Defendant's Counter-Claim, and states as follows:

1. Admitted for jurisdictional purposes only.
2. Admitted as to Plaintiff, DeepGulf, Inc. Denied as to Plaintiff, Toke

Oil and Gas, S.A.

3. Denied.

COUNT II: BREACH OF CONTRACT

4. Denied.
5. Denied.
6. Denied.

7. Denied.

8. Admitted that Defendant has served as President of DeepGulf, Inc.

The remainder of this paragraph is denied.

9. Without knowledge and, therefore, denied.

10. Denied.

11. Denied.

COUNT III: BREACH OF CONTRACT

12. Denied

13. Denied.

14. Denied.

AFFIRMATIVE DEFENSES

1. Defendant/Counter-Plaintiff's claims under Count I, even if true, are a derivative action.

2. Defendant/Counter-Plaintiff has failed to satisfy a condition precedent to bringing an equitable action under Count I in that they have or had an adequate remedy at law which they failed and refused to present.

3. Defendant/Counter-Plaintiff waived his right to pursue Count II and Count III by agreeing that he would not claim a salary until such time as Plaintiff, DeepGulf, Inc., had revenue with which to pay Defendant/Counter-Plaintiff.

4. Defendant/Counter-Plaintiff's is estopped from claiming his right to pursue Count II and Count III by agreeing that he would not claim a salary until such time as Plaintiff, DeepGulf, Inc., had revenue with which to pay Defendant/Counter-Plaintiff.

5. Some or all of Defendant/Counter-Plaintiff's claims under Count II, Count III and Count IV are barred by the applicable statute of limitation.

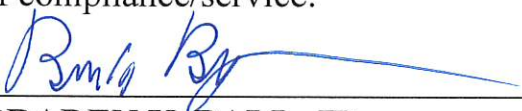
6. Some or all of Defendant/Counter-Plaintiff's claims under Count II, Count III and Count IV are barred by the applicable doctrine of laches.

DATED this 25th day of September, 2019.


BRADEN K. BALL, JR.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place, Suite 300
Pensacola, Florida 32502
Telephone: (850) 432-9818
Facsimile: (850) 432-9830
Attorneys for Plaintiffs
Primary E-mail: braden@lawpensacola.com
Secondary E-mail: mandrews@lawpensacola.com

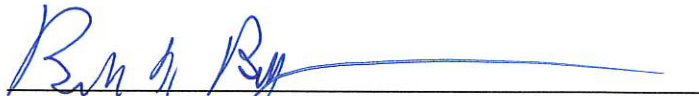
CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Notice contains 279 words, exclusive of the case style, signature block and certificates of compliance/service.


BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 25th day of September, 2019, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.


BRADEN K. BALL, JR.

120

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

PLAINTIFFS' REPLY TO AFFIRMATIVE DEFENSES

Comes now, Plaintiffs, Deepgulf and Toke Oil and Gas, S.A., and replies to the Affirmative Defenses asserted by Defendant, Marc M. Moszkowski, and states as follows:

1. Plaintiffs deny Defendant's First Affirmative Defense and require strict proof thereof.
2. Plaintiffs assert the defense of waiver to Defendant's Second Affirmative Defense. Plaintiffs agreed to not being paid by DeepGulf, Inc. during such times when there was no revenue being earned by DeepGulf, Inc.

3. Plaintiffs assert the defense of estoppel to Defendant's Second Affirmative Defense. Plaintiffs agreed to not being paid by DeepGulf, Inc. during such times when there was no revenue being earned by DeepGulf, Inc

4. Plaintiffs assert that claims that Defendant did not receive a salary between 1 August 2005 through 31 December 2007 nor between 1 April 2013 through present in Defendant's Second Affirmative Defense are time barred.

5. Plaintiffs assert the defense of fraudulent concealment as to Defendant's Third Affirmative Defense. Defendant fraudulently withheld any facts with which Plaintiff DeepGulf, Inc. could have reasonably discovered that Plaintiff was being paid by Toke Oil and Gas, S.A.

6. Plaintiffs deny Defendant's Fourth Affirmative Defense and require strict proof thereof.

DATED this 25th day of September, 2019.



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

40 Palafox Place, Suite 300

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

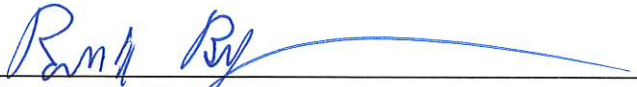
Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

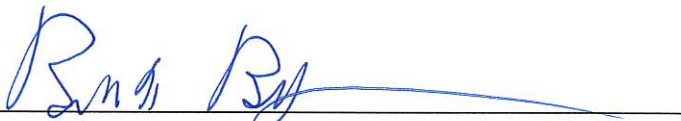
CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Notice contains 204 words, exclusive of the case style, signature block and certificates of compliance/service.


BRADEN K. BALL, JR.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 25th day of September, 2019, a copy of the foregoing has been furnished to the Defendant's counsel, Mary Allie E. Boller (allie@bollerlawfirm.com) and Thomas R. Boller (tom@bollerlawfirm.com), via the Court's E-filing system.


BRADEN K. BALL, JR.

130

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

**DEEPGULF, INC., and TOKE
OIL AND GAS, S.A.,**

Plaintiffs,

v.

Case No. 3:18cv1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER DENYING MOTION TO AMEND

This case is before the Court on Plaintiffs’ motion for leave to file an amended complaint (Doc. 121). Defendant filed a response in opposition to the motion (Doc. 123), and the parties were afforded an opportunity to present argument on the motion at a telephonic hearing held on a separate motion on November 5, 2019. No further argument is necessary to rule on the motion.

The motion is untimely. The deadline for amending pleadings was almost a year ago (*see* Doc. 30, at 2), discovery closed last week (Doc. 109), and the deadline for dispositive motions is less than two weeks away (*id.*).

It is well-established in the Eleventh Circuit that “[a] plaintiff seeking leave to amend its complaint after the deadline designated in a scheduling order must demonstrate ‘good cause’ under Fed. R. Civ. P. 16(b).” *S. Grouts & Mortars, Inc.*

v. *3M Co.*, 575 F.3d 1235, 1241 (11th Cir. 2009). Here, the motion does not articulate any reason for the untimely request to amend, much less “good cause” for the request.

Plaintiffs argued at the telephonic hearing that they decided to seek leave to amend the complaint after Defendant produced an email that they had not previously seen in conjunction with his recently-filed affirmative defenses. Even if that is true, it does not amount to “good cause” because the email does not change the fact that the allegations on which the proposed new breach of contract count is based (i.e., Defendant allegedly violating his non-compete agreement with Plaintiff DeepGulf by working for and receiving \$345,000 from Plaintiff Toke Oil & Gas) were known to Plaintiffs long before the email was disclosed because those facts were included in the original complaint. Thus, the recent disclosure of the email does not excuse the untimely filing of the motion.

Plaintiffs also candidly acknowledged at the telephonic hearing that they wanted to amend the complaint to assert a breach of contract count to overcome potential statute of limitations issues with the claims in the original complaint that involve the same operative facts. That does not constitute “good cause.” Indeed, it is unclear how asserting a breach of contract claim would cure any potential statute of limitations issues because, unlike some types of claims that do not accrue until the plaintiff knows or should know about them, a breach of contract claim under

Florida law accrues at the time of the breach “regardless of whether the plaintiff knew it had a claim.” *Beck v. Lazard Freres & Co., LLC*, 175 F.3d 913, 914 (11th Cir. 1999) (citing *Fed. Ins. Co. v. Sw. Fla. Ret. Ctr., Inc.*, 707 So. 2d 1119, 1122 (Fla. 1998)). Here, according to the proposed amended complaint, the alleged breach occurred when Defendant worked for a competitor in violation of his non-compete agreement “[f]rom 2010 to 2011” (Doc. 121, at 25), which is more than 5 years¹ before the original complaint was filed in April 2018. Thus, unless the Court is missing something, it would be futile for Plaintiffs to amend the complaint to add the proposed new breach of contract claim even if they had established “good cause” for their untimely motion.²

The Court has not overlooked Fed. R. Civ. P. 15(a)(2), which provides that leave to amend should be “freely give[n] . . . when justice so requires,” or Plaintiffs’ argument that Defendant will not be prejudiced by the amendment because the proposed new breach of contract claim arises out of the same operative facts as the claims in the original complaint. However, those points are irrelevant unless

¹ Under Florida law, the statute of limitations for a breach of contract claim is 5 years. *See* §95.11(2)(b), Fla. Stat.

² The Court has not overlooked the case submitted by Plaintiffs as supplemental authority, *Bilic v. New Fairways Inv. of Fla., Inc.*, 543 So. 2d 458 (Fla. 5th DCA 1989). *See* Doc. 129. However, that case has no bearing on the Court’s decision because (1) unlike the Eleventh Circuit cases cited in this Order, state appellate court decisions are not binding on this Court; (2) *Bilic* was decided under the Florida rules of civil procedure, not the federal rules that govern the Court’s review of Plaintiffs’ motion; and (3) unlike here, there appears to have been no question in *Bilic* that the breach of contract claim was not time-barred.

Plaintiffs first establish good cause for their untimely motion. *See Sosa v. Airprint Sys., Inc.*, 133 F.3d 1417, 1419 (11th Cir. 1998) (“If [the plaintiff]’s motion for leave to amend had been filed within the time prescribed by the scheduling order, Rule 15(a) would be our primary focus However, because [the plaintiff]’s motion to amend was filed after the scheduling order’s deadline, she must first demonstrate good cause under Rule 16(b) before we will consider whether amendment is proper under Rule 15(a). If we considered only Rule 15(a) without regard to Rule 16(b), we would render scheduling orders meaningless and effectively would read Rule 16(b) and its good cause requirement out of the Federal Rules of Civil Procedure.”) (citations omitted). Because Plaintiffs did not establish good cause, the Court need not consider whether Defendant would be prejudiced by the amendment.

That said, the Court is not unsympathetic to Plaintiffs’ argument that Defendant has been given ample opportunity to amend its pleadings and that Plaintiff has not previously amended its complaint. However, at this stage of the proceeding, the Court sees no good reason to re-open the pleadings and further delay the disposition of this case.

Accordingly, it is **ORDERED** that Plaintiffs’ motion for leave to amend the complaint (Doc. 121) is **DENIED**.

DONE and ORDERED this 6th day of November, 2019.

T. Kent Wetherell, II

T. KENT WETHERELL, II
UNITED STATES DISTRICT JUDGE

137

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-TKW-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT

COMES NOW, Defendant, by and through undersigned counsel, and moves this Honorable Court to enter, pursuant to Rule 56 of the Federal Rules of Civil Procedure, a Summary Judgment in favor of Defendant, and as grounds therefore states there is no genuine issue as to any material fact and that Defendant is entitled to a judgment as a matter of law, and submits herewith a memorandum in support thereof.

WHEREFORE, Your Petitioner would pray this Honorable Court enter an Order granting Defendants’ Motion for Summary Judgment, or to grant whatever further or different relief to which this Honorable Court deems Defendant may be entitled.

Respectfully submitted this 15th day of November 2019.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

Florida Bar No. 0111906

THOMAS R. BOLLER

Thomas R. Boller, P.C.

150 Government Street, Suite 1001

Mobile, Alabama 36602

Telephone: (251) 433-2133

Attorneys for Defendant

allie@bollerlawfirm.com

tom@bollerlawfirm.com

CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Response contains 109 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 15th day of November 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

138

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-TKW-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

MEMORANDUM IN SUPPORT OF DEFENDANT’S
MOTION FOR SUMMARY JUDGMENT

COMES NOW, Marc M. Moszkowski (hereinafter “Defendant”) by and through undersigned counsel, and submits this memorandum in support of his Motion for Summary Judgment.

STATEMENT OF UNDISPUTED MATERIAL FACTS

1. In September 2004, Marc Moszkowski and Rustin Howard agreed to form a company together with Rustin Howard to fund it. (Depo. Marc Moszkowski 32:23 and 34:24 (17 July 2019)).
2. DeepGulf, Inc. was founded on 1 December 2004. (Depo. Marc Moszkowski 32:23 and 34:24 (17 July 2019)).
3. On or about 1 August 2005, Plaintiff DeepGulf and Defendant entered into an agreement wherein Defendant agreed to perform certain work

for Plaintiffs in exchange for reasonable compensation ranging from \$120,000.00 per year to \$132,000.00 per year. (See Exhibits "A" - "B", Exhibit "C" at p. 5, § 2, ¶¶1-2, and Exhibits "G" - "I", "K"; see also Exhibit "M").

4. "*Noncompetition. Nondisclosure and Developments Agreements*" were signed by both Marc Moszkowski and Rustin Howard on 15 September 2005. (Depo. Marc Moszkowski 48:10-16, 49:3-13, and 217:2-5 (17 July 2019)).
5. In early 2008 Toke Oil and Gas S.A. (hereinafter "Toke") was incorporated in East Timor. Its owners and directors were in equal parts Marc Moszkowski (President Director General), Vicente Ximenes (Vice- President Director General), and Ernesto Gino Favaro (President Director General). (Depo. Marc Moszkowski 76:2-12 (17 July 2019)).
6. On 12 May 2008, a contract was signed by Rustin Howard according to which DeepGulf received from Toke 10% of invoicing to Toke by major subcontractor EGS. (Depo. Rustin Howard 129:10-15 (19 July 2019)).
7. Over the life of the company, Gino Favaro and Vicente Ximenes received together \$959,764.22 net from Toke, while Marc Moszkowski

received \$345,000.00 between January 2010 and November 2011, the latter salary having been granted to Marc Moszkowski by Vicente Ximenes after deduction from Vicente's salaries. (Depo. Marc Moszkowski 142:17-24, 143:6-8, 143:17-22, and 147:15-17 (17 July 2019)).

8. Toke was in charge of all activities, from contract negotiation to the last payment, through the execution of the contracts. (Depo. Marc Moszkowski 84:3-10 and 86:22-25 (17 July 2019)).
9. DeepGulf was not involved in operations, only in fund raising. Rustin Howard was in charge of raising capital for DeepGulf. (Depo. Marc Moszkowski 191:12-14 (17 July 2019)).
10. On 27 October 2010, Vicente Ximenes sold his 1/3 stock in Toke to DeepGulf for \$1. On 13 December 2012, Marc Moszkowski sold his 1/3 stock in Toke to DeepGulf for \$100. On the same day, it was agreed that Vicente Ximenes would sell his last 1/3 of stock in Toke to DeepGulf for \$100,000. However, he never received the amount. (Depo. Marc Moszkowski 114:7-10 (17 July 2019)).
11. During the life of the company, communication between Marc Moszkowski and Rustin Howard was intensive. They exchanged

14,584 emails and attachments, plus 3,687 Skype messages. (Depo. Marc Moszkowski 43:18-22, 66:23-67:1, 80:13-15, 83:2-7, 89:21-22, 99:2-17, 153:17-20 and 101:7-9 (17 July 2019)).

12. Rustin Howard was specifically informed about all salaries paid by Toke to Marc Moszkowski, including but not limited to an email by Defendant dated 6 March 2014 recapitulating all monies personally received by Defendant in France from Toke (*See* email attached hereto as Exhibit “F”). Plaintiffs confirmed receipt of said email, as the same was contained within Plaintiffs own discovery production in July 2019.
13. Marc Moszkowski has not been paid salary since March 2013. (Depo. Marc Moszkowski 199:9-10 (17 July 2019)).

STANDARD

The Court, in reviewing a motion for summary judgment, is guided by the standard set forth in Federal Rule of Civil Procedure 56(c), which states, in relevant part, as follows:

The judgment sought shall be rendered forthwith if the pleadings, depositions, answers to interrogatories and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law.

Fed. R. Civ. P. 56(c).

The moving party bears the burden of meeting this exacting standard. *Celotex Corp. v. Catrett*, 477 U.S. 317, 322-323, 106 S. Ct. 2548, 91 L. Ed. 2d 265 (1986). That is, "[t]he moving party bears 'the initial responsibility of informing the . . . [C]ourt of the basis for its motion, and identifying those portions of the 'pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, which it believes demonstrate the absence of a genuine issue of material fact.'" *U.S. v. Four Parcels of Real Property*, 941 F.2d 1428, 1437 (11th Cir. 1991) (quoting *Celotex*, 477 U.S. at 323). In assessing whether the moving party has satisfied this burden, the Court is required to view the evidence and all factual inferences arising therefrom in the light most favorable to the non-moving party. *Batey v. Stone*, 24 F.3d 1330, 1333 (11th Cir. 1994).

Despite these presumptions in favor of the non-moving party, the Court must be mindful of the purpose of Rule 56 which is to eliminate the needless delay and expense to the parties and to the Court occasioned by an unnecessary trial. *Celotex*, 477 U.S. at 322-323. Consequently, the non-moving party cannot merely rest upon his bare assertions, conclusory allegations, surmises or conjectures. *Id.* As the Supreme Court noted in *Celotex*:

[T]he plain language of Rule 56(c) mandates the entry of summary judgment . . . against the party who fails to make a showing sufficient to establish the existence of an element essential to the party's case, and on which the party will bear the burden of proof at trial. In such a situation, there can be "no genuine issue as to any material fact," since a complete failure of proof concerning an essential element of the non-moving party's case necessarily renders all other facts immaterial.

Id. at 322-323.

Thus, the mere existence of a scintilla of evidence in support of the non-moving party's position is insufficient. There must be evidence on which the jury could reasonably find for the non-movant. *McLean v. GMAC Mortg. Corp.*, 595 F. Supp. 2d 1360, 1363-64 (S.D. Fla. 2009)(citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 251, 106 S. Ct. 2505, 91 L. Ed. 2d 202 (1986)).

Summary judgment in favor of the movant is proper if, after adequate time for discovery, the motion's opponent fails to establish the existence of an element essential to his or her case and as to which he or she will bear the burden of proof at trial. *Celotex*, 477 U.S. at 322-23.

ARGUMENT

I. Defendant is Entitled to Summary Judgment as to Count II of Defendant's Counter-Claim, Breach of Contract.

In order to recover for breach of contract, a plaintiff must prove by a preponderance of the evidence: (1) the existence of a valid contract; (2) that

the plaintiff fulfilled its obligations under the contract; (3) a breach by the defendant; and (4) damages. *See Partylite Gifts, Inc. v. MacMillan*, 895 F. Supp. 2d 1213 (M.D. Fla. 2012).

The parties entered into an agreement on or about 1 August 2005 wherein Defendant was to perform work for Plaintiff, DeepGulf, Inc. for a salary of approximately \$120,000.00.(*See* Offer of Employment, attached hereto as Exhibit “A”; *see also* Employment Confirmation Letter attached hereto as Exhibit “B” and Letter to Department of Homeland Security¹ attached hereto as Exhibit “C”). Defendant performed all work to which he was obligated under the contract. Plaintiff, DeepGulf, as a contracting party, neglected, refused, and/or failed to do, perform, or furnish, after making and entering into the contract, the consideration in substance and in fact agreed on, as Defendant did not receive a salary between 1 August 2005 through 31 December 2007, nor between 1 April 2013 through present (despite Plaintiffs’ certification to the Department of Labor² (*see* Labor Condition Application, attached hereto as Exhibit “D”) that said salary would continue to be paid.)

¹ Page 5, § 2, ¶1-2; Referencing Job offer letter dated 1 August 2005 and Employment agreement dated 1 August 2005 (attached hereto as Exhibit “K”).

² Certifying that for the period of employment of 07/04/2011-07/03/2014, Plaintiff, DeepGulf, would pay Defendant a salary of \$103,397.00-\$132,000.00. Defendant did not receive said salary for the years 2013 or 2014. Further, Plaintiff has continued to serve as President for years 2015, 2016, 2017, 2018 and 2019 without pay.

Defendant is still President of DeepGulf, Inc. and still entitled to a salary. However, none has been paid since March 2013. (Depo. Marc Moszkowski 186:7-12 and 199:8-9 (17 July 2019)).

Defendant has suffered substantial monetary damages in the form of lost wages due to Plaintiffs' willful and continuing breach of contract.

There is no genuine issue as to any material fact concerning Defendant's claim under Count II of his Counter-Claim for Breach of Contract. Thus, Summary Judgment is due to be granted in favor of Defendant.

II. Defendant is Entitled to Summary Judgment as to Count III of Defendant's Counter-Claim, Work and Labor Done.

Defendant has served as the President of Plaintiff corporations for over 14 years (1 August 2005 through present). (*See* Exhibit "B"; *see also* Exhibit "C" at p. 5, § 2, ¶2 (noting the existence of an employment agreement) and at p. 8, ¶ 8 (noting the existence of an affidavit executed by Rustin Howard concerning the past performance and intent of the DeepGulf Board to continue to employ Mr. Marc Moszkowski³)).⁴

³ Proposed validity period would have been sometime after the letter dated 15 August 2014.

⁴ Employment agreement attached hereto as Exhibit "K".

In addition to extensive travel and business dealings on behalf of Plaintiffs, and in performance of his duties related to his employment with Plaintiffs, Defendant also conducted numerous surveys, acted as project manager over several underwater pipeline related projects, and negotiated commissions in favor of Plaintiff, DeepGulf. (Depo. Rustin Howard 129:10-15 (19 July 2019)).

Defendant is owed monies for work and labor done between 1 August 2005 through 31 December 2007, and 1 April 2013 through present, at the rate of \$132,000.00 per year.

In the alternative, Defendant is owed, at minimum, the salary Plaintiffs verified to the U.S. Government that they would pay Defendant pursuant to visa applications for the time periods of 1 August 2005 through 31 December 2007, and 1 April 2013 through 10 February 2017. (*See* I-29 Petition attached hereto as Exhibit “G”, at p. 5, ¶¶ 8,10, and I-29 Petition attached hereto as Exhibit “I”, at p.3, ¶¶ 6,8 and I-797A, Notice of Action (granting DeepGulf, Inc.’s petition for Defendant H-1B visa for the time period of 4 July 2014 through 10 February 2017) attached hereto as Exhibit “L”; *see also*, Letter to

U.S. Citizenship and Immigration Services, attached hereto as Exhibit “H”, at p.1, ¶1⁵ and p.2, ¶3⁶).

There is no dispute as to the fact that Defendant has not received any form of payment from Plaintiffs since March 2013. (Depo. Marc M. Moszkowski 199:8-9 (17 July 2019)). Defendant has established, and Plaintiffs have not denied, that Defendant is owed all unpaid salaries referenced herein. Thus, summary judgment is due to be granted in favor of Defendant as to Count III of Defendant’s Counter-Claim.

III. Defendant is Entitled to Summary Judgment as to Count II of Plaintiffs’ Complaint, Breach of Non-Competition Agreement.

Plaintiffs claim that Defendant breached his non-compete agreement in the form of violating the provisions under “paragraph 1. Non-competition”(Doc. 1, p. 27), “Paragraph 2. Non-solicitation of Customers” (Doc. 1, p. 28), “Paragraph 5 Non-disclosure” (Doc. 1, p. 28), and “Paragraph 8 Further Assurances” (Doc. 1, p. 29).

In order to recover for breach of contract, a plaintiff must prove by a preponderance of the evidence: (1) the existence of a valid contract; (2) that

⁵ Wherein intention of employment is confirmed through 22 April 2014, and annual salary is confirmed at \$132,000.00

⁶ Wherein annual salary of \$132,000.00 is reaffirmed.

the plaintiff fulfilled its obligations under the contract; (3) a breach by the defendant; and (4) damages. *See Partylite Gifts, Inc. v. MacMillan*, 895 F. Supp. 2d 1213 (M.D. Fla. 2012).

Here, Plaintiff cannot show that the contract at issue is valid, nor can they show that they fulfilled their obligations under the contract (wherein consideration for the contract was an offer of employment which included a salary), nor have they actually set forth facts that show a breach by the Defendant, nor have they shown any damages. Thus, Plaintiffs' claim under Count II of the Complaint fails.

Any alleged "threats" made by Defendant to leave the corporation and initiate a new corporation which would compete with Plaintiffs (Doc. 1, p. 28-29) are not components of actionable claims because no such action was ever taken by Defendant and no breach occurred.

Further, the agreement is invalid as it is unenforceable and unacceptable under Florida law. The language set out in each of the provisions of the non-compete agreement contemplated by Plaintiffs' Complaint (Doc. 1, pp.27-29) fail to contain any geographic limitation, making them unacceptable and unenforceable. *See Partylite Gifts, Inc., supra*, at *1227 (noting restrictive covenant with no geographic limitation are unacceptable.) As such, there are

no facts upon which Plaintiffs could base this claim which would allow it to succeed at trial. Thus, Summary Judgment is appropriate.

Additionally, Plaintiffs' breach of contract claim is barred by the statute of limitations. Under Florida law, the statute of limitations for breach is 5 years. *See* § 95.11(2)(b), Fla. Stat. Thus, Plaintiff's claim that Defendant violated the non-compete as related to his interaction or employment with Toke Oil and Gas would have accrued during the time frame upon which Plaintiffs base their conversion and civil theft claims, which ended in 2012 with Toke's last project (Doc. 1, p. 33). As the Complaint in this matter was filed 3 April 2018, Plaintiffs' claim regarding Defendant's alleged breach of a non-compete agreement is barred since the claim accrued prior to 2012, regardless of whether Plaintiffs were aware of the claim at that time or not. A breach of contract claim under Florida law accrues at the time of the breach "regardless of whether the Plaintiff knew it had a claim." *Beck v. Lazard Freres & Co., LLC*, 175 F.3d 913, 914 (11th Cir. 1999)(quoting *Fed. Ins. Co. v. Sw. Fla. Ret. Ctr., Inc.* 707 So. 2d 1119, 1112 (Fla. 1998)).

Defendant's Motion for Summary Judgment is due to be granted as to Count II of Plaintiffs' Complaint based upon the fact that the claim is barred by the statute of limitations, the claim is based upon speculative damages

and possible scenarios which did not occur, and the fact that the aspects of the non-compete agreement complained of are unenforceable under Florida law.

IV. Defendant is Entitled to Summary Judgment as to Counts III-IV of Plaintiffs' Complaint, Civil Theft.

Civil theft is a common law conversion with the criminal intent to steal. *See* 1-27 Florida Torts § 27.07. Florida Statute § 812.014 (2014) states the elements for civil theft as: (1) knowingly, (2) obtained or used, or endeavored to obtain or use, the plaintiff's property, (3) with felonious intent, (4) either temporarily or permanently to (a) deprive plaintiff of its right to or a benefit from the property or (b) appropriate the property to the defendant's own use or to the use of a person not entitled to the property. *See* Florida Statutes section 812.014 (2014); *see also* § 16:12 Civil Theft.

Plaintiffs have not proven, and cannot show proof, that payment of directors' salaries was "knowingly obtaining or using Plaintiff's property." Facts were never set out that show that another corporation's money, paid as directors' salaries, was property unequivocally belonging to Plaintiff DeepGulf.⁷

⁷ At that time, Toke was not a subsidiary of DeepGulf but was a separate entity to which Toke only owed

Additionally, Plaintiffs' claims for Civil Theft under Counts III – IV are barred by the statute of limitations. Under Florida law, a civil action for theft "may be commenced at any time within 5 years after the conduct in violation of a provision of this act terminates or the cause of action accrues." Fla. Stat. § 772.17.

Claims for civil theft must be brought "within five years after the cause of action accrues." § 812.035(10), Fla. Stat. (1985)...[I]n *Bove v. PBW Stock Exchange, Inc.*, 382 So.2d 450 (Fla. 2d D.C.A. 1980). The *Bove* court found that a claim for conversion, which is governed by the same "accrual" standard as that applicable to claims for civil theft, began to run at the time of conversion, as distinguished from the time of discovery by the plaintiff. *Id.*, at 452. The Court finds this interpretation most faithful to the clear statutory language.

Armbrister v. Roland Int'l Corp., 667 F. Supp. 802, 822 (M.D. Fla. 1987).

The actual accrual of Plaintiffs' civil theft claim occurred when directors' salaries were paid, which would have been 2012 or before, as the last project completed by Toke ended in 2012. (Doc. 1, p.31). Thus, more than 5 years have elapsed since the accrual of the alleged civil theft under Counts III – IV of Plaintiffs' Complaint.

the agreed upon amount of commissions. (Depo. Rustin Howard 129:10-15 (19 July 2019)).

Plaintiffs were sent (and confirmed receipt of) emails dated 26 January 2011 and 25 May 2012 reflecting salaries being paid to Defendant by Toke Oil and Gas, S.A. (hereinafter "Toke"). (See emails attached hereto as Exhibit "E"). Plaintiffs were aware that Defendant was a director of Toke, and Plaintiffs became aware Defendant was receiving a salary for his services as President Director of Toke more than 5 years before the institution of the pending lawsuit on 3 April 2018. Further, Defendant discussed extensively with other officers and directors of Plaintiffs on multiple occasions, including but not limited to during a ski vacation in France in 2012, his need for and receipt of income from Toke. (Depo. Bill Lott 136:10-13 (31 July 2019)). Thus, Plaintiffs should be barred from bringing claims for Civil Theft under the applicable the statute of limitations.

Based upon the applicable statute of limitations, and Plaintiffs' failure to establish the ownership aspect of civil theft, entry of summary judgment in favor of the Defendant is appropriate.

Additionally, Plaintiffs' failure to establish the element of ownership under their claim for civil theft means that the same must be true for the "ownership" or "right" elements of Plaintiffs' claim for conversion. "If there was no factual basis to support a claim for conversion, there can be no cause

of action for civil theft." *Heldenmuth v. Groll*, 128 So. 3d 895, 896 (Fla. 4th DCA 2013)(citing *Gasparini v. Pordomingo*, 972 So.2d 1053, 1056 (Fla. 3d DCA 2008)). As such, summary judgment is due to be granted in favor of Defendant as to Plaintiffs' claims under Counts III, IV, V, and VI for Civil Theft and Conversion.

V. Defendant is Entitled to Summary Judgment as to Counts V-VI of Plaintiffs' Complaint, Conversion.

The Restatement of Torts defines conversion as an intentional exercise of dominion and control over a chattel (property or asset) which so seriously interferes with the right of another to control it that the actor may justly be required to pay the other the full value of the chattel. Under Florida case law, conversion is defined as the wrongful control of another person's property, assets or money. *Seymour v. Adams*, 638 So.2d 1044 (Fla. 5th DCA 1994). The essence of the tort of conversion is the exercise of wrongful dominion or control over property, assets or money to the detriment of the rights of the actual owner. *Goodwin v. Alexatos*, 584 So.2d 1007 (Fla.5th DCA 1991)(emphasis added).

Under Florida law, "[a] conversion consists of an act in derogation of the plaintiff's possessory rights, and any wrongful exercise or assumption of authority over another's goods, depriving him of the possession, permanently or for an

indefinite time, is a conversion." *Palm Beach Golf Ctr.-Boca, Inc. v. John G. Sarris, D.D.S., P.A.*, 781 F.3d 1245, 1258-59 (11th Cir. 2015) (quoting *Star Fruit Co. v. Eagle Lake Growers, Inc.*, 160 Fla. 130, 132, 33 So.2d 858, 860 (1948)). "Conversion is an act of dominion wrongfully asserted over another's property inconsistent with his ownership therein." *Id.* (quoting *Warshall v. Price*, 629 So. 2d 903, 904 (Fla. 4th DCA 1993)). *TCC Air Servs., Inc. v. Schlesinger*, No. 05 80543 CIV-Ryskamp, 2006 U.S. Dist. LEXIS 90223, 2006 WL 3694639, at *3(S.D. Fla. Dec. 12, 2006).

Freestream Aircraft USA Ltd. v. Chowdry, No. 16-cv-81232, 2018 U.S. Dist. LEXIS 91100, at *33-34 (S.D. Fla. May 31, 2018).

Plaintiffs allege that conversion occurred when Defendant caused directors' salaries to be paid by Toke, and specifically when \$345,000.00 of said directors' salaries were caused to be paid to himself, as President Director General of Toke. Said payments were made over the span of three projects, the last one having been completed in May 2012. (Doc. 1, p. 31).

Plaintiffs have not, and cannot, demonstrate that the monies which were paid out as "director salaries" was money that belonged to Plaintiffs. Toke was a separate entity at the time these payments for directors' salaries were made, and DeepGulf had only a singular contract wherein it was to receive a 10% commission from said projects. (Depo. Rustin Howard 129: 10-15 (19 July 2019)). DeepGulf never had any other agreement to receive any additional monies from Toke. Nor was DeepGulf entitled to any of Toke's

profits that they paid to their directors. Had that \$1.304 million not been paid toward director salaries, or had that \$345,000.00 of those director salaries not been paid to Defendant, Plaintiffs have not and cannot show that said monies would have been paid to, or somehow belonged to, Plaintiff DeepGulf. As such, the key element of ownership under a claim for conversion is not met, and Plaintiffs' claims under Counts V-VI fail on their face. As noted above, summary judgment is appropriate in instances wherein all elements of a claim are not met.

Plaintiffs cannot establish the existence of the element of ownership to create a genuine issue of material fact concerning conversion or civil theft. Thus, summary judgment is due to be granted in favor of Defendant as to Plaintiffs' claims for civil theft and conversion under Counts III, IV, V, and VI. (*See Freestream Aircraft USA Ltd. v. Chowdry*, No. 16-cv-81232, 2018 U.S. Dist. LEXIS 91100, at *34-35 (S.D. Fla. May 31, 2018)(Holding that [b]ecause the Court does not find that the undisputed material facts establish conversion, the Court cannot find that the undisputed material facts establish civil theft.)

Additionally, Plaintiffs have failed to allege specific damages in light of the fact that no facts have been presented to correlate any entitlement of

DeepGulf to monies paid by Toke (prior to Toke allegedly becoming a subsidiary of DeepGulf) to its directors. “There can be no recovery under Florida law where the evidence is not sufficient to enable the jury to assess damages with a reasonable degree of certainty without leaving the amount awarded to speculation and conjecture.” *Mallari v. W. Auto Supply Co.*, Case No. 86-1229-CIV-T-17, 1988 U.S. Dist. LEXIS 13723, at *1 (M.D. Fla. Oct. 21, 1988). Any loss of business opportunity without proof of DeepGulf’s ability to have obtained said business opportunity, nor any estimation of damages based upon monies which were not ever property of DeepGulf in the first place, are insufficient benchmarks for damages and, thus, Plaintiffs’ pleadings regarding claims for conversion and civil theft are want for damages, leaving Defendant’s Motion for Summary Judgment appropriate and due to be granted.

Further, the statute of limitations for conversion is 4 (four) years from the time of incident or discovery of the wrong. *See Fla. Sta. § 95.11(3)(h)-(3)(i)* (2011). Counts V- VI are clearly barred by the statute of limitations. Plaintiffs were sent an email by Defendant dated 6 March 2014 recapitulating all monies personally received by Defendant in France from Toke (*See email attached hereto as Exhibit “F”*). Plaintiffs confirmed receipt of said email, as

the same was contained within Plaintiffs own discovery production in July 2019. This action was filed 3 April 2018, more than 4 years after the alleged conversion was or should have been discovered, or occurred. Thus, Plaintiffs are barred by the statute of limitations from asserting Conversion.

Based upon Plaintiffs' failure to establish each necessary element of their claim, as well as the statute of limitations bar, Defendant is entitled to judgment as a matter of law and summary judgment is due to be granted in favor of Defendant as to Counts III, IV, V and VI of Plaintiffs' Complaint.

VI. Defendant is Entitled to Summary Judgment as to Count VII of Plaintiffs' Complaint, Fraudulent Misrepresentation.

Plaintiffs assert that Defendant made fraudulent misrepresentations as to a Private Placement Memorandum or "PPM." (Doc. 1, pp. 32-34). First, Plaintiffs' claim under Count VII (Fraudulent Misrepresentation) should fail due to Plaintiffs' primary participation in the creation of⁸, and failure to object to, the PPM. Further, any investments made as a result of the PPM or damages stemming therefrom would only be recoverable by individual investors, not by Plaintiffs. As the only monetary damages even alleged to

⁸ As evidenced in Exhibit "C", pg. 7, Section 3, Number 5(a)(i)

have been suffered due to the PPM were suffered by individual investors and not the Plaintiff corporations themselves, Plaintiffs' claim for fraudulent misrepresentation fails on its face.

Plaintiffs have not, however, presented evidence that they have suffered any injury as a result of acting in reliance on any of these alleged misrepresentations. Plaintiffs allege that they have suffered "monetary, emotional, physical, and other damages as a result" of relying on the alleged misrepresentations....Consequently, Plaintiffs' have not presented evidence that they suffered injury in reliance on Defendants' alleged misrepresentations. Their claim for fraudulent misrepresentation therefore fails as a matter of law.

Echeverria v. BAC Home Loans Servicing, LP, 900 F. Supp. 2d 1299, 1308-09 (M.D. Fla. 2012).

Q. And what damage do you allege was caused as a result of these falsehoods that you say were Mr. Moszkowski's responsibility?

A. The damages would be suffered by any person who invested in the corporation.

Depo. Rustin Howard 46:1-5 (19 July 2019).

A claim for fraudulent misrepresentation requires proof of: (1) a false statement concerning a material fact; (2) the representor's knowledge that the representation is false; (3) an intention that the representation induce another to act on it; and (4) consequent injury by the party acting in reliance

on the representation. *Alcazar Tower, Ltd. Liab. Co.*, No. 12-CIV-23198-MORE, 2013 U.S. Dist. LEXIS 195676, at *10-11 (S.D. Fla. Jan. 11, 2013)(citing *Bhayani v. Treeco. Inc.*, No. 2:09-cv-672-FtM-29DNF, 2011 U.S. Dist. LEXIS 6942, 2011 WL 250434, *4 (M.D. Fla. Jan. 25, 2011)).

Plaintiffs have not alleged any specific damages suffered by the corporation. Plaintiffs' deposition revealed that specific damages to the corporation could not be identified as a result of the PPM. Not only was there a lack of specific numbers as to loss as a result of alleged fraudulent representation, the Plaintiffs have not alleged, nor is there evidence to sustain an allegation of any guarantee concerning returns on investment when money was being solicited by Plaintiffs as a result of the PPM. The loss of funds and/or projects by Plaintiffs was not a product of the PPM nor did the PPM guarantee any future outcomes for Plaintiff corporations or its investors. Even if investors were directly impacted (evidence of which is not established by Plaintiffs), the Plaintiff corporations themselves were not damaged by the representations made within the PPM.

Q. Is it your position that the plaintiffs in this lawsuit have no value now?

A. That the plaintiffs have no value now?

Q. Yeah. How do you calculate the loss that the investors suffered? How do you make that determination?

A. I don't know.

Q. Do you believe that in your skills as a result of your education and experience you have the ability to ascertain what loss any particular investor in the second round had as a result of these falsehoods you say were Mr. Moszkowski's responsibility?

A. I can't say that I do.

Depo. Rustin Howard 57:4-15 (19 July 2019).

Allegations of speculative damages which cannot be quantified in monetary losses suffered directly by the corporation do not suffice as evidence of the injury component to Plaintiffs' claim for fraudulent misrepresentation. *See Echeverria v. BAC Home Loans Servicing, LP*, 900 F. Supp. 2d 1299, 1309 n.9 (M.D. Fla. 2012)(citing Restatement 2d Torts § 549 (damages for fraudulent misrepresentation are limited to pecuniary losses)).

Plaintiffs' claim under Count VII for Fraudulent Misrepresentation fails as a matter of law as Plaintiffs have not presented evidence that they have suffered injury as a result of the alleged misrepresentations contained in the PPM (of which Plaintiffs admittedly co-authored.)(*See Exhibit "C"*, p. 7, Section 3, Number 5(a)(i)). Thus, summary judgment is due to be granted

in favor of Defendant as to Plaintiffs' claim under Count VII for Fraudulent Misrepresentation.

VII. Defendant is Entitled to Summary Judgment as to Count VIII of Plaintiffs' Complaint Requesting Declaratory Relief.

There remains no question of material fact as to whether Plaintiffs are not entitled to Declaratory Relief regarding Plaintiff, Toke.

There has been no evidence presented to support the claim that Toke is a wholly owned subsidiary of DeepGulf. (Doc. 1, p. 1). In fact, Plaintiff, DeepGulf, failed to perform its due diligence in even ascertaining whether Toke Oil and Gas existed, or could have existed, as a Florida corporation at the time it filed suit, naming Toke as a Plaintiff.

Q. Did you take any steps to ascertain whether it was still in existence when you prepared and filed this lawsuit?

A. No.

Q. Did you make any effort to verify that Toke had a valid and current business license, Toke the plaintiff in this lawsuit, has a current and valid business license?

A. No.

Depo. Rustin Howard 143:21-144:3 (19 July 2019).

Plaintiffs should be enjoined from bringing any action for Declaratory Relief concerning Toke, and this Court should further bar any claims asserted by Plaintiff, Toke, as its corporate existence has not been, and cannot be verified. Plaintiffs have failed to assert any law or facts which would allow this Court to grant their claim for Declaratory Relief under Count VIII. (Doc. 8, pp. 14-15). There is no genuine issue of material fact as to whether Plaintiff, Toke, has established standing to bring a claim in this (or any) Court of Law. Defendant is entitled to a judgment as a matter of law as to Plaintiffs' Count VIII, and thus, summary judgment is due to be granted.

CONCLUSION

Defendant respectfully requests that this Honorable Court grant his Motion for Summary Judgment in this action. Based upon the available facts and applicable law, there exist no genuine issues of material fact and Defendant is entitled to summary judgment as prayed for as a matter of law.

Respectfully submitted this 15th day of November 2019.

s/ Mary Allie E. Boller

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CERTIFICATE OF COMPLIANCE WITH LOCAL RULE 7.1(F)

I CERTIFY that this Response contains 5121 words, exclusive of the case style, signature block and certificates of compliance/service.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

CERTIFICATE OF SERVICE

I hereby certify that on this 15th day of November 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing to all counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

138-1



DeepGulf Inc,
700 South Palafox Place, Suite 200
Pensacola, Florida, 32502

1 August 2005

Dear Marc,

We are delighted to offer you the position of President of DeepGulf, Inc. We look forward to welcoming you to the company and we are excited about the wealth of knowledge and unique experience that you bring with you.

We would like to initially offer you a salary \$120,000 per year including the benefits package as discussed at your interview.

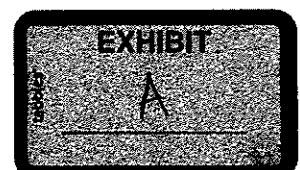
I have attached a copy of the job description for your information.

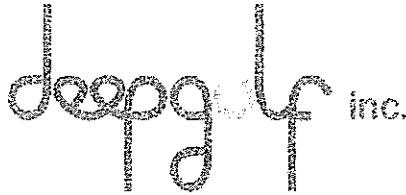
Please contact me at your earliest convenience to arrange a start date.

Sincerely

A handwritten signature in black ink, appearing to read "Rus Howard". The signature is fluid and cursive, with a long horizontal stroke extending to the right.

Rus Howard
SECRETARY (On behalf of the Board of Directors)





Re: Employment Confirmation Letter

To Whom it may concern:

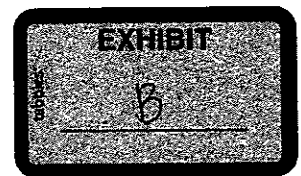
This letter confirms Marc Moszkowski's employment with DeepGulf Inc. Marc serves as president of DeepGulf, with a salary of \$120,000 per year with standard benefits.

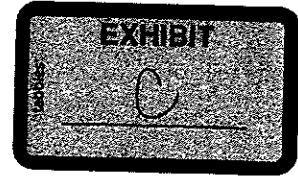
Mr. Moszkowski is responsible for all operations of DeepGulf, including corporate strategy, and oversight of marketing, business development, and engineering.

Sincerely,

A handwritten signature in black ink, appearing to read 'Rus Howard', is written over a horizontal line. The signature is fluid and cursive.

Rus Howard
Chairman





August 15, 2014

United States Department of Homeland Security
United States Citizenship and Immigration Services
VSC Premium Processing
ATTN: RFE Response
30 Houghton Street
St. Albans, Vermont 05478

Re: Response to Request for Evidence: I-129/H-1B Petition for a Nonimmigrant Worker filed by DeepGulf, Inc. on behalf of Mr. Marc Moszkowski

Dear Sir/Madam:

We submit this letter to respond to your Request for Evidence ("RFE") in connection with the H-1B petition DeepGulf, Inc. ("DeepGulf" or "the Company") has filed on behalf of Mr. Marc Moszkowski, issued by the Service on June 10, 2014. Specifically the Service would like clarification regarding the following:

- **Specialty Occupation:** The Service has questioned the nature of the job and whether or not it is a specialty occupation.
- **Right to Control:** The Service has requested evidence showing that DeepGulf has the right to control Mr. Maszkowski's employment.
- **Employer-Employee Relationship:** The Service seeks evidence that a valid employer-employee relationship will exist for the requested validity period and that we have maintained an employer-employee relationship during the previous H-1B approval period.

PLEASE NOTE: The following information is confidential and valuable in nature and we request that it not be disclosed to anyone outside USCIS or to any persons at USCIS who do not need to know for the purposes of approving the petition.

Section 1: The Proffered Position of President is a Specialty Occupation

About the Company

The Service has indicated that they would like additional documentation highlighting the nature, scope, and activity of our business. DeepGulf, Inc. is an energy transportation business. It was founded on technology that would enable it to lay ultra-deep, very large pipelines, larger and deeper than any of its

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Page 2

competitors. While developing this technology, Deep Gulf's customers demanded they expand the scope of their business to include transportation of energy, specifically, compressed natural gas in a marine environment. This energy transportation system was developed by the Deep Gulf team whose core ideas were developed by Mr. Moszkowski. We want USCIS to have an excellent understanding of what our company does in order for you to fully appreciate why Mr. Moszkowski's duties require at least the equivalent of a U.S. Bachelor's degree in Marine Operations and Technology or a related field in order to be the Chief Executive of our company; thus at **Exhibit 1** we are attaching a copy of our power point presentation introducing our company to clients to provide further details.

Mr. Moszkowski will be relieved from Performing Non-Qualifying Functions

The Service incorrectly asserted that we have only 1 employee. In fact, DeepGulf, Inc. has three employee positions, as well as many contractual and professional relationships to accomplish the various daily tasks necessary to operate a business. Please see below for information regarding these employees and contractors:

- Rus Howard, Corporate Secretary and Chief Financial Officer of the Company, is responsible for administrative functions of the company. These functions include controller duties, research into current and future projects, and fundraising. Rus also oversees the corporate books and stock transactions of the company.
- Jennifer Cabbage is employed as an executive assistant who performs day to day office tasks such as answering phones, emails, and filing. She processes the mail and all bills and payments made out of the office. Any incoming revenue is received and deposited by this assistant. She also monitors the financial accounts to ensure all payables and receivables are completed in a timely manner.

NOTE: Mr. Howard and Ms. Cabbage are full time employees, and they take care of 99% of the day to day needs of the company so that Mr. Moszkowski can spend all of his time in the field, using his professional skills and training to lead our company.

- A Certified Professional Accountant, Beth Minor, of Breeze Bookkeeping, is contracted on a monthly basis to handle all bookkeeping and accounting functions, as well as some tax preparation. Beth also processes payroll for our employees. DeepGulf Breeze Bookkeeping payments documents payments for Mr. Minor's activities.
- Saltmarsh, Cleaveland and Gunn performs our US and international income tax preparation, as well as oversight for foreign exchange transactions. Ron Jackson, Managing Partner of Saltmarsh, Cleland and Gunn, is our direct contact within this company. DeepGulf Saltmarsh payments provides documentation that DeepGulf, Inc. has provided compensation for these duties.
- Carolyn Ward, of Clark, Partington, and Hart, acts as the corporate lawyer for DeepGulf, Inc., including handling corporate books, some contracts, and stock transactions.
- Rodney Lewis, of Sydney, Australia, manages all international legal issues, including gas delivery contracts and project contracts. He also has extensive experience and close relationships in the country of Timor. He represented the country of Timor Leste and helped draft some of the founding documents. Mr. Lewis also closely monitors political and energy news in Southeast Asia and offers advice and insights into happenings in the region.
- Bruce Gordon, former lead negotiator for Chevron in Southeast Asia, is our lead negotiator for energy purchase contracts and delivery contracts. Bruce is paid by a success fee.

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Page 3

- Jason Fisher is the company's financial advisor and is located in Singapore. Mr. Fisher has extensive experience in financing oil and gas projects in Southeast Asia and has worked for several of the largest firms in the world, handling such projects. Mr. Fisher further gives advice on how to structure funding and operational needs of our projects.
- Bill Lott and Tom McMillan, members of the Board of Directors, advise the corporation on oil and gas and offshore construction matters. Bill Lott's company, Lott Ship, is one of the largest ship agents in the Gulf of Mexico, managing all of the on-shore needs of vessels for its many clients in the offshore industry. Tom McMillan has been in the oil and gas industry his entire career, developing many parcels and owning an oil refinery in Southern Alabama. The Board of Director's oversees all of Mr. Moszkowski activities. He reports directly to the board and the board reviews his work on a regular basis. The board establishes policy which Mr. Moszkowski and Mr. Howard must implement to the satisfaction of the board.
- Benton Baugh – Founder and Former CEO of Radoil, Inc. a specialty fabricator of reels and components that are used on offshore vessels and rigs. Mr. Baugh, has over 100 patents including patents for depth compensated actuators. He has helped the company develop its own patent portfolio.

To support the information detailed above, and as further evidence that the beneficiary will be performing specialty occupation work, we are submitting contractual agreements and work orders from each of the companies who will utilize Mr. Moszkowski's services as **Exhibits 2-4**, per the Service's request. This also satisfies your request for a list of engagements with which the beneficiary has been involved. These are detailed below:

- **Exhibit 2:** a copy of the draft Memorandum of Understanding for the C-Gas DGNK Joint Venture between NK and DeepGulf established for the marketing of the Compressed Gas Marine Transportation Systems throughout the world. C-GAS is the Joint Venture formed specifically for the development of integrated gas delivery projects: DeepGulf of Florida, United States, has joined with NK/ENK of the Republic of Korea to form C-GAS, Inc., a company which is intended to become the premier worldwide source for the construction and operation of marine compressed natural gas energy delivery systems. Together DeepGulf and NK/ENK contribute their expertise to C-GAS. DeepGulf designs and builds energy production and transportation systems primarily for use in maritime environments and NK/ENK is the world leading compressed gas containment system manufacturer, building systems and developing new technologies to create more efficient compressed gas systems.
- **Exhibit 3:** Memorandum of Understanding for the DGNK- Fabricators Joint Venture between NK and DeepGulf, for the fabrication of Offshore Marine Packages to be integrated into the Drill Rigs, Oil and Gas platforms, FPSO, and FLNG ships being constructed by DSME, Samsung, Hyundai and other ship builders in Korea. DeepGulf performs overall system design and engineering oversight and NK will market the products and services to their contacts and Samsung, DSME, Hyundai and other shipbuilders.
- **Exhibit 4:** MOU Timor Leste Natural Gas Delivery MM11 Signed X Scanned- (Toke is a wholly owned subsidiary of DeepGulf, Inc.) The Government of Timor Leste has signed a Memorandum of Understanding for the transportation of Natural Gas to its shore from the wellhead in the Timor Sea. The final contract is still under negotiation. Quantities, pricing and duration have been agreed to, and we have tentative agreement on the payment guarantee mechanism.

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Please also see **Exhibit 5** for an organizational chart including specific information such as individuals' names, titles, brief descriptions of job duties and responsibilities, educational attainments, immigration status, and whether they have or will have ownership/interest in the petitioning organization.

Mr. Moszkowski's Job Duties Require a Bachelor's Degree in a Specific Field of Study

Firstly, Mr. Moszkowski is a founder of DeepGulf, Inc., and President of the company. There have been no prior employees who have held the position of President. There is no documentation of other individuals in our establishment who are currently, or were, employed in this position. Please see **Exhibit 6** for the job description that was published internally for this specific position, as evidence to help establish the educational requirements of the proffered position of President. The position, however, is so complex and unique that it can be performed only by an individual with a bachelor's degree in a specific field of study. Furthermore, the knowledge required to perform the job duties is usually associated with the attainment of a baccalaureate or higher degree in a specific field of study.

In the position of President, Mr. Moszkowski is responsible for the management of the company, specifically the field operations for an offshore construction company and he reports directly to the Board of Directors. Below you will find a percentage breakdown of the amount of time Mr. Moszkowski spends on each of the duties:

- 49% Implement the Business Plan by developing the company's proprietary patented technologies (specifically develop and manage the engineering and construction of the largest offshore pipe laying system in the world) and by developing strategic business opportunities enabled by such technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations.
- 12% Negotiate and close contracts for offshore construction and pipe laying projects as well as preliminary supporting projects including bathymetric surveys, port construction, gas shipping and offshore oil and gas field production.
- 35% Personally oversee field operations while ensuring compliance with U.S. and international maritime laws.
- 4% Report to Board of Directors and interact with shareholders as needed

Your RFE correctly points out it is the job duties, not the title, which determine if the job is a specialty occupation. 84% of Mr. Moszkowski's time is spent overseeing, implementing and developing the engineering and construction of a pipeline through a proprietary system devised by the beneficiary. These duties are not possible to do by one without the intellectual abilities that result from the rigors of a course of study equivalent to a Bachelor's Degree in marine technology and operations. It is next to impossible to imagine a more specialized set of job duties than these.

Furthermore, Mr. Moszkowski is responsible for developing strategic business opportunities enabled by the Company's technologies through effective marketing, promotion, personal contact and interaction with high level government official and multinational corporations. These are duties that entail setting the future direction of our Company and are critical to our continued success. These are duties in-line with those of an Executive as defined in the DOL's Occupational Outlook Handbook ("OOH"). The OOH specifies that most Executives, "...have a bachelor's or master's degree in business administration or

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in an area related to their field of work ... Executives are also expected to have experience in the organization's area of specialty" (Please see **Exhibit 7**). We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described (**Exhibit 8**).

In addition, if you return to the last page of **Exhibit 1**, it shows the Beneficiary with the President of East Timor as they both are signing a multi-million dollar contract. Clearly it shows that the executives in our company are constantly meeting with and discussing our proprietary marine operations and technology with high-level politicians and engineers from around the world. It is not possible to have a chief executive of our company who cannot converse in depth about the marine operations and technology that our company provides. We have conducted a search of management positions in the field of natural gas and have confirmed that the minimum education requirements for these positions is baccalaureate or higher degree, or its equivalent, in a specific field of study entry in the particular position, in addition to a number of years of particular experience in the job duties described.

Section 1 Summary

DeepGulf is an energy transportation business that places very large pipelines on the ocean floor. We have presented ample evidence to prove that the position of President is a specialty occupation within our Company. The job duties can only be performed by an individual who possesses a baccalaureate or higher degree in a specific field of study and the majority of the beneficiary's time will be spent on specialty occupation work. The requirements of the position are further corroborated by evidence in the OOH and advertisements for similar executive positions in the natural gas industry.

Section 2: DeepGulf's Right to Control Mr. Moszkowski's Employment

In your RFE, you indicate that the record does not presently establish that DeepGulf has a valid employer-employee relationship. The RFE specifically questions if DeepGulf has the right to hire, fire, pay, supervise, change employee's compensation, or otherwise control the employee because of his position as a Founder and the President of DeepGulf.

We present the following explanations and evidence to establish by a preponderance of evidence that we have a right to control the beneficiary's employment and a valid employer/employee relationship will exist between DeepGulf and the beneficiary throughout the duration of the requested H-1B validity period:

- 1) Job offer letter (**Exhibit 9**) dated 1 August 2005, wherein DeepGulf offers Mr. Marc Moszkowski the position of President of DeepGulf, Inc. and signed by Mr. Howard as the Corporate Secretary and Chairman of the Board and on behalf of the Board of Directors.
- 2) Employment agreement (**Exhibit 10**) between DeepGulf, Inc., and Mr. Marc Moszkowski signed 1 Aug 2005. This agreement defines the Position, the terms and conditions of employment, compensation and benefits, duties, termination, confidentiality, and non-compete.

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- a) Furthermore, DeepGulf retains the Right to hire, fire, pay, supervise, or otherwise control the employee according to the following:
 - i) Marc Moszkowski and Mr. Howard are both founders of DeepGulf, Inc.
 - ii) Marc Moszkowski is the President
 - iii) Marc Moszkowski is the inventor of the technology that is the foundation of the business.
 - iv) Said technology has been contributed to the company in exchange for stock.
 - v) Marc Moszkowski has retained no rights to the technology.
 - vi) All new inventions made by Marc Moszkowski in the field of Oil and Gas and Energy transportation during his tenure as President are the property of DeepGulf.
 - vii) Mr. Howard and Mr. Moszkowski both have substantial beneficial interest in the company through their stock holdings.
- 3) Evidence of the ownership or control of DeepGulf, the petitioning organization:
 - a) Mr. Moszkowski does not control the Board of Directors
 - b) The Board of Directors are elected by the holders of the Class A common shares.
 - c) DG Stock Capital Chart (**Exhibit 11**) shows the stock owned by all DeepGulf Shareholders. No single person holds or controls the vote of the majority of the shares.
 - (1) Marc Moszkowski is the beneficial owner of 47% of the voting shares, however they are held in an irrevocable trust. He does not vote directly, but can provide input to the trustee, who is not required to listen to his input.
 - (2) Rus Howard's beneficial ownership is a close second at 46%.
 - (a) However, almost all of the other shareholders are Mr. Howard's friends, relatives and acquaintances. Marc Moszkowski has little to no influence over them.
 - (3) Mr. Howard's has extensive experience and success in entrepreneurial and high growth companies (i.e. biotech, computer software, payment processing, mobile commerce).
 - (a) He has been a founder and has served as the CEO in several of them and continues to serve on many Boards.
 - (4) Mr. Howard does not want the role as the executive officer in any them, but is happy to take a board position, and support and help with strategic planning, corporate structure, business decisions, corporate governance, and fund raising.
 - (5) Mr. Howard is willing to and has stepped into the Executive Officer position in this or other companies, on a temporary basis if necessary, due to unforeseen circumstances i.e. vacancy due to death, misappropriation of company assets, failure to perform, vote of confidence, etc.
- 4) Supervision and Governance: As President of DeepGulf, Marc Moszkowski is employed at the will of its Board of Directors, which is constituted by Rus Howard, Marc Moszkowski, William Lott, and Thomas McMillan II, who has the right to hire, fire, pay, supervise, change his compensation, or otherwise control the employee (Please see the DG By-laws at **Exhibit 12**). As President, Mr. Moszkowski reports directly to the Board who oversee his work (Please see **Exhibit 13** for Meeting Minutes).
- 5) Performance Reviews: The Board meets on a regular basis and the President gives his report of current activities, projects, financial condition and prospective projects and financial projections. The Board reviews and critiques Mr. Moszkowski. Further the Board sets policy, mandates and objectives (Please refer to **Exhibit 13** for Meeting Minutes). The Board meets

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in executive session without Mr. Moszkowski present to discuss any matters of concern, such as governance, performance, compliance, compensation or ethics etc.

Section 2 Summary

The Company has the right to hire, fire, review, criticize, and change the pay of Mr. Moszkowski despite his role as Founder and as President of the Company. NO single person has the absolute ability to control the company. Further there are no stock plans or agreements or voting agreements or any other agreement that would enable Mr. Moszkowski to regain voting control of the Company's shares or the Board. DeepGulf is a functioning company, doing real work with real revenue providing real services to its customers and clients. Many of those clients are household names. Through it is joint venture it is also providing important energy to third world economies that will enable them to lift themselves out of poverty. DeepGulf also provides profits and a return to all of its shareholders.

Section 3: Maintenance of Initial Employer-Employee Relationship and Intent to Maintain the Relationship in the Future

In the RFE, it was indicated that the petition was filed without sufficient evidence to document that a valid employer-employee relationship was maintained with the beneficiary throughout the H-1B approval period. We present the following explanations and evidence in support of the claim to establish that valid employer employee relationship was maintained with the beneficiary throughout the H-1B approval period:

- 1) Pay stubs dated 6/1/2012, 10/1/2012, 2/1/2013 and 3/1/2013 to provide evidence that the beneficiary received compensation for his performed duties during the period of the previously approved H-1B status (**Exhibit 14**).
- 2) Mr. Moszkowski's 2011 and 2012 W2s (**Exhibit 15**) to provide evidence of the beneficiary's payroll summaries and/or W-2 forms, evidencing wages paid to the beneficiary during the period of previously approved H-1B status.
- 3) Itineraries, lease renewal documents, and photos of the areas the beneficiary utilizes to perform his employment endeavors (**Exhibit 16**). This includes itineraries to provide a complete schedule of services or engagements with the dates and locations of the services, including an actual monthly documentation of the beneficiary's whereabouts and projects for the previous two years of the approved H1-B Visa period, as well as a projected itinerary of where the beneficiary is expected to be for the next 2 years and the projects he will be working on, which covers the requested recaptured extension period of the visa. This also serves to establish that we have had sufficient work premises available to the beneficiary.
- 4) Copies of the beneficiary's 2 or 3 most recently filed federal individual tax returns (**Exhibit 17**) with all required schedules and statements, as appropriate.
- 5) Documentary examples of work product created or produced by the beneficiary for the past H-1B validity period:
 - a. Business plans
 - i. DG PPM Final (**Exhibit 18**) – in includes a business plan. This Private Placement Memorandum (PPM) was composed by Moszkowski (technical

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Page 8

and operations) and Howard (administrative issues) with the help of legal counsel Ward. The PPM is an offering document used for fundraising in a private business. The core of the PPM is the business plan, which is disclosed to potential investors. In addition to the business plan, included are blue sky disclosures from every state wherein the money is raised as well as other requirements to meet SEC (Securities Exchange Commission) regulation D requirements.

- b. Reports
 - i. TOG Projects 2008 to 2011-02 Public (**Exhibit 19**) — a report provided by Mr. Moszkowski to the Board of Directors and is a summary of the projects completed during the time period of 2008-2011. Some of the pictures and data have been obscured for confidentiality reasons. Marc is the sole author of this report.
 - ii. Geoccean — Mr. Moszkowski provided consultation for Geoccean (**Exhibit 20**)
 - 1. Geoccean Invoice, 30 July 2013
 - 2. DG-GO Inspection Invoice 11
 - c. Presentations
 - i. EDTL Energy Supply System (**Exhibit 21**) — a presentation that summarizes the compressed gas energy transportation system to deliver natural gas from the well head in the Timor Sea to the country of Timor to provide an energy source for the electric generation system. This presentation was prepared primarily by Marc Moszkowski with consultation, review and critique from Rus Howard, Rodney Lewis and Vincente Ximenes.
 - d. Designs/Blueprints
 - i. Patent information for the J-Flex (**Exhibit 22**)
 - ii. DG-Hyundai CNG Carrier initial engineering (**Exhibit 23**) — Marc Moszkowski's invention that was reduced to the initial engineering drawings created by the Hyundai Corporation with the oversight of Marc Moszkowski.
 - 1. engineering oversight evidence of work by Marc and Hyundai (**Exhibit 24**) — evidence of the exchange of technical information used for the creation of the engineering drawings
 - iii. CNG Module DG-NK (**Exhibit 25**) Engineering Drawings of the CNG modules to be used in the C-Gas Marine Vessel. These drawings were produced by collaboratively by Marc Moszkowski and the engineers at NK, and incorporate all the design characteristics invented by Marc Moszkowski.
 - e. Photographs of prototypes (**Exhibit 26**) — J-Flex tower prototype, J-Flex prototype
- 6) Due to the position of President reporting directly to the Board of Directors, there are no written performance reviews. Performance reviews for this position are performed during the scope of Board of Director's meeting where the Board gives feedback and suggestions for improvements.
 - 7) Copy of any employment history records
 - a. Job offer letter (**Exhibit 9**) to document date of hire.
 - b. Employment agreement (**Exhibit 10**) to document the terms of the beneficiary's employment in relation to the petitioning entity.
 - 8) Affidavit of Rustin R. Howard (**Exhibit 27**) concerning the past performance and intent of the DeepGulf Board to employ Mr. Marc Moszkowski during the proposed validity period.

Section 3 Summary

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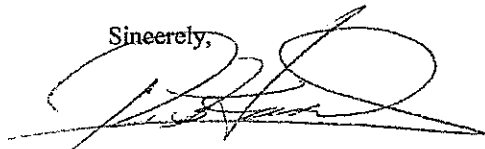
Mr. Moszkowski and DeepGulf have maintained a valid employer-employee relationship since the beneficiary first entered into valid H-1B status under our employ. We have paid and employed him according to the terms defined in our previous petitions on his behalf. We have every intent to continue to employ him according to those terms and by those defined in our most recent petition on his behalf.

Conclusion

We have provided you with sufficient documentation to satisfy your requests. Specifically, we have proven that: (a) the position of President is a specialty occupation. In order to perform the job duties of President, one must possess at minimum a bachelor's degree in a specific field. The duties of the President require this due to their complex nature. The responsibilities of President are also in line with those defined by the "Executive" occupation in the OOH, which specifies that a bachelor's degree is typically required; (b) DeepGulf has the right to control Mr. Moszkowski's employment, despite his position as a Founder and the President of DeepGulf. His employment is subject to review by the Board of Directors who may fire, review, criticize, and change the pay of Mr. Moszkowski at any time; and (c) a valid employer-employee relationship has existed between us and the beneficiary. The relationship was maintained with the beneficiary throughout the approved H-1B approval period, and we intend to maintain the relationship moving forward.

In light of this information, we respectfully request that you approve our H-1B petition on behalf of Mr. Moszkowski. If you have any questions regarding the information presented in this response, please do not hesitate to contact me. Thank you for your continued consideration of this petition.

Sincerely,



Rustin Howard
Chairman

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



Please read and review the filing instructions carefully before completing the ETA Form 9035 or 9035E. A copy of the instructions can be found at <http://www.foreignlaborcert.doleta.gov/>. In accordance with Federal Regulations at 20 CFR 655.730(b), incomplete or obviously inaccurate Labor Condition Applications (LCAs) will not be certified by the Department of Labor. If the employer has received permission from the Administrator of the Office of Foreign Labor Certification to submit this form non-electronically, ALL required fields/items containing an asterisk (*) must be completed as well as any fields/items where a response is conditional as indicated by the section (§) symbol.

A. Employment-Based Nonimmigrant Visa Information

1. Indicate the type of visa classification, supported by this application (Write classification symbol): *	H-1B
---	------

B. Temporary Need Information

1. Job Title * PRESIDENT	
2. SOC (ONET/OES) code * 11-1011.00	3. SOC (ONET/OES) occupation title * CHIEF EXECUTIVES
4. Is this a full-time position? * ☒ Yes ☐ No	Period of Intended Employment
	5. Begin Date * 07/04/2011 (mm/dd/yyyy)
	6. End Date * 07/03/2014 (mm/dd/yyyy)
7. Worker positions needed/basis for the visa classification supported by this application	
1 Total Worker Positions Being Requested for Certification *	
Basis for the visa classification supported by this application (Indicate the total workers in each applicable category based on the total workers identified above)	
0 a. New employment *	0 d. New concurrent employment *
1 b. Continuation of previously approved employment * without change with the same employer	0 e. Change in employer *
0 c. Change in previously approved employment *	0 f. Amended petition *

C. Employer Information

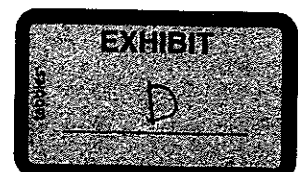
1. Legal business name * DEEPGULF INC.		
2. Trade name/Doing Business As (DBA), if applicable N/A		
3. Address 1 * 17 SOUTH PALAFOX PLACE, SUITE 370		
4. Address 2 N/A		
5. City * PENSACOLA	6. State * FL	7. Postal code * 32502
8. Country * UNITED STATES OF AMERICA		9. Province N/A
10. Telephone number * 8504709388		11. Extension N/A
12. Federal Employer Identification Number (FEIN from IRS) * 202250919		13. NAICS code (must be at least 4-digits) * 213112

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 1 of 5

Case Number: I-20D-11005-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014



OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



D. Employer Point of Contact Information

Important Note: The information contained in this Section must be that of an employee of the employer who is authorized to act on behalf of the employer in labor certification matters. The information in this Section must be different from the agent or attorney information listed in Section E, unless the attorney is an employee of the employer.

1. Contact's last (family) name *	2. First (given) name *	3. Middle name(s) *
TAYLOR	PATRICIA	A.
4. Contact's job title * HR COORDINATOR		
5. Address 1 * 17 SOUTH PALAFOX PLACE		
6. Address 2 SUITE 370		
7. City * PENSACOLA	8. State * FL	9. Postal code * 32502
10. Country * UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number *	13. Extension	14. E-Mail address
8504709388	N/A	TRISH.TAYLOR@WHITESANDSINVESTMENTS.COM

E. Attorney or Agent Information (If applicable)

1. Is the employer represented by an attorney or agent in the filing of this application? *		☒ Yes ☐ No
If "Yes", complete the remainder of Section E below.		
2. Attorney or Agent's last (family) name §	3. First (given) name §	4. Middle name(s) §
GOLDMAN	JEFFREY	WILLIAM
5. Address 1 § ONE FINANCIAL CTR		
6. Address 2 N/A		
7. City § BOSTON	8. State § MA	9. Postal code § 02111
10. Country § UNITED STATES OF AMERICA		11. Province N/A
12. Telephone number §	13. Extension	14. E-Mail address
6173483025	N/A	JGOLDMAN@MINTZ.COM
15. Law firm/Business name § MINTZ LEVIN		16. Law firm/Business FEIN § 042718459
17. State Bar number (only if attorney) § 54-8056		18. State of highest court where attorney is in good standing (only if attorney) § MASSACHUSETTS
19. Name of the highest court where attorney is in good standing (only if attorney) § SUPREME JUDICIAL COURT		

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 2 of 5

Case Number: I-200-11006-405569

Case Status: CERTIFIED

Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



F. Rate of Pay

1. Wage Rate (Required) From: \$ 103397.00 * To: \$ 132000.00	2. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
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G. Employment and Prevailing Wage Information

Important Note: It is important for the employer to define the place of intended employment with as much geographic specificity as possible. The place of employment address listed below must be a physical location and cannot be a P.O. Box. The employer may use this section to identify up to three (3) physical locations and corresponding prevailing wages covering each location where work will be performed and the electronic system will accept up to 3 physical locations and prevailing wage information. If the employer has received approval from the Department of Labor to submit this form non-electronically and the work is expected to be performed in more than one location, an attachment must be submitted in order to complete this section.

a. Place of Employment 1

1. Address 1 * 17 SOUTH PALAFOX PLACE	
2. Address 2 SUITE 370	
3. City * PENSACOLA	4. County * SANTA ROSA
5. State/District/Territory * FLORIDA	6. Postal code * 32502
Prevailing Wage Information (corresponding to the place of employment location listed above)	
7. Agency which issued prevailing wage \$ N/A	7a. Prevailing wage tracking number (if applicable) \$ N/A
8. Wage level * ☐ I ☒ II ☐ III ☐ IV ☐ N/A	
9. Prevailing wage * \$ 103397.00	10. Per: (Choose only one) * ☐ Hour ☐ Week ☐ Bi-Weekly ☐ Month ☒ Year
11. Prevailing wage source (Choose only one) * ☒ OES ☐ CBA ☐ DBA ☐ SCA ☐ Other	
11a. Year source published * 2010	11b. If "OES", and SWAN/PC did not issue prevailing wage OR "Other" in question 11, specify source \$ OFLC ONLINE DATA CENTER

H. Employer Labor Condition Statements

Important Note: In order for your application to be processed, you MUST read Section H of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading "Employer Labor Condition Statements" and agree to all four (4) labor condition statements summarized below:

- (1) **Wages:** Pay nonimmigrants at least the local prevailing wage or the employer's actual wage, whichever is higher, and pay for non-productive time. Offer nonimmigrants benefits on the same basis as offered to U.S. workers.
- (2) **Working Conditions:** Provide working conditions for nonimmigrants which will not adversely affect the working conditions of workers similarly employed.
- (3) **Strike, Lockout, or Work Stoppage:** There is no strike, lockout, or work stoppage in the named occupation at the place of employment.
- (4) **Notice:** Notice to union or to workers has been or will be provided in the named occupation at the place of employment. A copy of this form will be provided to each nonimmigrant worker employed pursuant to the application.

1. I have read and agree to Labor Condition Statements 1, 2, 3, and 4 above and as fully explained in Section H of the Labor Condition Application – General Instructions – Form ETA 9035CP. *	☒ Yes ☐ No
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ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 3 of 5

Case Number: I-200-11006-405569

Case Status: CERTIFIED

Period of Employment: 07/04/2011 to 07/03/2014

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



I. Additional Employer Labor Condition Statements – H-1B Employers ONLY

Important Note: In order for your H-1B application to be processed, you **MUST** read Section I – Subsection 1 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and answer the questions below.

a. Subsection 1

1. Is the employer H-1B dependent? §	☐ Yes ☒ No
2. Is the employer a willful violator? §	☐ Yes ☒ No
3. If “Yes” is marked in questions 1.1 and/or 1.2, you must answer “Yes” or “No” regarding whether the employer will use this application <u>ONLY</u> to support H-1B petitions or extensions of status for exempt H-1B nonimmigrants? §	☐ Yes ☐ No ☒ N/A

If you marked “Yes” to questions 1.1 and/or 1.2 and “No” to question 1.3, you **MUST** read Section I – Subsection 2 of the Labor Condition Application – General Instructions Form ETA 9035CP under the heading “Additional Employer Labor Condition Statements” and indicate your agreement to all three (3) additional statements summarized below.

b. Subsection 2

- A. Displacement: Non-displacement of the U.S. workers in the employer’s workforce
- B. Secondary Displacement: Non-displacement of U.S. workers in another employer’s workforce; and
- C. Recruitment and Hiring: Recruitment of U.S. workers and hiring of U.S. workers applicant(s) who are equally or better qualified than the H-1B nonimmigrant(s).

4. I have read and agree to Additional Employer Labor Condition Statements A, B, and C above and as fully explained in Section I – Subsections 1 and 2 of the Labor Condition Application – General Instructions Form ETA 9035CP. §	☒ Yes ☐ No
---	---

J. Public Disclosure Information

Important Note: You **must** select from the options listed in this Section.

1. Public disclosure information will be kept at: *	☒ Employer’s principal place of business ☐ Place of employment
---	--

K. Declaration of Employer

By signing this form, I, on behalf of the employer, attest that the information and labor condition statements provided are true and accurate; that I have read sections H and I of the Labor Condition Application – General Instructions Form ETA 9035CP, and that I agree to comply with the Labor Condition Statements as set forth in the Labor Condition Application – General Instructions Form ETA 9035CP and with the Department of Labor regulations (20 CFR part 655, Subparts H and I). I agree to make this application, supporting documentation, and other records available to officials of the Department of Labor upon request during any investigation under the Immigration and Nationality Act. Making fraudulent representations on this Form can lead to civil or criminal action under 18 U.S.C. 1001, 18 U.S.C. 1546, or other provisions of law.

1. Last (family) name of hiring or designated official *	2. First (given) name of hiring or designated official *	3. Middle initial *
Howard	Rustin	R.
4. Hiring or designated official title *		
Secretary		
5. Signature *		6. Date signed *
		02/03/2011

OMB Approval: 1205-0310
Expiration Date: 01/31/2012

Labor Condition Application for Nonimmigrant Workers
ETA Form 9035 & 9035E
U.S. Department of Labor



L. LCA Preparer

Important Note: Complete this section if the preparer of this LCA is a person other than the one identified in either Section D (employer point of contact) or E (attorney or agent) of this application.

1. Last (family) name § GOLDMAN	2. First (given) name § JEFFREY	3. Middle initial § W
4. Firm/Business name § MINTZ LEVIN		
5. E-Mail address § JGOLDMAN@MINTZ.COM		

M. U.S. Government Agency Use (ONLY)

By virtue of the signature below, the Department of Labor hereby acknowledges the following:

This certification is valid from 07/04/2011 to 07/03/2014


Department of Labor, Office of Foreign Labor Certification

01/13/2011

Determination Date (date signed)

I-200-11006-405569

CERTIFIED

Case number

Case Status

The Department of Labor is not the guarantor of the accuracy, truthfulness, or adequacy of a certified LCA.

N. Signature Notification and Complaints

The signatures and dates signed on this form will not be filed out when electronically submitting to the Department of Labor for processing, but **MUST** be complete when submitting non-electronically. If the application is submitted electronically, any resulting certification **MUST** be signed *immediately upon receipt* from the Department of Labor before it can be submitted to USCIS for further processing.

Complaints alleging misrepresentation of material facts in the LCA and/or failure to comply with the terms of the LCA may be filed using the WH-4 Form with any office of the Wage and Hour Division, Employment Standards Administration, U.S. Department of Labor. A listing of the Wage and Hour Division offices can be obtained at <http://www.dol.gov/esa>. Complaints alleging failure to offer employment to an equally or better qualified U.S. worker, or an employer's misrepresentation regarding such offer(s) of employment, may be filed with the U.S. Department of Justice, Office of the Special Counsel for Immigration-Related Unfair Employment Practices, 950 Pennsylvania Avenue, NW, Washington, DC, 20530. Please note that complaints should be filed with the Office of Special Counsel at the Department of Justice only if the violation is by an employer who is H-1B dependent or a willful violator as defined in 20 CFR 655.710(b) and 655.734(a)(1)(ii).

O. OMB Paperwork Reduction Act (1205-0310)

These reporting instructions have been approved under the Paperwork Reduction Act of 1995. Persons are not required to respond to this collection of information unless it displays a currently valid OMB control number. Obligations to reply are mandatory (Immigration and Nationality Act, Section 212(n) and (t) and 214(c)). Public reporting burden for this collection of information, which is to assist with program management and to meet Congressional and statutory requirements is estimated to average 1 hour per response, including the time to review instructions, search existing data sources, gather and maintain the data needed, and complete and review the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Labor, Room C-4312, 200 Constitution Ave. NW, Washington, DC 20210. (Paperwork Reduction Project OMB 1205-0310.) Do NOT send the completed application to this address.

ETA Form 9035/9035E

FOR DEPARTMENT OF LABOR USE ONLY

Page 5 of 5

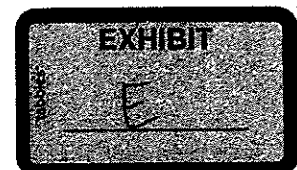
Case Number: I-200-11006-405569 Case Status: CERTIFIED Period of Employment: 07/04/2011 to 07/03/2014

From: Marc Moszkowski <m.moszkowski@tokeoilandgas.com>
Sent: Wednesday, January 26, 2011 8:20 PM
To: 'Rus Howard'
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls
Attachments: Income Statements TOG 2008 to 2010-Final.xls; Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



From: Rus Howard <rus@whitesandinvestments.com>
Sent: Thursday, January 27, 2011 5:42 PM
To: Marc Moszkowski
Subject: RE: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Received the spreadsheets.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@tokeoilandgas.com]
Sent: Wednesday, January 26, 2011 8:20 PM
To: Rus Howard
Subject: Emailing: Income Statements TOG 2008 to 2010-Final.xls, Balance Sheets TOG 2008 to 2010-Final.xls

Your message is ready to be sent with the following file or link attachments:

Income Statements TOG 2008 to 2010-Final.xls Balance Sheets TOG 2008 to 2010-Final.xls

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.

Balance Sheet

TOKE OIL & GAS S.A.
Year 2008
Financial Statements in U.S. Dollars

ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$279.92	Accounts payable	\$0.00
Accounts receivable		Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	\$0.00
Prepaid expenses		Accrued payroll	
Total Current Assets	\$279.92	Total Current Liabilities	\$0.00
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	\$0.00
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)		Shareholders' Equity	
Plant and equipment		Capital stock	\$0.00
(less accumulated depreciation)		Retained earnings	\$279.92
Furniture and fixtures		Total Shareholders' Equity	\$279.92
(less accumulated depreciation)			
Total Net Fixed Assets	\$0.00		
TOTAL ASSETS	\$279.92	TOTAL LIABILITIES & EQUITY	\$279.92

Balance Sheet

TOKE OIL & GAS S.A.
Year 2009
Financial Statements in U.S. Dollars

ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$677.27	Accounts payable	\$0.00
Accounts receivable		Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	\$0.00
Prepaid expenses		Accrued payroll	
Total Current Assets	\$677.27	Total Current Liabilities	\$0.00
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	\$0.00
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)		Shareholders' Equity	
Plant and equipment		Capital stock	\$0.00
(less accumulated depreciation)		Retained earnings	\$677.27
Furniture and fixtures		Total Shareholders' Equity	\$677.27
(less accumulated depreciation)			
Total Net Fixed Assets	\$0.00		
TOTAL ASSETS	\$677.27	TOTAL LIABILITIES & EQUITY	\$677.27

Balance Sheet

TOKE OIL & GAS S.A.
Year 2010
Financial Statements in U.S. Dollars

ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$4,725.00	Accounts payable	\$28,000.00
Accounts receivable	\$52,000.00	Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	\$0.00
Prepaid expenses		Accrued payroll	
Total Current Assets	\$56,725.00	Total Current Liabilities	\$28,000.00
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	\$0.00
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)			
Plant and equipment			
(less accumulated depreciation)			
Furniture and fixtures			
(less accumulated depreciation)			
Total Net Fixed Assets	\$0.00		
		Shareholders' Equity	
		Capital stock	\$0.00
		Retained earnings	\$4,752.55
		Total Shareholders' Equity	\$28,725.00
TOTAL ASSETS	\$56,725.00	TOTAL LIABILITIES & EQUITY	\$56,725.00

Income Statement

TOKE OIL & GAS CO.

Year 2010

Financial Statements in U.S. Dollars

Revenue

Gross Sales
Less: Sales Returns and Allowances
Net Sales

\$ 2,919,364.82	
	\$2,919,364.82

Cost of Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

\$2,068,277.50	
\$2,068,277.50	
	\$2,068,277.50

Subtotal
Less: Miscellaneous
Cost of Goods Sold

Gross Profit (Loss)

\$851,087.32

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

[illegible]**Total Expenses**

\$847,012.04

Net Operating Income

\$4,075.28

Other Income

Gain (Loss) on Sale of Assets
Interest Income
Total Other Income

	\$0.00
--	--------

Net Income (Loss)

\$4,075.28

Income Statement

TOKE OIL & GAS S.A.

Year 2011

Financial Statements in U.S. Dollars

Revenue

Gross Sales	
Less: Sales Returns and Allowances	
Net Sales	

\$ 6,153,867.00	
	\$ 6,153,867.00

Cost of Goods Sold

Add: Purchase of Goods and Services
Direct Labor
Direct Operating Costs
Indirect Expenses

\$4,620,383.31	
\$4,620,383.31	
	\$4,620,383.31

Subtotal
Less: Miscellaneous
Cost of Goods Sold

Gross Profit (Loss)

\$ 1,533,483.69

Expenses

ACCOMMODATION
ACCOUNTING FEES
BANK CHARGES
CASH ADVANCES
COMMUNICATIONS
DIRECTORS SALARIES
EQUIPMENT RENTAL
FUEL
FURNITURE
HARDWARE
MISCELLANEOUS
OFFICE RENTAL
OFFICE SUPPLIES
SHIP STORES
SALARIES
SHIP AGENCY
TRANSPORTATION
TRAVEL
VEHICLE PURCHASE
TAX

[illegible]**Total Expenses**

\$1,525,067.54

Net Operating Income

\$ 8,416.05

Other Income

Gain (Loss) on Sale of Assets
Interest Income
Total Other Income

	\$0.00	
	\$0.00	
		\$0.00

Net Income (Loss)

\$ 8,416.05

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard' (rus.howard@deep-gulf.com)
Cc: Trish Taylor (t.taylor@deep-gulf.com)
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls
Attachments: Income Statements TOG 2011.xls; Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

From: Rus Howard <rus.howard@deep-gulf.com>
Sent: Saturday, May 26, 2012 7:22 AM
To: 'Marc Moszkowski'
Subject: RE: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

OK Will talk to you when you are back in town. No need to discuss till then, enjoy your weekend.

rus

-----Original Message-----

From: Marc Moszkowski [mailto:m.moszkowski@deep-gulf.com]
Sent: Friday, May 25, 2012 10:04 AM
To: 'Rustin Howard'
Cc: Trish Taylor
Subject: Emailing: Income Statements TOG 2011.xls, Balance Sheets TOG 2011.xls

Rus,

Attached are the financial reports for Toke Oil & Gas in 2011. I would like to discuss them with you before they are published.

Best.

Marc

Balance Sheet

TOKE OIL & GAS S.A.
Year 2011
Financial Statements in U.S. Dollars

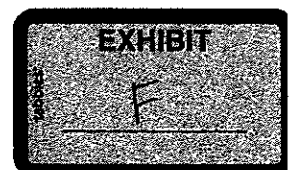
ASSETS		LIABILITIES	
Current Assets		Current Liabilities	
Cash	\$8,785.65	Accounts payable	\$615,002.08
Accounts receivable	\$546,132.83	Short-term notes	
(less doubtful accounts)		Current portion of long-term notes	
Inventory		Interest payable	
Temporary investment		Taxes payable	
Prepaid expenses		Accrued payroll	\$12,753.00
Total Current Assets	\$554,918.48	Total Current Liabilities	\$627,755.08
Fixed Assets		Long-term Liabilities	
Long-term investments		Mortgage	
Land		Other long-term liabilities	
Buildings		Total Long-Term Liabilities	\$0.00
(less accumulated depreciation)			
Plant and equipment	\$110,725.28		
(less accumulated depreciation)	\$25,000.00		
Furniture and fixtures			
(less accumulated depreciation)			
Total Net Fixed Assets	\$85,725.28		
		Shareholders' Equity	
		Capital stock	
		Retained earnings	\$12,888.68
		Total Shareholders' Equity	\$12,888.68
TOTAL ASSETS	\$640,643.76	TOTAL LIABILITIES & EQUITY	\$640,643.76

From: Marc Moszkowski <m.moszkowski@deep-gulf.com>
Sent: Thursday, March 06, 2014 4:58 PM
To: 'Rustin Howard'; Jen Cabbage
Subject: Emailing: releve_00050136739_20110221.pdf, releve_00050136739_20110621.pdf, releve_00050136739_20111122.pdf, releve_00050136739_20120721.pdf, Copy of Recapitulatif crédits exceptionnels.xlsx, releve_00050136739_20100721.pdf
Attachments: Copy of Recapitulatif crédits exceptionnels.xlsx; SG-12 Jan 10.pdf; SG-24 Jun 10.pdf; SG-08 Feb 11.pdf; SG-27 May 11.pdf; SG-21 Nov 11.pdf

Your message is ready to be sent with the following file or link attachments:

releve_00050136739_20110221.pdf
releve_00050136739_20110621.pdf
releve_00050136739_20111122.pdf
releve_00050136739_20120721.pdf
Copy of Recapitulatif crédits exceptionnels.xlsx releve_00050136739_20100721.pdf

Note: To protect against computer viruses, e-mail programs may prevent sending or receiving certain types of file attachments. Check your e-mail security settings to determine how attachments are handled.



2011	21/11/2011	21/11/2011	VIR RECU 321R48905 DE: VICENTE XIMENES VILA VERDE MOTIF: SALARY MONTANT RECU: 56975.00 USD TAUX CHANGE: EUR/USD 1.35570 ORIGINE: 00000.00 USD			44 239.14		21-Nov-11	\$60,000
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2011	27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74875.00 USD TAUX CHANGE: EUR/USD 1.41540 ORIGINE: 75000.00 USD			52 970.89		27-May-11	\$75,000
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2011	08/02		VIR RECU 035R55931 DE: TOKE OIL AND GAS SA HOTEL DILI SUITE 1 66 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000.00 USD TAUX CHANGE: EUR/USD 1.37200			36 443.15	+239 051.39	08/02/11	08-Feb-11	\$50,000
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2010	24/06		VIR RECU 173R45601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965.00 USD TAUX CHANGE: EUR/USD 1.23830			48 425.26	+317 648.88	24/06/10	24-Jun-10	\$60,000
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2010	12/01		VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965.00 USD TAUX CHANGE: EUR/USD 1.44150			69 347.90	+454 892.40	12/01/10	12-Jan-10	\$100,000
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SOCIETE GENERALE
RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE

Tél. :

REFERENCES BANCAIRES

Banque Agence Numéro de compte Clé

IDENTIFICATION INTERNATIONALE

IBAN :

BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE
en euros

du 23 12 2009 au 21 01 2010

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

envoi n° 1 page 1/2

Toute l'équipe de votre Agence se joint à moi afin de vous présenter
*** nos MEILLEURS VOEUX pour l'année 2010. ***
Votre Conseiller.

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		180,83	+1.186,17	
	*** SOLDE AU 31/12/2009 +180,83 ***				
12/01	VIR RECU 008R42486 DE: 1011179780001 TOKE OIL AND GAS DILI EAST TIMOR MONTANT RECU: 99965,00 USD TAUX CHANGE: EUR/USD 1,44150		69 347,90	+454 892,40	12/01/10
12/01	VIREMENT VIRT FAV.50138438 REG DECOUVERT	5 000,00		-32 797,85	12/01/10
12/01	> FRAIS SUR VIR INTL RECU 008R42486 REF 0082091 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 34,67	51,17*		-335,65	12/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: ARTHUR MOSZKOWSKI REF: 0139531500006 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.ARTHUR MOSZKOWSKI LIB: ORDRE FAX	4 000,00		-26 238,28	15/01/10
15/01	000001 VIR EUROPEEN EMIS AGENCE POUR: BERGEREAU JACQUELINE REF: 0139531500004 MOTIF: VIRT RECU MARC MOSZKOWSKI LIB: VIRT FAV.JACQUELINE BERGEREAU LIB: ORDRE FAX	6 000,00		-39 357,42	15/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 6 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
16/01	> FRAIS SUR VIR EUROPEEN EMIS DE 4 000,00 E DU 15/01/2010	3,20*		-20,99	16/01/10
18/01	VIREMENT VIRT FAV.50138438 ORDRE FAX	38 052,00		-249 604,76	18/01/10
20/01	> COTISATION JAZZ	7,80*		-51,16	20/01/10
	TOTAUX DES MOUVEMENTS	53.117,37	69.347,90		

AGENCE :
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

du 23 12 2009 au 21 01 2010

envoi n° 1 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		16.411,36	+107.651,46	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et

Code Client : M. MARC MOSZKOWSKI

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,95%

(Taux effectif global 19,66% équivalent au Taux journalier de 0,0492%),
à compter du 01/01/2010.

Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigiane LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 31/12/2009

36303 solde précédent	+	588 points acquis	-	0 points utilisés	-	12584 points annulés	=	24307 * nouveau solde
--------------------------	---	----------------------	---	----------------------	---	-------------------------	---	--------------------------

*dont 7741 points à utiliser avant le 31/12/2010.

Avec JAZZ, votre fidélité est récompensée !

Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous
sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933

tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77

appel non surtaxé

SOCIETE GENERALE

RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
[REDACTED]

Tél. : [REDACTED]

REFERENCES BANCAIRES

Banque	Agence	Numéro de compte	Clé
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

IDENTIFICATION INTERNATIONALE
IBAN : [REDACTED]
BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE

en euros

n° [REDACTED]

du 23 06 2010 au 21 07 2010

BDB

envoi n° 7 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT	-463,79		-3.042,26	
24/06	VIR RECU 173R48601 DE: 1011179780001 TOKE OIL AND GAS SA MOTIF: DIRECTOR FEE MONTANT RECU: 59965,00 USD TAUX CHANGE: EUR/USD 1,23830		48 425,26	+317 648,88	24/06/10
24/06	> FRAIS SUR VIR INTL RECU 173R48601 REF 1733420 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 24,21 *** SOLDE AU 30/06/2010 +47 920,76 ***	40,71 *		-267,04	24/06/10
02/07	VIREMENT 50138438	40 000,00		-262 382,80	02/07/10
02/07	CARTE X7272 27/05 VINCIPARK NICE	4,80		-31,49	02/07/10
02/07	CARTE X7272 27/05 ORANGE WIFI COMMERCE ELECTRONIQUE	9,90		-64,94	02/07/10
02/07	CARTE X7272 27/05 MAC DONALD GASSIN	10,50		-68,88	02/07/10
02/07	CARTE X7272 27/05 LE SAFARI	54,50		-357,50	02/07/10
02/07	CARTE X7272 28/05 ANCA BORNE PARC	4,00		-26,24	02/07/10
02/07	CARTE X7272 28/05 IVAC	11,25		-73,80	02/07/10
02/07	CARTE X7272 28/05 ESCOT 2705-3005	21,50		-141,03	02/07/10
02/07	CARTE X7272 28/05 TOTAL PUGET THENIER	79,79		-523,39	02/07/10
02/07	CARTE X7272 29/05 A.R.E.A.	20,60		-135,13	02/07/10
02/07	CARTE X7272 03/06 SUPER U	7,99		-52,41	02/07/10
02/07	CARTE X7272 04/06 OSCARO.COM COMMERCE ELECTRONIQUE	15,86		-104,03	02/07/10
02/07	CARTE X7272 04/06 BOUYG TEL COMMERCE ELECTRONIQUE	108,99		-714,93	02/07/10
02/07	CARTE X7272 07/06 REL.ELF DU DORON	65,86		-432,01	02/07/10
02/07	CARTE X7272 14/06 ESCOT 1406-1606	4,90		-32,14	02/07/10
02/07	CARTE X7272 14/06 A.R.E.A.	10,80		-70,84	02/07/10
02/07	CARTE X7272 14/06 MC DONALD'S	11,65		-76,42	02/07/10
02/07	CARTE X7272 16/06 LECLERC	64,32		-421,91	02/07/10
02/07	CARTE X7272 17/06 GEANT CG835	52,10		-341,75	02/07/10
02/07	CARTE X7272 18/06 PASCAL COSTE	20,50		-134,47	02/07/10
02/07	CARTE X7272 21/06 ESCOT 2106-2306	7,20		-47,23	02/07/10
02/07	CARTE X7272 21/06 R.BREGUIERES SUD	58,10		-381,11	02/07/10
17/07	> COTISATION JAZZ	8,00 *		-52,48	17/07/10
	TOTAUX DES MOUVEMENTS	40.693,82	48.425,26		

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

n°

du 23 06 2010 au 21 07 2010

BDB

envoi n° 7 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		7.267,65	+47.672,66	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et

Code Client : M. MARC MOSZKOWSKI

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

En cas d'utilisation de votre découvert autorisé, le taux qui vous sera appliqué pour le calcul des intérêts s'établit à 17,60%

(Taux effectif global 19,24% équivalent au Taux journalier de 0,0482%),
à compter du 01/07/2010.

Pour tout besoin de trésorerie, consultez votre conseiller de clientèle.

Filigrane

LE FIL ROUGE DE VOTRE FIDÉLITÉ

N° d'adhérent JAZZ : 04608277

Votre situation au : 30/06/2010

29376 solde précédent	+	455 points acquis	-	0 points utilisés	-	0 points annulés	=	29831 * nouveau solde
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*dont 7741 points à utiliser avant le 31/12/2010.

Depuis le 1er juin 2010, Nouveau barème de points Filigrane !

Retrouvez-le et commandez vos cadeaux sur www.particuliers.societegenerale.fr, E

Service Clientèle Filigrane : 09 69 36 7000 appel non surtaxé

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933

tarif au 01/01/06 : 0,34 € TTC/min

Perte ou vol de carte : 09 69 39 77 77

appel non surtaxé

SOCIETE GENERALE

RELEVÉ D'IDENTITÉ BANCAIRE

TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI

DOMICILIATION AGENCE SOCIETE GENERALE
[REDACTED]
Tél. : [REDACTED]

REFERENCES BANCAIRES

Banque	Agence	Numéro de compte	Clé
[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED]

IDENTIFICATION INTERNATIONALE
IBAN : [REDACTED]
BIC-ADRESSE SWIFT : SOGEFRPP

A remettre à tout organisme demandant vos références bancaires



RELEVÉ DE COMPTE
en euros

n° [REDACTED]

du 22 01 2011 au 21 02 2011

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

BDB

envoi n° 2 page 1/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	SOLDE PRECEDENT		432,61	+2.837,74	
25/01	CARTE X5147 RETRAIT DAB 22/01 20H54 CA DES SAVOIE 04842124	40,00		-262,38	25/01/11
26/01	CARTE X5147 RETRAIT DAB 25/01 14H20 CA DES SAVOIE 04842124	40,00		-262,38	26/01/11
	*** SOLDE AU 31/01/2011	+352,61 ***			
01/02	CARTE X5147 31/12 DISSERKOI	69,00		-452,61	01/02/11
01/02	CARTE X5147 02/01 GGE DU GD PONT	0,19		-1,25	01/02/11
01/02	CARTE X5147 02/01 LAGODA	42,06		-275,90	01/02/11
01/02	CARTE X5147 03/01 GGE DU GD PONT	25,02		-164,12	01/02/11
01/02	CARTE X5147 12/01 LA POYA	81,60		-535,26	01/02/11
01/02	CARTE X5147 16/01 SULPICE TELE COMMERCE ELECTRONIQUE	10,80		-70,84	01/02/11
01/02	CARTE X5147 19/01 LAGODA	25,87		-169,70	01/02/11
01/02	CARTE X5147 21/01 EUROSPORT COMMERCE ELECTRONIQUE	4,90		-32,14	01/02/11
01/02	CARTE X5147 22/01 LE CANADA	29,25		-191,87	01/02/11
01/02	CARTE X5147 23/01 CHAL BOUQUETIN	68,30		-448,02	01/02/11
08/02	VIR RECU 035R55931 DE: TOKE OIL AND GAD SA HOTEL DILI SUITE 1 56 RUA DOS MOTIF: PAYMENT OF SERVICES MONTANT RECU: 50000,00 USD TAUX CHANGE: EUR/USD 1,37200		36 443,15	+239 051,39	08/02/11
08/02	➤ FRAIS SUR VIR INTL RECU 035R55931 REF 0358003 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 18,22	34,72 *		-227,75	08/02/11
14/02	VIR RECU 041R49088 DE: MARC MICHEL MOSZKOWSKI 10440 DEERWOOD RD 337 MONTANT RECU: 5400,00 USD TAUX CHANGE: EUR/USD 1,37370		3 930,99	+25 785,60	14/02/11
14/02	VIREMENT VIRT FAV.01395/00050138438 ORDRE FAX	39 000,00		-255 823,23	14/02/11
14/02	➤ FRAIS SUR VIR INTL RECU 041R49088 REF 0415353 1 VIREMENT(S) POUR: 16,50 1 COMMISSION DE CHANGE POUR: 14,00	30,50 *		-200,07	14/02/11
	TOTAUX DES MOUVEMENTS	39.502,21	40.374,14		

AGENCE : NICE MUSICIENS
TITULAIRE DU COMPTE
M. MARC MOSZKOWSKI



RELEVÉ DE COMPTE
en euros

n° [REDACTED]

du 22 01 2011 au 21 02 2011

BDB

envoi n° 2 page 2/2

Date	Nature de l'opération	Débit	Crédit	Contre-valeur en francs(1)	Valeur
	NOUVEAU SOLDE		1.304,54	+8.557,22	

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.

(1) Les contre-valeurs en francs ont été calculées sur la base de 1 euro = 6,55957 francs. Les montants d'opérations exprimés en francs n'ont qu'une valeur indicative. Le solde en francs est la contre-valeur du solde en euros après application des règles de conversion et d'arrondis.

Votre code client figurant ci-dessous, complété par votre code secret personnalisable, vous permet d'utiliser l'ensemble des services de Banque à Distance : Internet, Internet Mobile et [REDACTED]

Code Client : M. MARC MOSZKOWSKI [REDACTED]

Si vous ne connaissez pas votre code secret Banque à Distance, contactez votre Conseiller en Agence ou appelez le [REDACTED] touche #.

* Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2009 : 0,34€ TTC/min depuis une ligne fixe France Télécom, en France métropolitaine. Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.

Internet : @www.societegenerale.fr



Votre banque par téléphone : 3933
tarif au 01/01/06 : 0,34 € TTC/mn

Perte ou vol de carte : 09 69 39 77 77
appel non surtaxé

SOCIÉTÉ GÉNÉRALE S.A. AU CAPITAL DE 933 027 038,75 EUR. SIÈGE SOCIAL, 29 BD HAUSSMANN, 75009 PARIS, 552 120 222 R.C.S. PARIS

RA4-39G



RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

VOS CONTACTS

n° [REDACTED]
du 21/05/2011 au 21/06/2011
envoi n°6 Page 1/2

Votre Banque à Distance, 24 h/24

Code client
M. MARC MOSZKOWSKI [REDACTED]
Internet : [REDACTED]
Internet mobile : [REDACTED]
Téléphone : [REDACTED]

Votre agence NICE MUSICIENS

Par messagerie dans votre Espace Client

M. MARC MOSZKOWSKI
LE VERDOS
83300 CHATEAUDOUBLE

Téléphone : [REDACTED]
Fax : [REDACTED]

Votre Conseiller en agence

Téléphone : [REDACTED]

BDB

RELEVÉ DES OPÉRATIONS

Contre-valeur indicative 1 euro = 6.55957 francs

Date	Valeur	Nature de l'opération	Débit	Crédit
SOLDE PRÉCÉDENT AU 20/05/2011			219,72	
23/05/2011	23/05/2011	CARTE X5147 RETRAIT DAB 21/05 11H25 HSBC FRANCE DRAGUIGNAN 771641	20,00	
27/05/2011	27/05/2011	VIR RECU 145R54813 DE: VICENTE XIMENES VILA VERDE MOTIF: PAY TO MARC ACCOUNT MONTANT RECU: 74975,00 USD TAUX CHANGE: EUR/USD 1,41540 ORIGINE: 75000,00 USD		52.970,89
27/05/2011	27/05/2011	> FRAIS SUR VIR INTL RECU 145R54813 REF 1454002 1 COMMISSION DE CHANGE POUR: 26,49 *** SOLDE AU 31/05/2011 + 52.704,68 ***	26,49*	
01/06/2011	01/06/2011	CARTE X5147 03/05 ESCOT 0205-0405	5,00	
01/06/2011	01/06/2011	CARTE X5147 03/05 A.R.E.A.	11,10	
01/06/2011	01/06/2011	CARTE X5147 03/05 REL.ELF DU DORON	77,70	
01/06/2011	01/06/2011	CARTE X5147 04/05 MC DONALD'S/TRANS	7,80	
01/06/2011	01/06/2011	CARTE X5147 06/05 SPF DL	62,37	
01/06/2011	01/06/2011	CARTE X5147 06/05 CARREFOUR DRAGUI	106,63	
01/06/2011	01/06/2011	CARTE X5147 13/05 CARREFOUR MARKET	35,87	
01/06/2011	01/06/2011	CARTE X5147 16/05 INTERMARCHÉ	63,17	
01/06/2011	01/06/2011	CARTE X5147 19/05 LECLERC STATION	79,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 ESCOT 1905-2205	4,60	
01/06/2011	01/06/2011	CARTE X5147 20/05 MAISON DE LA BOU	19,96	
01/06/2011	01/06/2011	CARTE X5147 20/05 CARREFOUR TRANS	73,03	
01/06/2011	01/06/2011	CARTE X5147 21/05 SPF DL	45,36	
01/06/2011	01/06/2011	CARTE X5147 29/04 Agip Suisse SA 220 30,89 EUR SUISSE	30,89	

1 Depuis l'étranger : (+33) 1 76 77 3933 - Tarif au 01/01/2011 : 0,34 eur TTC/min depuis une ligne fixe France Télécom, en France métropolitaine.
Depuis un autre opérateur en France ou à l'étranger, tarification selon l'opérateur.



RELEVÉ DE COMPTE
COMPTE DE PARTICULIER - en euros

n° [REDACTED]
du 21/05/2011 au 21/06/2011
envoi n°6 Page 2/2

Date	Valeur	Nature de l'opération	Débit	Crédit
01/06/2011	01/06/2011	CARTE X5147 30/04 Restaurant Le Sonalon 70,80 CHF SUISSE 1 EUR=1,2861 CHF	55,05	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 55,05 EUR A 2,70%	2,49*	
04/06/2011	04/06/2011	> FRAIS PAIEMENT HORS ZONE EURO 1 PAIEMENT A 1,00 EUR NT 30,89 EUR A 2,70%	1,83*	
06/06/2011	06/06/2011	VIREMENT	45.000,00	
18/06/2011	18/06/2011	> COTISATION JAZZ	7,50*	
18/06/2011	18/06/2011	> OPTION TRANQUILLITE	0,50*	
TOTAUX DES MOUVEMENTS			45.736,94	52.970,89

NOUVEAU SOLDE AU 21/06/2011 + 7.014,23

Soit pour information, solde en francs de + 46.010,33 F

Les écritures précédées du signe > désignent les frais sur vos opérations bancaires courantes relatives à la convention de compte de dépôt, ou leur remboursement.



N° d'adhérent JAZZ : 04608277

Votre situation au : 31/05/2011

24964 solde précédent	+	319 points acquis	-	0 points utilisés	-	0 points annulés	=	25283* nouveau solde
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* dont 8839 points à utiliser avant le 31/12/2011

Avec JAZZ, votre fidélité est récompensée !
Pour en savoir plus sur vos points ou les transformer en cadeaux, connectez-vous
sur www.particuliers.societegenerale.fr ou contactez le 09 69 36 7000

Department of Homeland Security
U.S. Citizenship and Immigration Services

OMB No. 1615-0009; Expires 10/31/2013

**I-129, Petition for a
Nonimmigrant Worker**

START HERE - Type or print in black ink.

Part 1. Petitioner Information

(If the employer is an individual, complete Number 1; Organizations complete Number 2.) Use the mailing address of the petitioner.

1. Legal Name of Employer:

a. Last Name (Family Name)

b. First Name (Given Name)

c. Full Middle Name

2. Company or Organization:

Name of Company or Organization

DeepGulf, Inc.

3. Mailing Address:

a. C/O: (In Care Of, if any)

Mr. Rus Howard - Chairman

b. Street Number and Name

17 South Palafox Place

c. Suite/Apt. Number

370

d. City

Pensacola

e. State/Province

FL

f. Country

USA

g. Zip/Postal Code

32502

h. Telephone Number (include area code) (Do not leave spaces or type any special characters)

(850) 470-9388

i. E-Mail Address

rus.howard@deep-gulf.com

j. Federal Employer Identification Number

20-2250919

k. Individual Tax Number

N/A

l. Social Security Number

N/A

Receipt

Class: _____

of Workers: _____

Job Code: _____

Validity Dates: _____

From: _____

To: _____

☐ **Classification Approved**

☐ Consulate/POE/PFI Notified At _____

☐ Extension Granted

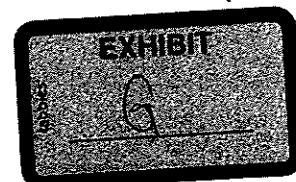
☐ COS/Extension Granted

Partial Approval (explain)

Action Block



Form I-129 (Rev. 11/23/10)N



Part 2. Information About This Petition *(See instructions for fee information.)*

1. Requested Nonimmigrant Classification *(Write classification symbol):*

2. Basis for Classification *(Check one):*

- ☐ a. New employment.
- ☒ b. Continuation of previously approved employment without change with the same employer.
- ☐ c. Change in previously approved employment.
- ☐ d. New concurrent employment.
- ☐ e. Change of employer.
- ☐ f. Amended petition.

3. Provide the most recent petition/application receipt number for the beneficiary. If none exists, indicate "N/A."

4. Requested Action *(Check one):*

- ☐ a. Notify the office in Part 4 so each beneficiary can obtain a visa or be admitted. *(NOTE: A petition is not required for an E-1, E-2, H-1B1 Chile/Singapore, or TN visa.)*
- ☐ b. Change each beneficiary's status and extend their stay since he, she, or they are all now in the U.S. in another status *(see instructions for limitations)*. This is available only where you check "New Employment" in Item 2, above.
- ☒ c. Extend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ d. Amend the stay of each beneficiary since he, she, or they now hold this status.
- ☐ e. Extend the status of a nonimmigrant classification based on a Free Trade Agreement. *(See Free Trade Supplement for TN and H1B1 to Form I-129.)*
- ☐ f. Change status to a nonimmigrant classification based on a Free Trade Agreement. *(See Free Trade Supplement for TN and H1B1 to Form I-129.)*

5. Total number of workers in petition *(See instructions relating to when more than one worker can be included.):*



Part 3. Beneficiary Information: Information about the beneficiary/beneficiaries you are filing for. Complete the blocks below. Use the continuation sheet to name each beneficiary included in this petition.

1. If an Entertainment Group, Give the Group Name

N/A

a. Family Name (Last Name)

Moszkowski

b. Given Name (First Name)

Marc

c. Full Middle Name

Michel

d. All Other Names Used (include aliases, maiden name and names from all previous marriages)

None

e. Date of Birth (mm/dd/yyyy)

06/25/1954

f. Gender

☒ Male

☐ Female

g. U.S. Social Security Number (if any)

629-72-7315

h. A-Number (if any)

A- N/A

i. Country of Birth

The Netherlands

j. Province of Birth

Drenthe

k. Country of Citizenship

France

2. If in the United States, complete the following:

a. Date of Last Arrival
(mm/dd/yyyy)

05/02/2011

b. I-94 Number (Arrival/Departure Document)

507611812 25

c. Current Nonimmigrant Status

H-1B

d. Date Status Expires
(mm/dd/yyyy) or D/S

08/11/2011

e. Student & Exchange Visitor Information
System (SEVIS) Number (if any)

N/A

f. Employment Authorization Document (EAD)
Number (if any)

N/A

g. Passport Number

08CT98641

h. Date Passport Issued
(mm/dd/yyyy)

10/14/2008

i. Date Passport Expires
(mm/dd/yyyy)

03/06/2015

j. Current U.S. Address (if applicable)

427 E. Zaragoza St., Pensacola, FL 32502

Part 4. Processing Information

1. If the beneficiary or beneficiaries named in Part 3 is/are outside the United States or a requested extension of stay or change of status cannot be granted, state the U.S. consulate or inspection facility you want notified if this petition is approved.

a. Type of Office (Check one): ☒ Consulate ☐ Pre-flight inspection ☐ Port of Entry

b. Office Address (City)

Paris

c. U.S. State or Foreign Country

France

d. Beneficiary's Foreign Address

Le Verdos, Chateaudouble, 83300, France



Part 4. Processing Information (Continued)

2. Does each person in this petition have a valid passport?
☐ Not required to have passport ☐ No - Go to Page 7, Part 9 and write your explanation ☒ Yes
3. Are you filing any other petitions with this one? ☒ No ☐ Yes - How many?
4. Are applications for replacement/initial I-94s being filed with this petition? ☒ No ☐ Yes - How many?
5. Are applications by dependents being filed with this petition? ☒ No ☐ Yes - How many?
6. Is any beneficiary in this petition in removal proceedings? ☒ No ☐ Yes - explain on Page 7, Part 9
7. Have you ever filed an immigrant petition for any beneficiary in this petition? ☒ No ☐ Yes - explain on Page 7, Part 9
8. If you indicated you were filing a new petition in Part 2 within the past 7 years, has any beneficiary in this petition:
a. Ever been given the classification you are now requesting? N/A ☐ No ☐ Yes - explain on Page 7, Part 9
b. Ever been denied the classification you are now requesting? N/A ☐ No ☐ Yes - explain on Page 7, Part 9
9. Have you ever previously filed a petition for this beneficiary? ☐ No ☒ Yes - explain on Page 7, Part 9
10. If you are filing for an entertainment group, has any beneficiary in this petition not been with the group for at least 1 year? N/A ☐ No ☐ Yes - explain on Page 7, Part 9
- 11a. Has any beneficiary in this petition ever been a J-1 exchange visitor or J-2 dependent of a J-1 exchange visitor? N/A ☐ No ☐ Yes
- 11b. If yes to 11a, provide the dates the beneficiary maintained status as a J-1 exchange visitor or J-2 dependent. Also, provide evidence of this status by attaching a copy of either a DS-2019, Certificate of Eligibility for Exchange Visitor status, a Form IAP-66, or a copy of the passport that includes the J visa stamp.

Part 5. Basic Information About the Proposed Employment and Employer (Attach the supplement relating to the classification you are requesting.)

1. Job Title 2. LCA or ETA Case Number
3. Address where the beneficiary(es) will work if different from address in Part 1. (Street number and name, city/town, state, zip code)
4. Is an itinerary included with the petition? ☒ No ☐ Yes 5. Will the beneficiary work off-site? ☒ No ☐ Yes



Part 5. Basic Information About the Proposed Employment and Employer (Attach the supplement relating to the classification you are requesting.) (Continued)

6. Will the beneficiary(ies) work exclusively in the CNMI? ☒ No ☐ Yes

7. Is this a full-time position?

☐ No

☒ Yes

If "No," Hours per week:

8. Wages per week or per year:

\$132,000.00 / per year

9. Other Compensation (Explain)

None

10. Dates of intended employment (mm/dd/yyyy):

From: 08/01/2011

To: 07/03/2014

11. Type of Business

Offshore pipelaying company

12. Year Established

2005

13. Current Number of Employees in the U.S.

6

14. Gross Annual Income

See attached.

15. Net Annual Income

See attached.

Part 6. Certification Regarding the Release of Controlled Technology or Technical Data to Foreign Persons in the United States

(For H-1B, H-1B1 Chile/Singapore, L-1, and O-1A petitions only. This section of the form is not required for all other classifications. See Page 3 of the Instructions before completing this section.)

Check Box 1 or Box 2 as appropriate:

With respect to the technology or technical data the petitioner will release or otherwise provide access to the beneficiary, the petitioner certifies that it has reviewed the Export Administration Regulations (EAR) and the International Traffic in Arms Regulations (ITAR) and has determined that:

- ☒ 1. A license is not required from either U.S. Department of Commerce or the U.S. Department of State to release such technology or technical data to the foreign person; or
- ☐ 2. A license is required from the U.S. Department of Commerce and/or the U.S. Department of State to release such technology or technical data to the beneficiary and the petitioner will prevent access to the controlled technology or technical data by the beneficiary until and unless the petitioner has received the required license or other authorization to release it to the beneficiary.

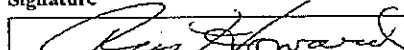


Part 7. Signature *Read the information on penalties in the instructions before completing this section.*

I certify, under penalty of perjury that this petition and the evidence submitted with it are true and correct to the best of my knowledge. I authorize the release of any information from my records, or from the petitioning organization's records that U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought. I recognize the authority of USCIS to conduct audits of this petition using publicly available open source information. I also recognize that supporting evidence submitted may be verified by USCIS through any means determined appropriate by USCIS, including but not limited to, on-site compliance reviews.

If filing this petition on behalf of an organization, I certify that I am authorized to do so by the organization.

Signature

 Chairman

Daytime Phone Number (Area/Country Code)

(850) 470-9388

Print Name

Rus Howard

Date (mm/dd/yyyy)

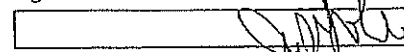
02/03/2011

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 8. Signature of Person Preparing Form, If Other Than Above

I declare that I prepared this petition at the request of the above person and I certify that it is true and correct to the best of my knowledge.

Signature



Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey W. Goldman

Date (mm/dd/yyyy)

2-8-11

Firm Name and Address

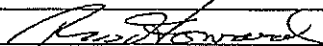
Mintz Levin Cohn Ferris Glovsky & Popeo PC
One Financial Center, 45th Floor Boston, MA 02111



Part 9. Explanation Page

Part 4. Processing Information (Continued). 9. Yes. The Petitioner filed an H-1B on behalf of the Beneficiary on May 13, 2008 under EAC-08-157-53678, which was approved on June 16, 2008 and valid for H-1B status from 08/02/2008 to 08/01/2011. Prior to this, the Petitioner filed an initial H-1B on behalf of the Beneficiary on August 22, 2005 under SRC-05-232-52893, which was approved on September 8, 2005 and valid for H-1B status from 09/08/2005 to 08/01/2008.

Signature

 Chairman

Date (mm/dd/yyyy)

02/03/2011

Print Name

Rus Howard



OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services

H Classification
Supplement to Form I-129

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary or if this petition includes multiple beneficiaries, the total number of beneficiaries

Marc Michel Moszkowski

3. List each beneficiary's prior periods of stay in H or L classification in the United States for the last 6 years (beneficiaries requesting H-2A or H-2B classification need only list the last 3 years). Be sure to only list those periods in which each beneficiary was actually in the United States in an H or L classification. Do not include periods in which the beneficiary was in a dependent status, for example, H-4 or L-2 status.

NOTE: Submit photocopies of Forms I-94, I-797, and/or other USCIS issued documents noting these periods of stay in the H or L classification. If more space is needed, attach an additional sheet.

Subject's Name	Period of Stay (mm/dd/yyyy)	
	From	To
Marc Moszkowski	2005	Present except
		dates in
		attached chart

4. Classification sought (Check one):

☒ a. H-1B Specialty Occupation

☐ e. H-2A Agricultural worker

☐ b. H-1B2 Exceptional services relating to a cooperative research and development project administered by the U.S. Department of Defense (DOD)

☐ f. H-2B Non-agricultural worker

☐ c. H-1B3 Fashion model of national or international acclaim

☐ g. H-3 Trainee

☐ d. H-1C Registered Nurse

☐ h. H-3 Special education exchange visitor program

5. Are you filing this petition on behalf of an alien subject to the Guam-CNMI cap exemption under Public Law 110-229?

☒ No ☐ Yes

Section 1. Complete This Section If Filing for H-1B Classification

1. Describe the proposed duties

As President, the Beneficiary will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting the marine pipelaying industry and computer programming. See Petitioner's Support Letter attached.

2. Beneficiary's present occupation and summary of prior work experience

The Beneficiary is currently investigating business opportunities for DeepGulf, Inc. he began his career in 1982 in the offshore oil and gas construction industry as marine operation manager with ETPM (now Stoll Offshore). He later served as a field engineer and project manager. In 1981, he earned a Bachelor's degree from the National Marine Academy in France. See Petitioner's Support Letter attached.



Section 1. Complete This Section If Filing for H-1B Classification (Continued)

Statement for H-1B specialty occupations only:

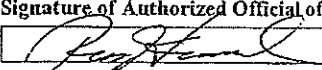
By filing this petition, I agree to, and will abide by, the terms of the labor condition application (LCA) for the duration of the beneficiary's authorized period of stay for H-1B employment. I certify that I will maintain a valid employer-employee relationship with the beneficiary at all times. If the beneficiary is assigned to a position in a new location I will obtain and post an LCA for that site prior to reassignment.

I further understand that I cannot charge the beneficiary the ACWIA fee, and that any other required reimbursement will be considered an offset against wages and benefits paid relative to the LCA.

Signature of Petitioner	Print or Type Name	Date (mm/dd/yyyy)
	Rus Howard, Chairman	02/03/2011

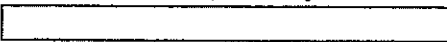
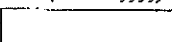
Statement for H-1B specialty occupations and U.S. Department of Defense projects:

As an authorized official of the employer, I certify that the employer will be liable for the reasonable costs of return transportation of the alien abroad if the beneficiary is dismissed from employment by the employer before the end of the period of authorized stay.

Signature of Authorized Official of Employer	Print or Type Name	Date (mm/dd/yyyy)
	Rus Howard, Chairman	02/03/2011

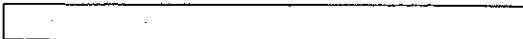
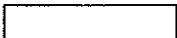
Statement for H-1B U.S. Department of Defense projects only:

I certify that the beneficiary will be working on a cooperative research and development project or a co-production project under a reciprocal government-to-government agreement administered by the U.S. Department of Defense.

Signature of DOD Project Manager	Print or Type Name	Date (mm/dd/yyyy)
		

Section 2. Complete This Section If Filing For H-1C Classification

I certify under penalty of perjury, under the laws of the United States of America, that this attachment and the evidence submitted with it is true and correct. If filing this petition on behalf of an organization or entity, I certify that I am empowered to do so by that organization or entity. I authorize the release of any information from my records, or from the petitioning organization or entity's records, that U.S. Citizenship and Immigration Services may need to determine eligibility for the benefit being sought.

Signature	Print or Type Name
	
Title	Date (mm/dd/yyyy)
	
Firm Name and Address	
	



OMB No.1615-0009; Expires 10/31/2013

Department of Homeland Security
U.S. Citizenship and Immigration Services

**H-1B Data Collection and
Filing Fee Exemption Supplement**

1. Name of the petitioner

DeepGulf, Inc.

2. Name of the beneficiary

Marc Michel Moszkowski

Part A. General Information

1. Employer Information - (check all items that apply)

- a. Is the petitioner an H-1B dependent employer? ☒ No ☐ Yes
- b. Has the petitioner ever been found to be a willful violator? ☒ No ☐ Yes
- c. Is the beneficiary an H-1B nonimmigrant exempt from the Dept. of Labor attestation requirements? ☐ No ☒ Yes
1. If yes, is it because the beneficiary's annual rate of pay is equal to at least \$60,000? ☐ No ☒ Yes
2. Or is it because the beneficiary has a master's or higher degree in a specialty related to the employment? ☒ No ☐ Yes
- d. Has the petitioner received TARP funding (provide explanation on Page 7, Part 9 if the petitioner has subsequently repaid all TARP funding)? ☒ No ☐ Yes
- e. Does the petitioner employ 50 or more individuals in the U.S.? ☒ No ☐ Yes
- If yes, are more than 50% of those employees in H-1B or L nonimmigrant status? ☐ No ☐ Yes

2. Beneficiary's Highest Level of Education (Check one box below)

- ☐ a. NO DIPLOMA
- ☐ b. HIGH SCHOOL GRADUATE DIPLOMA or the equivalent (example: GED)
- ☐ c. Some college credit, but less than 1 year
- ☐ d. One or more years of college, no degree
- ☐ e. Associate's degree (for example: AA, AS)
- ☒ f. Bachelor's degree (for example: BA, AB, BS)
- ☐ g. Master's degree (for example: MA, MS, MEng, MEd, MSW, MBA)
- ☐ h. Professional degree (for example: MD, DDS, DVM, LLB, JD)
- ☐ i. Doctorate degree (for example: PhD, EdD)

3. Major/Primary Field of Study

Maritime Operations

4. Rate of Pay Per Year

\$132,000.00 per year

5. DOT Code

0 1 0

6. NAICS Code

5 6 1 1 1 0

Part B. Fee Exemption Determination

In order for USCIS to determine if you must pay the additional \$1,500 or \$750 American Competitiveness and Workforce Improvement Act (ACWIA) fee, answer all of the following questions:

- ☒ No ☐ Yes 1. Are you an institution of higher education as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 2. Are you a nonprofit organization or entity related to or affiliated with an institution of higher education, as defined in section 101(a) of the Higher Education Act of 1965, 20 U.S.C. 1001(a)?
- ☒ No ☐ Yes 3. Are you a nonprofit research organization or a governmental research organization, as defined in 8 CFR 214.2(h)(19)(iii)(C)?
- ☐ No ☒ Yes 4. Is this the second or subsequent request for an extension of stay that this petitioner has filed for this alien?
- ☒ No ☐ Yes 5. Is this an amended petition that does not contain any request for extensions of stay?





February 3, 2011

Via Federal Express

U.S. Citizenship and Immigration Services
Vermont Service Center
ATTN: I-129
75 Lower Welden Street
St. Albans, VT 05479-0001

Re: I-129 (H-1B) Petition filed by DeepGulf, Inc. on behalf of Marc M. Moszkowski

Dear Sir or Madam:

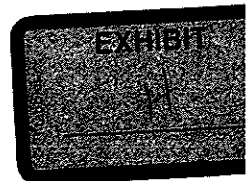
This letter is written to support our H-1B Nonimmigrant Petition to continue to temporarily employ Mr. Marc M. Moszkowski, a national of France, as an H-1B Professional Worker in the Specialty Occupation of President. We will continue to employ Mr. Moszkowski for a period of time up to 2 years and 8 months and pay him at an annual salary rate of \$132,000.

The Petitioner

Founded in 2005, DeepGulf, Inc. builds underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, primarily in the Gulf of Mexico. The company intends to become the world's leading deep underwater oil and gas transportation business by leveraging the strategic advantages offered by its exclusive novel technologies. DeepGulf's patented technologies give it several strategic advantages over competitors and will enable it to secure a major market share of the industry. Specifically, the proprietary J-Flex and Remote Dynamic Positioning technologies will allow the company to install deeper and bigger deep water equipment, infrastructure and pipelines at a fraction of the investment and cost of competitors. See Exhibit 1, Petitioner's descriptive information. Also see Exhibit 2, Petitioner's financial information.

The Specialty Occupation

We wish to continue to employ Mr. Moszkowski in the professional position of President. In this role, he will manage the company and negotiate and secure contracts for offshore pipelaying projects using his knowledge of economics, accounting, the marine pipelaying industry and computer programming. He will implement the company's business plan by improving the company's market share and will be responsible for ensuring that the company complies with U.S. maritime laws. Mr. Moszkowski will also promote the company's proprietary patented technologies in order to leverage the company's strategic advantages into a bigger market share in the industry.



This position is professional in nature and requires at a minimum a Bachelor's degree or the equivalent in Engineering, Maritime Operations, Business, Economics or a related field. This is clearly a specialty occupation because it is standard practice in the industry to hire individuals for this position with a degree, or its equivalent, in this area.

The Beneficiary

Mr. Moszkowski is well qualified for the offered position. In 1981 he earned a degree from the National Merchant Marine Academy in France. This degree has been professionally evaluated and is equivalent to a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. In addition, Mr. Moszkowski also has experience in the Engineering field. Mr. Moszkowski has extensive management and engineering experience with substantial projects completed in offshore gas and oil. His ability to bring projects to completion within the schedule and budget will enable him to lead the company to success. See Exhibit 3, copies of Beneficiary's educational credentials.

Terms of Employment

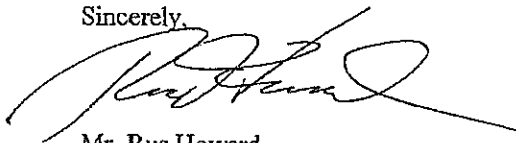
Please note that we have obtained from the U.S. Department of Labor a certified Labor Condition Application in connection with this H-1B petition, and we will abide by the terms of that application for the duration of Mr. Moszkowski's employment by us in H-1B status. See Exhibit 4, signed certified Labor Condition Application Form 9035. As noted, Mr. Moszkowski will be paid an annualized salary of \$132,000.00. This is an at-will employment relationship.

Conclusion

Mr. Moszkowski is currently in the U.S. in H-1B status valid to August 1, 2011. Mr. Moszkowski is seeking to extend his H-1B visa status to April 22, 2014 upon approval of this petition. See Exhibit 5, copies of Beneficiary's biographic page in current Passport, H-1B and B1/B2 visas, Form I-94, Forms I-797, and payslip.

In light of the foregoing, we respectfully request that you approve our H-1B petition on behalf of Mr. Marc M. Moszkowski. Thank you for your consideration of our petition.

Sincerely,



Mr. Rus Howard
Chairman

Department of Homeland Security
U.S. Citizenship and Immigration Services

OMB No. 1615-0009
**I-129, Petition for a
Nonimmigrant Worker**

START HERE - Please type or print in black ink.

Part 1. Information about the employer filing this petition. *If the employer is an individual, complete Number 1. Organizations should complete Number 2.*

1. Family Name (Last Name)		Given Name (First Name)	
Full Middle Name		Telephone No. w/Area Code	
2. Company or Organization		Telephone No. w/Area Code	
Deep Gulf, Inc.		(850) 377-1856	
Mailing Address: (Street Number and Name)		Suite #	
700 South Palafox Pier		160	
C/O: (In Care Of)			
City		State/Province	
Pensacola		FL	
Country		Zip/Postal Code	E-Mail Address (If Any)
USA		32502	
Federal Employer Identification #	U.S. Social Security #	Individual Tax #	
20-2250919			

Part 2. Information about this petition. *(See instructions for fee information.)*

1. Requested Nonimmigrant Classification. <i>(Write classification symbol):</i>	
H-1B	
2. Basis for Classification <i>(Check one):</i>	
a. ☒ New employment (including new employer filing H-1B extension).	
b. ☐ Continuation of previously approved employment without change with the same employer.	
c. ☐ Change in previously approved employment.	
d. ☐ New concurrent employment.	
e. ☐ Change of employer.	
f. ☐ Amended petition.	
3. If you checked Box 2b, 2c, 2d, 2e, or 2f, give the petition receipt number.	
n/a	
4. Prior Petition. If the beneficiary is in the U.S. as a nonimmigrant and is applying to change and/or extend his or her status, give the prior petition or application receipt #:	
n/a	
5. Requested Action <i>(Check one):</i>	
a. ☒ Notify the office in Part 4 so the person(s) can obtain a visa or be admitted. <i>(NOTE: a petition is not required for an E-1, E-2 or R visa).</i>	
b. ☐ Change the person(s)' status and extend their stay since the person(s) are all now in the U.S. in another status <i>(see instructions for limitations)</i> . This is available only where you check "New Employment" in Item 2, above.	
c. ☐ Extend the stay of the person(s) since they now hold this status.	
d. ☐ Amend the stay of the person(s) since they now hold this status.	
e. ☐ Extend the status of a nonimmigrant classification based on a Free Trade Agreement. <i>(See Free Trade Supplement for TN and H1B1 to Form I-129).</i>	
f. ☐ Change status to a nonimmigrant classification based on a Free Trade Agreement. <i>(See Free Trade Supplement for TN and H1B1 to Form I-129).</i>	
6. Total number of workers in petition <i>(See instructions relating to when more than one worker can be included):</i>	one

For USCIS Use Only..

Returned	Receipt
Date	
Date	
Resubmitted	
Date	
Date	
Reloc Sent	
Date	
Date	
Reloc Rec'd	
Date	
Date	
☐ Petitioner Interviewed on	
☐ Beneficiary Interviewed on	
Class: _____	
# of Workers: _____	
Priority Number: _____	
Validity Dates: _____	
From: _____	
To: _____	
☐ Classification Approved	
☐ Consulate/POE/PFI Notified	
At _____	
☐ Extension Granted	
☐ COS/Extension Granted	
Partial Approval <i>(explain)</i>	
Action Block	
To Be Completed by	
Attorney or Representative, if any.	
☒ Fill in box if G-28 is attached to represent the applicant.	
ATTY State License #	
54-8056	



Part 3. Information about the person(s) you are filing for. Complete the blocks below. Use the continuation sheet to name each person included in this petition.

1. If an Entertainment Group, Give the Group Name

n/a		
Family Name (Last Name)	Given Name (First Name)	Full Middle Name
MOSZKOWSKI	Marc	Michel
All Other Names Used (include maiden name and names from all previous marriages)		
none		
Date of Birth (mm/dd/yyyy)	U.S. Social Security # (if any)	A # (if any)
06/25/1954	629-72-7315	none
Country of Birth	Province of Birth	Country of Citizenship
The Netherlands	Drenthe	France

2. If in the United States, Complete the Following:

Date of Last Arrival (mm/dd/yyyy)	I-94 # (Arrival/Departure Document)	Current Nonimmigrant Status	
06/16/2005	76331606111	B2	
Date Status Expires (mm/dd/yyyy)	Passport Number	Date Passport Issued (mm/dd/yyyy)	Date Passport Expires (mm/dd/yyyy)
12/15/2005	04FK57470	03/07/2005	03/06/2015
Current U.S. Address			
10220 Memorial Drive, 19, Houston, TX 77024, USA			

Part 4. Processing Information.

1. If the person named in Part 3 is outside the United States or a requested extension of stay or change of status cannot be granted, give the U.S. consulate or inspection facility you want notified if this petition is approved.

Type of Office (Check one): ☒ Consulate ☐ Pre-flight inspection ☐ Port of Entry

Office Address (City) U.S. State or Foreign Country

Paris	France
-------	--------

Person's Foreign Address

Le Verdos, Chateaudouble, 83300, France

2. Does each person in this petition have a valid passport?

☐ Not required to have passport ☐ No - explain on separate paper ☒ Yes

3. Are you filing any other petitions with this one? ☒ No ☐ Yes - How many?

--
4. Are applications for replacement/initial I-94s being filed with this petition? ☒ No ☐ Yes - How many?

--
5. Are applications by dependents being filed with this petition? ☒ No ☐ Yes - How many?

--
6. Is any person in this petition in removal proceedings? ☒ No ☐ Yes - explain on separate paper

Part 4. Processing Information. (Continued)

7. Have you ever filed an immigrant petition for any person in this petition? ☒ No ☐ Yes - explain on separate paper
8. If you indicated you were filing a new petition in Part 2, within the past seven years has any person in this petition:
- a. Ever been given the classification you are now requesting? ☐ No ☒ Yes - explain on separate paper
- b. Ever been denied the classification you are now requesting? ☒ No ☐ Yes - explain on separate paper
9. Have you ever previously filed a petition for this person? ☒ No ☐ Yes - explain on separate paper
10. If you are filing for an entertainment group, has any person in this petition not been with the group for at least one year? n/a ☐ No ☐ Yes - explain on separate paper

Part 5. Basic information about the proposed employment and employer. Attach the supplement relating to the classification you are requesting.

1. Job Title
President
2. Nontechnical Job Description
Manage corporation specializing in offshore pipelaying
3. LCA Case Number
I-05189-1883137
4. NAICS Code
561110
5. Address where the person(s) will work if different from address in Part 1. (Street number and name, city/town, state, zip code)
Same as Part 1 plus 10220 Memorial Drive, 19, Houston, TX 77024, USA
6. Is this a full-time position?
☐ No - Hours per week:
☒ Yes - Wages per week or per year: \$120,000 / year
7. Other Compensation (Explain)
Standard Benefits Package
8. Dates of intended employment (mm/dd/yyyy):
From: 08/01/2005 To: 08/01/2008
9. Type of Petitioner - Check one:
☐ U.S. citizen or permanent resident ☒ Organization ☐ Other - explain on separate paper
10. Type of Business
Offshore pipelaying company
11. Year Established
2005
12. Current Number of Employees
2
13. Gross Annual Income
see attached
14. Net Annual Income
see attached

Part 6. Signature. Read the information on penalties in the instructions before completing this section.

I certify, under penalty of perjury under the laws of the United States of America, that this petition and the evidence submitted with it is all true and correct. If filing this on behalf of an organization, I certify that I am empowered to do so by that organization. If this petition is to extend a prior petition, I certify that the proposed employment is under the same terms and conditions as stated in the prior approved petition. I authorize the release of any information from my records, or from the petitioning organization's records that the U.S. Citizenship and Immigration Services needs to determine eligibility for the benefit being sought.

Signature

Rus Howard, Chairman

Daytime Phone Number (Area/Country Code)

(850) 377-1856

Print Name

Rus Howard, Chairman

Date (mm/dd/yyyy)

7/20/05

NOTE: If you do not completely fill out this form and the required supplement, or fail to submit required documents listed in the instructions, the person(s) filed for may not be found eligible for the requested benefit and this petition may be denied.

Part 7. Signature of person preparing form, if other than above.

I declare that I prepared this petition at the request of the above person and it is based on all information of which I have any knowledge.

Signature

Jeffrey Goldman

Daytime Phone Number (Area/Country Code)

(617) 348-3025

Print Name

Jeffrey Goldman

Date (mm/dd/yyyy)

Firm Name and Address

Mintz Levin Cohn Ferris Glovsky & Popeo PC, One Financial Center, Boston, MA 02111

April 6, 2014

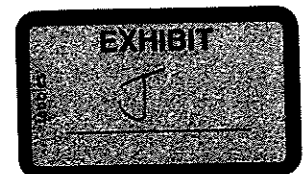
USCIS
Attn: AOS
2501 S. State Hwy, 121 Business
Suite 400
Lewisville, TX 75067

**RE: FORM I-140 IMMIGRANT PETITION FOR ALIEN WORKER
(EB-1 MULTINATIONAL EXECUTIVE)**
Petitioner: DeepGulf, Inc.
Beneficiary: Marc MOSZKOWSKI
Executive Position: President

Dear Sir/Madam:

This letter is submitted in support of the enclosed I-140 Immigrant Petition on behalf of Mr. Marc Moszkowski, a citizen of the Netherlands. We wish to employ Mr. Moszkowski on an indefinite basis as our Company's President, the Executive position he assumed in valid H-1B status on October 4, 2005. **See Exhibit 1, copies of Beneficiary's visa stamp and I-94 information.** Immediately prior to his U.S. transfer, and continuing to the present, Mr. Moszkowski has been employed concurrently as the President of Toke Oil and Gas, SA ("Toke Oil"), DeepGulf Inc.'s wholly-owned subsidiary located in Timor-Leste (East Timor) in Southeast Asia.

At this time, DeepGulf Inc. seeks to continue Mr. Moszkowski's executive employment. In the United States, he will continue to serve as our most senior executive with respect to conceiving large-scale energy transportation and engineering projects involving the Company's proprietary technologies (of which Mr. Moszkowski is himself the inventor), the negotiation of major contracts, and the exercise of independent decision-making authority in financial, administrative and regulatory matters. While he will continue to be the individual chiefly responsible for financial oversight of the company globally, his presence in the U.S. has become increasingly important as DeepGulf seeks new sources of investment capital and responds to requests for proposals for a number of complex energy transportation projects. Reporting to the Company's Board of Directors, Mr. Moszkowski will be compensated at a base annual salary of \$132,000.00, plus standard benefits and other equity-based consideration appropriate to the senior executive of a successful energy technology company.



**DESCRIPTION OF THE PETITIONER AND THE FOREIGN EMPLOYER
AND THEIR QUALIFYING "SUBSIDIARY" RELATIONSHIP**

Founded in 2005, DeepGulf, Inc. is in the business of building energy transportation systems incorporating marine compressed gas technology, and underwater pipelines and associated facilities in deep and ultra-deep offshore oil and gas production fields, increasingly in the Gulf of Mexico. DeepGulf's proprietary J-Flex 3600 marine pipelay system, with its 3,000-ton tensioning capacity and Remote Dynamic Positioning technologies, enables the company to install deeper and larger deep-water equipment, infrastructure and pipelines at a fraction of the investment and overall cost of its competitors. DeepGulf's proprietary marine compressed gas transportation system enables the company to access stranded gas and deliver it to proximate niche markets at favorable prices. Its principal customers are in Southeast Asia, Indonesia, Timor. In carrying out these activities, DeepGulf has entered into joint venture partnerships with NK and Posco, two major technology manufacturing companies in South Korea.

DeepGulf currently employs 3 workers in the United States and, together with our affiliates in the U.S. and abroad, a total of approximately 120 employees worldwide. Descriptive information regarding DeepGulf products will provide you with an insight into the spirit of innovation that has fuelled the Company's success. **See Exhibit 2, descriptive and financial information on Petitioner and the Foreign Employer, including DeepGulf Inc.'s most recent federal income tax returns.**

Toke Oil and Gas SA, a corporation formed under the laws of Timor Leste, is a wholly-owned subsidiary of the Petitioner, DeepGulf, Inc. We attach as **Exhibit 3** an Officer's Certificate incorporation documents, share certificates and the stock ledger which verify the qualifying corporate relationship between the petitioner, DeepGulf Inc., and Toke Oil and Gas SA, Mr. Moszkowski's employer abroad, necessary for a multinational executive transfer.

THE BENEFICIARY'S EXECUTIVE POSITION ABROAD

As noted above, since October 2005 and continuing to the present, Mr. Moszkowski has served as the President of both Toke Oil and Gas, SA and DeepGulf, Inc. In this capacity, for more than 8 years, Mr. Moszkowski has served as the chief executive officer of both companies.

Mr. Moszkowski is charged by the Board of Directors with the responsibility of finding and creating new opportunities for Toke Oil and Gas. He devotes his maritime engineering expertise to the process of analyzing and assessing a prospective client's problems, how they can be solved, determining what engineering needs to be performed and what inventions need to be created to complete such an imagined potential project ("imagineering"). He consults with the executives and professional technical staff of prospective clients to assess the potential value and the likelihood that the client will want to complete such project. If the client determines it is an attractive venture,

Mr. Moszkowski is responsible for overseeing the creation of business plans defining the project, i.e., specify engineering, operations, logistics and scope of the project. If the client decides to move forward, Mr. Moszkowski then oversees the final overall design and creation of the engineering drawings, and the sourcing of subcontractors where necessary. He oversees legal compliance, and he negotiates contracts for both clients and subcontractors. Finally, he exercises executive oversight of the work being performed and the preparation of deliverables including any final report. Since 2005, Mr. Moszkowski has spent more than 60% of his time traveling internationally.

We offer the following breakdown illustrating the percentage of time spent accomplishing each specific duty.

Determine and formulate policies, and provide overall direction of DeepGulf and Toke Gas and Oil, within guidelines set up by the board of directors. Plan and direct high-value energy projects at the highest level of management, with the help of subordinate executives and staff managers	20%
Be responsible for long-ranging planning and business strategy for DeepGulf and Toke, with advice and consent from the board	10%
Imagineering – use maritime engineering expertise to analyze and assess prospective clients’ construction needs and potential long-range solutions; evaluate what engineering needs to be done and what inventions need to be created to complete potential projects in a way that maximizes operational efficiency and return on investment	10%
Confer on a weekly basis with members of the Board and report project progress, from inception to completion	5%
Meet with executives of clients and potential subcontractors, potential investors, permitting agencies, government officials and representatives of NGOs on project logistics	10%
Define the project, specify engineering, operations, logistics and scope of the project. Oversee the final overall design and creation of the engineering drawings, and sourcing of subcontractors where necessary	10%
Direct human resources activities, including the approval of human resource plans and engagement of sub-contractors, selection of directors or other high-level staff	5%
Direct legal preparation and permitting for projects and oversee regulatory compliance	10%
Negotiate or approve contracts or agreements with clients, suppliers, distributors, federal or state agencies, or other organizational entities	5%

Oversee the execution of construction and engineering for projects, including overall management of budgets	15%
Total:	100%

These duties, which Mr. Moszkowski has been performing continuously for more than 8 years clearly establish that he meets all four of the criteria identifying employment in an executive capacity as set forth in 8 U.S.C. §1101(a)(44)(B). He (1) directs the overall management of the organization; (2) establishes its long-range goals and policies; (3) exercises wide latitude in discretionary decision making; and (4) receives only general supervision and direction only from the Company's Board of Directors.

A letter from Mr. Vicente Ximenes, Managing Director of Toke Gas and Oil verifying Mr. Moszkowski's qualifying executive employment abroad is attached to this letter as **Exhibit 4**.

THE BENEFICIARY'S U.S. EXECUTIVE POSITION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's executive employment as President of Deep Gulf. In this capacity, he will continue to serve as the face of the corporation and the primary liaison to government officials, the media and shareholders. He will be responsible for directing and coordinating all aspects of Company operations, and for providing leadership and in the administrative, business planning, accounting and budgeting efforts of the Company. More particularly, Mr. Moszkowski will continue to report to the Board of Directors and will continue to perform the following duties:

Responsibilities and Duties

1. Provide overall leadership to the company giving clear direction;
2. Develop a corporate strategy using top-level decision making, subject to advise and consent of the Board of Directors;
3. Play leading role in shaping organizational values and implement new strategies where required;
4. Execute the Company's business plan to ensure the future growth of the business;
5. In conjunction with the Board of Directors, conduct a periodic review and revision of the business plan, including mission, strategic goals and tactics;

6. Be responsible for financial viability of the company including overall Profit and Loss;
7. Develop policy and procedures in keeping with the mission of the Company;
8. Set performance criteria for all upper management and complete performance evaluations for all upper management;
9. Report to shareholders and investors at least annually and provide updates when he deems necessary. Make himself available to communicate with shareholders to understand, address their concerns;
10. Exercise ultimate responsibility for accurate reporting of company activities, including financial reports and audits;
11. Represent the company by communicating with national and international press and media on company progress and developments;
12. Work with Governments, administrations and companies in a range of overseas countries in order to advance specific projects; and
13. Finalize funding, technical and management arrangements leading to exclusive agreements with Governments to build energy transportation systems from existing and proven resources. This will include overseeing the building of associated ports, roads and structures.

The President reports in person to the Board of Directors on a quarterly basis, and more frequently in writing and telephonically. The President also reports to shareholders annually at shareholder meetings and periodically as needed, transmitting any necessary communications from shareholders to the Board. All upper-level managers will report directly to the President. In the performance of these duties, Mr. Moszkowski will continue to meet all four of the criteria establishing employment in an executive capacity, as set forth in 8 U.S.C. §1101(a)(44)(B). See Exhibit 5, Petitioner's Organization Chart illustrating the Beneficiary's senior executive position.

THE BENEFICIARY'S QUALIFICATIONS AND PROFESSIONAL BACKGROUND

Mr. Moszkowski is extremely well-qualified for the offered position. In 1981, he earned a Diploma of Higher Studies of the Merchant Marine from the National Merchant Marine Academy in Nice, France. This degree has been evaluated by a professional credential evaluation service as the equivalent of a Bachelor of Science degree in Maritime Operations and Technology from a regionally accredited U.S. university. Since his graduation, Mr. Moszkowski has gained significant engineering experience leading substantial projects in offshore gas and oil development. See Exhibit 6, Beneficiary's credential evaluation and professional resume. In addition, Mr. Moszkowski is the author and inventor on a series of U.S. patents for the construction and operation of deep water pipelines. See Exhibit 7. This maritime engineering expertise is the essence of Mr. Moszkowski's leadership role in our Company.

CONCLUSION

Upon approval of our immigrant petition on his behalf, we wish to continue Mr. Moszkowski's employment as the Company's President. In this capacity, he will continue to perform the same executive-level decision-making duties, primarily in the U.S., but also in the creation of major energy transportation systems and pipeline projects in Southeast Asia.

If you have any questions or require additional information, please contact me or our counsel for this matter, Mr. Jeffrey W. Goldman at (978) 219-5055.

Sincerely yours,

DEEPGULF, INC.

By: _____
Rustin Howard
Corporate Secretary

Employment Agreement

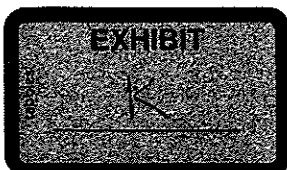
This Employment Agreement is entered into as of the date of the last signature affixed hereto, by and between Deep Gulf, a Florida Incorporation ("Deep Gulf, Inc." or "the Employer"), and Marc Moszowski ("Employee").

In consideration of the mutual promises and covenants set forth herein, and other good and valuable consideration, the sufficiency of which is hereby acknowledged, Deep Gulf, Inc. and Employee hereby agree as follows:

1. **Position of Employment.** The Company will employ the Employee in the position of President of Deep Gulf, Inc., and, in that position, Employee will report to the Board of Directors of Deep Gulf, Inc. Deep Gulf, Inc. retains the right to change Employee's title, duties, and reporting relationships as may be determined to be in the best interests of the Company; provided, however, that any such change in Employee's duties shall be consistent with Employee's training, experience, and qualifications.

The terms and conditions of the Employee's employment shall, to the extent not addressed or described in this Employment Agreement, be governed by Deep Gulf, Inc.'s Policies and Procedures Manual and existing practices. In the event of a conflict between this Employment Agreement and the Policies and Procedures Manual or existing practices, the terms of this Agreement shall govern.

2. **Term of Employment.** Employee's employment with Deep Gulf, Inc. shall begin on 1 August, 2005, and shall continue for a period of three (3) years, after which time continued employment shall be on an "at will" basis, unless:
 1. Employee's employment is terminated by either party in accordance with the terms of Section 5 of this Employment Agreement; or
 2. Such term of employment is extended or shortened by a subsequent agreement duly executed by each of the parties to this Employment Agreement, in which case such employment shall be subject to the terms and conditions contained in the subsequent written agreement.
3. **Compensation and Benefits.**
 1. **Base Salary.** Employee shall be paid a base salary of \$10,000 monthly, which is \$120,000 annually ("Base Salary"), subject to applicable federal, state, and local withholding. Such Base Salary is to be paid to Employee in the same manner and on the same payroll schedule in which all Deep Gulf, Inc. employees receive payment. Any increases in Employee's Base Salary for years beyond the first year of Employee's employment shall be in the sole discretion of Deep Gulf, Inc. management, and nothing herein shall be deemed to require any such increase.



2. Incentive and Deferred Compensation. Employee shall be eligible to participate in all incentive and deferred compensation programs available to other executives or officers of Deep Gulf, Inc., such participation to be in the same form, under the same terms, and to the same extent that such programs are made available to other such executives or officers. Nothing in this Employment Agreement shall be deemed to require the payment of bonuses, awards, or incentive compensation to Employee if such payment would not otherwise be required under the terms of Deep Gulf, Inc.'s incentive compensation programs.
3. Employee Benefits. Employee shall be eligible to participate in all employee benefit plans, policies, programs, or perquisites in which other Deep Gulf, Inc. executive or officers participate, including the Deep Gulf, Inc. Stock Option program. The terms and conditions of Employee's participation in Deep Gulf, Inc.'s employee benefit plans, policies, programs, or perquisites shall be governed by the terms of each such plan, policy, or program.
4. Duties and Performance. The Employee acknowledges and agrees that he is being offered a position of employment by the Company with the understanding that the Employee possesses a unique set of skills, abilities, and experiences which will benefit the Company, and he agrees that his continued employment with the Company, whether during the term of this Employment Agreement or thereafter, is contingent upon his successful performance of his duties in his position as noted above, or in such other position to which he may be assigned.
 1. General Duties.
 1. Employee shall render to the very best of Employee's ability, on behalf of the Company, services to and on behalf of the Company, and shall undertake diligently all duties assigned to him by the Company.
 2. Employee shall devote his full time, energy and skill to the performance of the services in which the Company is engaged, at such time and place as the Company may direct. Employee shall not undertake, either as an owner, director, shareholder, employee or otherwise, the performance of services for compensation (actual or expected) for any other entity without the express written consent of the Board of Directors.
 3. Employee shall faithfully and industriously assume and perform with skill, care, diligence and attention all responsibilities and duties connected with his employment on behalf of the Company.
 4. Employee shall have no authority to enter into any contracts binding upon the Company, or to deliberately create any obligations on the part of the Company, except as may be specifically authorized by the Board of Directors of Deep Gulf, Inc.
 2. Specific Duties. [See job description appended as attachment to the agreement].

5. Termination of Employment. Employee's employment with the Company may be terminated, prior to the expiration of the term of this Employment Agreement, in accordance with any of the following provisions:
1. Termination by Employee. The Employee may terminate his employment at any time during the course of this agreement by giving 4 (four) months' notice in writing to the Board of Directors of Deep Gulf, Inc. During the notice period, Employee must fulfill all his duties and responsibilities set forth above and use his best efforts to train and support his replacement, if any. Failure to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period.
 2. Termination by the Company without Cause. Deep Gulf, Inc. may terminate Employee's employment at any time during the course of this agreement by giving 6 (six) months' notice in writing to the Employee. During the notice period, Employee must fulfill all of Employee's duties and responsibilities set forth above and use Employee's best efforts to train and support Employee's replacement, if any. Failure of Employee to comply with this requirement may result in Termination for Cause described below, but otherwise Employee's salary and benefits will remain unchanged during the notification period. Deep Gulf, Inc., may, in its sole discretion, give Employee severance pay in the amount of the remaining notice period in lieu of actual employment, and nothing herein shall require Company to maintain employee in active employment for the duration of the notice period.
 3. Termination by the Company for Cause. The Company may, at any time and without notice, terminate the Employee for "cause". Termination by the Company of the Employee for "cause" shall include but not be limited to termination based on any of the following grounds: (a) failure to perform the duties of the Employee's position in a satisfactory manner; (b) fraud, misappropriation, embezzlement or acts of similar dishonesty; (c) conviction of a felony involving moral turpitude; (d) illegal use of drugs or excessive use of alcohol in the workplace; (e) intentional and willful misconduct that may subject the Company to criminal or civil liability; (f) breach of the Employee's duty of loyalty, including the diversion or usurpation of corporate opportunities properly belonging to the Company; (g) willful disregard of Company policies and procedures; (h) breach of any of the material terms of this Agreement; and (i) insubordination or deliberate refusal to follow the instructions or policies of the Board of Directors of Deep Gulf, Inc.
 4. Termination By Death or Disability. The Employee's employment and rights to compensation under this Employment Agreement shall terminate if the Employee is unable to perform the duties of his position due to death or disability lasting more than 90 days, and the Employee's heirs, beneficiaries, successors, or assigns shall not be entitled to any of the compensation or benefits to which Employee is entitled under this Agreement, except: (a) to the extent specifically provided in this Employment Agreement (b) to the extent required by law; or (c) to the extent that such benefit plans

or policies under which Employee is covered provide a benefit to the Employee's heirs, beneficiaries, successors, or assigns.

6. **Confidentiality.** Employee agrees that at all times during Employee's employment and following the conclusion of Employee's employment, whether voluntary or involuntary, Employee will hold in strictest confidence and not disclose Confidential Information (as defined below) to anyone who is not also an employee of the Company or to any employee of the Company who does not also have access to such Confidential Information, without express written authorization of the Board of Directors of the Company. "Confidential Information" shall mean any trade secrets or Company proprietary information, including but not limited to manufacturing techniques, processes, formulas, customer lists, inventions, experimental developments, research projects, operating methods, cost, pricing, financial data, business plans and proposals, data and information the Company receives in confidence from any other party, or any other secret or confidential matters of the Company. Additionally, Employee will not use any Confidential Information for Employee's own benefit or to the detriment of the Company during Employee's employment or thereafter. Employee also certifies that employment with the Company does not and will not breach any agreement or duty that Employee has to anyone concerning confidential information belonging to others.
7. **Noncompetition.** To the fullest extent permitted by applicable law, the terms of the Noncompetition Agreement executed by the Employee are incorporated by reference into this Employment Agreement and are made a part hereto as if they appeared in this Employment Agreement itself.
8. **Expenses.** The Company shall pay or reimburse Employee for any expenses reasonably incurred by him in furtherance of his duties hereunder, including expenses for entertainment, travel, meals and hotel accommodations, upon submission by him of vouchers or receipts maintained and provided to the Company in compliance with such rules and policies relating thereto as the Company may from time to time adopt.
9. **General Provisions.**
 1. **Notices.** All notices and other communications required or permitted by this Agreement to be delivered by Deep Gulf, Inc. or Employee to the other party shall be delivered in writing to the address shown below, either personally, by facsimile transmission or by registered, certified or express mail, return receipt requested, postage prepaid, to the address for such party specified below or to such other address as the party may from time to time advise the other party, and shall be deemed given and received as of actual personal delivery, on the first business day after the date of delivery shown on any such facsimile transmission or upon the date or actual receipt shown on any return receipt if registered, certified or express mail is used, as the case may be.

Deep Gulf, Inc:
Deep Gulf, Inc., Inc.
17 S Palafox Place Suite 370

Pensacola, FL 32502
[Attention: Board of Directors]

Employee:

Marc Moszkowski
425C East Zaragoza Ave
Pensacola, FL 32502

2. Amendments and Termination; Entire Agreement. This Agreement may not be amended or terminated except by a writing executed by all of the parties hereto. This Agreement constitutes the entire agreement of Deep Gulf, Inc. and Employee relating to the subject matter hereof and supersedes all prior oral and written understandings and agreements relating to such subject matter.
3. Successors and Assigns. The rights and obligations of the parties hereunder are not assignable to another person without prior written consent; provided, however, that Deep Gulf, Inc., without obtaining Employee's consent, may assign its rights and obligations hereunder to a wholly-owned subsidiary and provided further that any post-employment restrictions shall be assignable by Deep Gulf, Inc. to any entity which purchases all or substantially all of the Company's assets.
4. Severability; Provisions Subject to Applicable Law. All provisions of this Agreement shall be applicable only to the extent that they do not violate any applicable law, and are intended to be limited to the extent necessary so that they will not render this Agreement invalid, illegal or unenforceable under any applicable law. If any provision of this Agreement or any application thereof shall be held to be invalid, illegal or unenforceable, the validity, legality and enforceability of other provisions of this Agreement or of any other application of such provision shall in no way be affected thereby.
5. Waiver of Rights. No waiver by Deep Gulf, Inc. or Employee of a right or remedy hereunder shall be deemed to be a waiver of any other right or remedy or of any subsequent right or remedy of the same kind.
6. Definitions; Headings; and Number. A term defined in any part of this Employment Agreement shall have the defined meaning wherever such term is used herein. The headings contained in this Agreement are for reference purposes only and shall not affect in any manner the meaning or interpretation of this Employment Agreement. Where appropriate to the context of this Agreement, use of the singular shall be deemed also to refer to the plural, and use of the plural to the singular.
7. Counterparts. This Agreement may be executed in separate counterparts, each of which shall be deemed an original but both of which taken together shall constitute but one and the same instrument.
8. Governing Laws and Forum. This Agreement shall be governed by, construed, and enforced in accordance with the laws of the State of Florida. The parties hereto further

agree that any action brought to enforce any right or obligation under this Agreement shall be subject to the exclusive jurisdiction of the courts of the State of Florida.

IN WITNESS WHEREOF, Deep Gulf, Inc. and Employee have executed and delivered this Agreement as of the date written below.

Deep Gulf, Inc., Inc.

Marc Moszkowski

By: Rustin Howard, Chairman DeepGulf, Inc.

Date: _____

Date: _____

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 1 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.
JEFFREY W GOLDMAN LAW OFFICES OF JEFF GOLDMAN LLP 125 WASHINGTON ST STE 204 SALEM MA 01970		Notice Type: Approval Notice Class: H1B Valid from 07/04/2014 to 02/10/2017 Consulate:

The above petition and extension of stay have been approved. The status of the named foreign worker(s) in this classification is valid as indicated above. The foreign worker(s) can work for the petitioner, but only as detailed in the petition and for the period authorized. Changes in employment or training may require you to file a new Form I-129 petition. Since this employment or training authorization stems from the filing of this petition, separate employment or training authorization documentation is not required. Please contact the IRS with any questions about tax withholding.

The petitioner should keep the upper portion of this notice. The lower portion should be given to the worker. He or she should keep the right part with his or her Form I-94, Arrival-Departure Record. The I-94 portion should be given to the U.S. Customs and Border Patrol when he or she leaves the United States. The left part is for his or her records. A person granted an extension of stay who leaves the U.S. must normally obtain a new visa before returning. The left part can be used in applying for the new visa. If a visa is not required, he or she should present it, along with any other required documentation, when applying for reentry in this new classification at a port of entry or pre-flight inspection station. The petitioner may also file Form I-824, Application for Action on an Approved Application or Petition, to request that we notify a consulate, port of entry, or pre-flight inspection office of this approval.

The approval of this visa petition does not in itself grant any immigration status and does not guarantee that the alien beneficiary will subsequently be found to be eligible for a visa, for admission to the United States, or for an extension, change, or adjustment of status.

THIS FORM IS NOT A VISA NOR MAY IT BE USED IN PLACE OF A VISA.

The Small Business Regulatory Enforcement and Fairness Act established the Office of the National Ombudsman (ONO)

Please see the additional information on the back. You will be notified separately about any other cases you filed.
U.S. CITIZENSHIP & IMMIGRATION SVCS
VERMONT SERVICE CENTER
75 LOWER WELDEN STREET
SAINT ALBANS VT 05479-0001
Customer Service Telephone: (800) 375-5283
Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

Receipt# EAC-14-171-52995
I-94# 311615380 30
NAME MOSZKOWSKI, MARC M.
CLASS H1B

VALID FROM 07/04/2014 UNTIL 02/10/2017

PETITIONER: DEEPGULF INC
17 S PALAFOX PL STE 370
PENSACOLA FL 32502

311615380 30

Receipt Number EAC-14-171-52995
United States Citizenship and Immigration
Services

I-94

Departure Record Petitioner: DEEPGULF INC

14. Family Name
MOSZKOWSKI

15. First (Given) Name
MARC

16. Date of Birth
06/25/1954

17. Country of Citizenship
FRANCE

EXHIBIT

Department of Homeland Security
U.S. Citizenship and Immigration Services

I-797A, Notice of Action



RECEIPT NUMBER EAC-14-171-52995		CASE TYPE I129 PETITION FOR A NONIMMIGRANT WORKER
RECEIPT DATE May 30, 2014	PRIORITY DATE	PETITIONER DEEPGULF INC
NOTICE DATE September 15, 2014	PAGE 2 of 2	BENEFICIARY A096 377 710 MOSZKOWSKI, MARC M.

(continued)
at the Small Business Administration. The ONO assists small businesses with issues related to federal regulations.
If you are a small business with a comment or complaint about regulatory enforcement, you may contact the ONO at
www.ombudsman.sba.gov or phone 202-205-2417 or fax 202-481-5719.

NOTICE: Although this application/petition has been approved, USCIS and the U.S. Department of Homeland Security reserve the right to verify the information submitted in this application, petition and/or supporting documentation to ensure conformity with applicable laws, rules, regulations, and other authorities. Methods used for verifying information may include, but are not limited to, the review of public information and records, contact by correspondence, the internet, or telephone, and site inspections of businesses and residences. Information obtained during the course of verification will be used to determine whether revocation, rescission, and/or removal proceedings are appropriate. Applicants, petitioners, and representatives of record will be provided an opportunity to address derogatory information before any formal proceeding is initiated.

Please see the additional information on the back. You will be notified separately about any other cases you filed.

U.S. CITIZENSHIP & IMMIGRATION SVCS

VERMONT SERVICE CENTER

75 LOWER WELDEN STREET

SAINT ALBANS VT 05479-0001

Customer Service Telephone: (800) 375-5283

Form I797A (Rev. 10/31/05)N



PLEASE TEAR OFF FORM I-94 PRINTED BELOW, AND STAPLE TO ORIGINAL I-94 IF AVAILABLE

Detach This Half for Personal Records

VOID	VOID	VOID
Receipt#	VOID	VOID
I-94#	VOID	VOID
NAME	VOID	VOID
CLASS	VOID	VOID
	VOID	VOID
	VOID	VOID
PETITIONER:	VOID	VOID
	VOID	VOID
	VOID	VOID

VOID	VOID	VOID
Receipt Number	VOID	VOID
United States Citizenship and Immigration Services	VOID	VOID
I-94	VOID	VOID
Departure Record	VOID	VOID
14. Family Name	VOID	VOID
15. First (Given) Name	VOID	16. Date of Birth
17. Country of Citizenship	VOID	VOID

MINTZ LEVIN
MINTZ LEVIN COHN FERRIS GLOVSKY AND POPEO

One Financial Center
Boston, MA 02111
617-542-6000
617-542-2241 fax
www.mintz.com

Jeffrey W. Goldman | 617 348 3025 | jgoldman@mintz.com

August 12, 2005

EV39216046305

VIA FEDERAL EXPRESS
U.S. Citizenship & Immigration Services
Texas Service Center
P.O. Box 852211
Mesquite, TX 75185-2211

Re: Form I-129, H-1B Petition for Nonimmigrant Worker - NOT SUBJECT TO CAP
Petitioner: DeepGulf, Inc.
Beneficiary: Mr. Marc MOSZKOWSKI

PLEASE NOTIFY THE CONSULATE IN PARIS, FRANCE

Dear Sir or Madam:

In connection with the above-captioned matter, enclosed please find the following forms and documentation submitted in support of the Petitioner's request to sponsor Mr. Moszkowski for H-1B employment until August 1, 2008:

- Attorney Representation Form G-28 with attached checks to cover the government filing fees (\$185, \$500, and \$750);
- Form I-129, Petition for a Nonimmigrant Worker;
- H Classification Supplement to Form I-129;
- H-1B Data Collection and Filing Fee Exemption Supplement;
- Form ETA 9035E, Certified Labor Condition Application (ETA Case # I-05189-1883137);
- Petitioner Letter of Support;
- Petitioner Information including business plan and PowerPoint presentation;
- Personal Guarantee of Rus Howard, Chairman of DeepGulf, Inc., attesting that he will use personal assets including the equity in his home to assure the Citizenship and Immigration Service that the H-1B prevailing wage will be paid. Also attached are tax returns and Settlement Statements from the real estate/residences owned by Mr. Howard;
- Copy of the Beneficiary's educational credentials and professional evaluation;

BOSTON | WASHINGTON | RESTON | NEW YORK | STAMFORD | LOS ANGELES | LONDON



MINTZ, LEVIN, COHN, FERRIS, GLOVSKY AND POPEO, P.C.

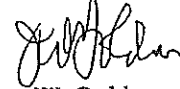
August 12, 2005

Page 2

- Copies of the Beneficiary's Form I-94, Form I-797 Approval Notice for prior H-1B status (SRC-00-069-52123), passport identity page and visa pages.

Please contact me at (617) 348-3025 if you have any questions or require additional information. Thank you in advance for your time and attention to this matter.

Very truly yours,



Jeffrey W. Goldman

JWG/kwf

Enclosures

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

Form 1040		U.S. Individual Income Tax Return 2004		(99) IRS Use Only — Do not write or staple in this space.																										
Department of the Treasury — Internal Revenue Service		For the year Jan 1 - Dec 31, 2004, or other tax year beginning , 2004, ending , 20		OMB No. 1545-0074																										
Label (See instructions.)	Your first name	MI	Last name	Your social security number																										
	RUSTIN R HOWARD			529-90-3650																										
	If a joint return, spouse's first name	MI	Last name	Spouse's social security number																										
Use the IRS label. Otherwise, please print or type.	Home address (number and street). If you have a P.O. box, see instructions.			Apartment no.																										
	431 C East Zarragossa Street																													
	City, town or post office. If you have a foreign address, see instructions.			State ZIP code																										
Pensacola, FL 32502																														
Presidential Election Campaign (See instructions.)	Note: Checking 'Yes' will not change your tax or reduce your refund. Do you, or your spouse if filing a joint return, want \$3 to go to this fund?..... ☐ Yes ☒ No ☐ Yes ☐ No																													
Filing Status	1 ☐ Single 2 ☐ Married filing jointly (even if only one had income) 3 ☒ Married filing separately. Enter spouse's SSN above & full name here. MAUREEN W HOWARD 4 ☐ Head of household (with qualifying person). (See instructions.) If the qualifying person is a child but not your dependent, enter this child's name here. 5 ☐ Qualifying widow(er) with dependent child (see instructions)																													
Check only one box.																														
Exemptions	6a ☒ Yourself. If someone can claim you as a dependent, do not check box 6a. b ☐ Spouse. c Dependents: <table border="1"> <thead> <tr> <th>(1) First name</th> <th>Last name</th> <th>(2) Dependent's social security number</th> <th>(3) Dependent's relationship to you</th> <th>(4) ☒ qualifying child for child tax credit (see instrs)</th> </tr> </thead> <tbody> <tr><td> </td><td> </td><td> </td><td> </td><td> </td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td> </td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td> </td></tr> <tr><td> </td><td> </td><td> </td><td> </td><td> </td></tr> </tbody> </table> No. of children on 6c who: • lived with you • did not live with you due to divorce or separation (see instrs) Dependents on 6c not entered above Add numbers on lines above 1 d Total number of exemptions claimed 1					(1) First name	Last name	(2) Dependent's social security number	(3) Dependent's relationship to you	(4) ☒ qualifying child for child tax credit (see instrs)																				
(1) First name	Last name	(2) Dependent's social security number	(3) Dependent's relationship to you	(4) ☒ qualifying child for child tax credit (see instrs)																										
Income	7 Wages, salaries, tips, etc. Attach Form(s) W-2 5,078. 8a Taxable interest. Attach Schedule B if required 132. b Tax-exempt interest. Do not include on line 8a. 8b 9a Ordinary dividends. Attach Schedule B if required b Qualified divs (see instrs) 9b 10 Taxable refunds, credits, or offsets of state and local income taxes (see instructions) 11 Alimony received 12 Business income or (loss). Attach Schedule C or C-EZ 13 Capital gain or (loss). Att Sch D if reqd. If not reqd, ck here. ☐ 495. 14 Other gains or (losses). Attach Form 4797 15a IRA distributions 15a 3,000. b Taxable amount (see instrs) 16a Pensions and annuities 16a b Taxable amount (see instrs) 17 Rental real estate, royalties, partnerships, S corporations, trusts, etc. Attach Schedule E 18 Farm income or (loss). Attach Schedule F 19 Unemployment compensation 20a Social security benefits 20a b Taxable amount (see instrs) 21 Other income See Statement 1 22 Add the amounts in the far right column for lines 7 through 21. This is your total income. 6,708.																													
Adjusted Gross Income	23 Educator expenses (see instructions) 23 24 Certain business expenses of reservists, performing artists, and fee-basis government officials. Attach Form 2106 or 2106-EZ 24 25 IRA deduction (see instructions) 25 26 Student loan interest deduction (see instructions) 26 27 Tuition and fees deduction (see instructions) 27 28 Health savings account deduction. Attach Form 8889 28 29 Moving expenses. Attach Form 3903 29 30 One-half of self-employment tax. Attach Schedule SE 30 31 Self-employed health insurance deduction (see instrs) 31 32 Self-employed SEP, SIMPLE, and qualified plans 32 33 Penalty on early withdrawal of savings 33 34a Alimony paid b Recipient's SSN 34a 35 Add lines 23 through 34a 35 0. 36 Subtract line 35 from line 22. This is your adjusted gross income. 6,708.																													
BAA For Disclosure, Privacy Act and Paperwork Reduction Act Notice, see instructions. FDIA0112L 11/10/04 Form 1040 (2004)																														

Form 1040 (2004) RUSTIN R HOWARD		529-90-3650 Page 2												
Tax and Credits	37 Amount from line 36 (adjusted gross income) 37 6,708. 38a Check ☐ You were born before January 2, 1940, ☐ Blind. Total boxes if: ☐ Spouse was born before January 2, 1940, ☐ Blind. checked ☒ 38a b If your spouse itemizes on a separate return, or you were a dual-status alien, see instructions and check here. 38b ☐													
Standard Deduction for -- • People who checked any box on line 38a or 38b or who can be claimed as a dependent, see instructions. • All others: Single or Married filing separately, \$4,850 Married filing jointly or Qualifying widow(er), \$9,700 Head of household, \$7,150	39 Itemized deductions (from Schedule A) or your standard deduction (see left margin). 39 5,227. 40 Subtract line 39 from line 37. 40 1,481. 41 If line 37 is \$107,025 or less, multiply \$3,100 by the total number of exemptions claimed on line 6d. If line 37 is over \$107,025, see the worksheet in the instructions. 41 3,100. 42 Taxable income. Subtract line 41 from line 40. 42 0. 43 Tax (see instrs). Check if any tax is from: a ☐ Form(s) 8814 b ☐ Form 4972 43 0. 44 Alternative minimum tax (see instructions). Attach Form 6251. 44 0. 45 Add lines 43 and 44. 45 0.													
	46 Foreign tax credit. Attach Form 1116 if required. 46 47 Credit for child and dependent care expenses. Attach Form 2441. 47 48 Credit for the elderly or the disabled. Attach Schedule R. 48 49 Education credits. Attach Form 8863. 49 50 Retirement savings contributions credit. Attach Form 8880. 50 51 Child tax credit (see instructions). 51 52 Adoption credit. Attach Form 8839. 52 53 Credits from: a ☐ Form 8396 b ☐ Form 8859 53 54 Other credits. Check applicable box(es): a ☐ Form 3800 b ☐ Form 8801 c ☐ Specify 54													
	55 Add lines 46 through 54. These are your total credits. 55													
	56 Subtract line 55 from line 45. If line 55 is more than line 45, enter -0-. 56 0.													
	Other Taxes													
	57 Self-employment tax. Attach Schedule SE. 57													
	58 Social security and Medicare tax on tip income not reported to employer. Attach Form 4137. 58													
	59 Additional tax on IRAs, other qualified retirement plans, etc. Attach Form 5329 if required. 59 100.													
	60 Advance earned income credit payments from Form(s) W-2. 60													
	61 Household employment taxes. Attach Schedule H. 61													
62 Add lines 56-61. This is your total tax. See Statement 2 150. 62 250.														
Payments	63 Federal income tax withheld from Forms W-2 and 1099. 63 64 2004 estimated tax payments and amount applied from 2003 return. 64 65a Earned income credit (EIC). 65a b Nontaxable combat pay election. 65b 66 Excess social security and tier 1 RRTA tax withheld (see instructions). 66 67 Additional child tax credit. Attach Form 8812. 67 68 Amount paid with request for extension to file (see instructions). 68 69 Other pmts from: a ☐ Form 2439 b ☐ Form 4136 c ☐ Form 8885 69 70 Add lines 63, 64, 65a, and 66 through 69. These are your total payments. 70 0.													
Refund	71 If line 70 is more than line 62, subtract line 62 from line 70. This is the amount you overpaid. 71 72a Amount of line 71 you want refunded to you. 72a b Routing number. c Type: ☐ Checking ☐ Savings d Account number. 73 Amount of line 71 you want applied to your 2005 estimated tax. 73													
Amount You Owe	74 Amount you owe. Subtract line 70 from line 62. For details on how to pay, see instructions. 74 250. 75 Estimated tax penalty (see instructions). 75													
Third Party Designee	Do you want to allow another person to discuss this return with the IRS (see instructions)? ☒ Yes. Complete the following. ☐ No Designee's name ☒ Preparer Phone no. Personal identification number (PIN)													
Sign Here	Under penalties of perjury, I declare that I have examined this return and accompanying schedules and statements, and to the best of my knowledge and belief, they are true, correct, and complete. Declaration of preparer (other than taxpayer) is based on all information of which preparer has any knowledge. <table border="0" style="width: 100%;"> <tr> <td style="width: 50%;">Your signature</td> <td style="width: 10%;">Date</td> <td style="width: 20%;">Your occupation</td> <td style="width: 20%;">Daytime phone number</td> </tr> <tr> <td></td> <td></td> <td>EXECUTIVE</td> <td>850 437-5880</td> </tr> <tr> <td>Spouse's signature. If a joint return, both must sign.</td> <td>Date</td> <td>Spouse's occupation</td> <td></td> </tr> </table>		Your signature	Date	Your occupation	Daytime phone number			EXECUTIVE	850 437-5880	Spouse's signature. If a joint return, both must sign.	Date	Spouse's occupation	
Your signature	Date	Your occupation	Daytime phone number											
		EXECUTIVE	850 437-5880											
Spouse's signature. If a joint return, both must sign.	Date	Spouse's occupation												
Paid Preparer's Use Only	Preparer's signature ☒ Thomas R. Hatfield Date 3/30/05 Check if self employed ☒ Firm's name (or yours if self-employed) address, and ZIP code Tom Hatfield, CPA P.O. Box 1107 Dryden, NY 13053 EIN 133-38-5768 Phone no. (607) 835-6300													

(Revised Dec 03, 2004) (US-104)

US Department of Housing and Urban Development

0310 (Rev. 1/02/02)

A.

SETTLEMENT STATEMENT

B. Type of Loan

1. ☐ FHA ☒ FmHA ☐ Conv. Unins.	6. File Number 01344-104690	7. Loan Number: 78903242	8. Mortgage Ins. Case #:
4. ☐ VA ☒ Conv. Ins.			

C. NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "OC" were paid outside the closing; they are shown here for information purposes and are not included in the totals.

D. NAME AND ADDRESS OF BORROWER:

R. R. HOWARD & Calle Hermosa Pensacola Beach, FL 32561

E. NAME AND ADDRESS OF SELLER:

DONNA LEE 9423 S. Hollybrook Dr., #201 Pensacola Pines, FL 32025

F. NAME AND ADDRESS OF LENDER:

WHITNEY NATIONAL BANK 410 Labarre Road Jefferson, LA 70121

G. PROPERTY LOCATION:

431-B East Zarragossa Street Pensacola, FL 32501

H. SETTLEMENT AGENT:

Emmanuel, Sheppard & Condon (850) 433-6581 Contact: Janet Rogers

PLACE OF SETTLEMENT:

30 S. Spring Street Pensacola, FL 32501

I. SETTLEMENT DATE:

12/03/2004

DISBURSEMENT DATE:

12/03/2004

J. SUMMARY OF BORROWER(S) TRANSACTION

100. GROSS AMOUNT DUE FROM BORROWER :

101. Contract sales price	360,000.00
102. Personal Property	
103. Settlement charges to borrower (line 1400)	12,613.69
104.	
105.	

Adjustments for items paid by Seller in advance

106. City/town taxes	
107. County taxes 12/03/2004 to 12/31/2004	194.92
108. Assessments	
109.	
110.	
111.	
112.	
120. Gross Amount Due From Borrower	372,808.61

200. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :

201. Deposit or earnest money	10,000.00
202. Principal amount of new loan(s)	292,000.00
203. Existing loan(s) taken subject to	
204.	
205.	
206.	
207.	
208.	
209.	

Adjustments for items unpaid by Seller in advance

30. City/town taxes	
31. County taxes	
32. Assessments	
33.	
34.	
35.	
36.	
37.	
38.	
39.	

20. Total Paid By/For Borrower 302,000.00

00. CASH AT SETTLEMENT FROM/TO BORROWER :

01. Gross Amount due from borrower (line 120)	372,808.61
02. Less amounts paid by/for borrower (line 220)	302,000.00
03. Cash [X]From []To Borrower	70,808.61

K. SUMMARY OF SELLER(S) TRANSACTION

400. GROSS AMOUNT DUE TO SELLER :

401. Contract sales price	360,000.00
402. Personal Property	
403.	
404.	
405.	

Adjustments for items paid by Seller in advance

406. City/town taxes	
407. County taxes 12/03/2004 to 12/31/2004	194.92
408. Assessments	
409.	
410.	
411.	
412.	
420. Gross Amount Due Seller	360,194.92

500. REDUCTIONS IN AMOUNT DUE TO SELLER :

501. Excess deposit (see instructions)	
502. Settlement charges to seller (line 1400)	16,718.50
503. Existing loan(s) taken subject to	
504. Payoff Mortgage to Wachovia Mortgage Corp. thru	298,960.33
505. Payoff	
506. 2004 Taxes	2,460.08
507.	
508.	
509.	

Adjustments for items unpaid by Seller in advance

510. City/town taxes	
511. County taxes	
512. Assessments	
513.	
514.	
515.	
516.	
517.	
518.	
519.	

520. Total Reduction Amount Due Seller 318,138.91

600. CASH AT SETTLEMENT TO/FROM SELLER :

601. Gross amount due to seller (line 420)	360,194.92
602. Less reductions in amt. due seller (line 520)	318,138.91
603. Cash [X]To []From Seller	42,056.01

SETTLEMENT STATEMENT		
Total Sales-Broker's Commission based on price	Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
Listing Realtor Commission To: Tanner Realty		
Selling Realtor Commission		
Commission paid at Settlement		46,000.00
ITEMS PAYABLE IN CONNECTION WITH LOAN		
Loan Origination Fee		
Loan Discount		
Appraisal Fee		
Credit Report		
Lender's Inspection Fee		
Mortgage Insurance Application Fee		
ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE		
Interest from		
Mortgage Insurance Premium for		
Hazard Insurance Premium for		
RESERVES DEPOSITED WITH LENDER		
1. Hazard insurance		
2. Mortgage insurance		
3. City property taxes		
4. County property taxes		
5. Annual assessments		
6.		
7.		
8. Aggregate Accounting Adjustment		
TITLE CHARGES		
1. Settlement or closing fee To: Emmanuel, Sheppard & Condon	250.00	
2. Abstract or title search To: American Pioneer Title Insurance Company	110.00	
3. Title examination To: Emmanuel, Sheppard & Condon	25.00	
4. Title insurance binder		
5. Document preparation To: Emmanuel, Sheppard & Condon	200.00	
6. Notary Fees		
7. Attorney's Fees To: Clark, Partington, Han		350.00
Includes above item numbers: 1		
8. Title Insurance To: American Pioneer Title Insurance Company & ES&C	6,398.25	
Includes above item numbers: 2		
1. Lender's coverage @		
1. Owner's coverage 1,529,226.28 @ 6,398.25		
1.		
2.		
3. Overnight Courier & Handling Fees To: ES&C GL 600.10 Acct.		40.00
GOVERNMENT RECORDING AND TRANSFER CHARGES		
1. Recording fees		
2. City/county tax/stamps		
3. State tax/stamps Deed \$10,705.10 Mortgage \$0.00 To: Clerk of the Court		10,705.10
4. Recording Releases To: ES&C GL 600.10 Acct.		12.00
5. Record Assignment of Lease To: Clerk of the Court	10.50	
6. Record Power of Attorney To: Clerk of the Court		6.00
ADDITIONAL SETTLEMENT CHARGES		
1. Survey		
2. Pest inspection To: Superior Termite & Pest Management		75.00
3. SRIA Lease (3/4/04-3/3/05) To: Santa Rosa Island Authority	1,293.82	
4. Home Warranty To: American Home Shield		550.00
5. Home Inspection To: David Walker Home Inspection Service	300.00	
6. A/C Inspection To: M.D. Air Conditioning	55.00	
1. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)	8,642.57	57,738.10

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BORROWER(S):

TIN B. HOWARD

SELLER(S):

JOHN R. GLAS

UD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Emmanuel, Sheppard & Condon

Date

Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and other fees) have been paid or will be paid upon receipt of final bills.

It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For more, see Title 18 U.S. Code Section 1001 and Section 1010.

Revised Feb 26, 2004 (15-1)

U.S. Department of Housing and Urban Development
SETTLEMENT STATEMENT

OMB No. 2502-0205

Type of Loan			
1. FHA 2 [] FinHA 3 [] Conv Unins		6. File Number: 00451-098512	7. Loan Number:
2. VA 5 [] Conv Ins		8. Mortgage Ins. Case #	
NOTE: This form is furnished to give you a statement of actual settlement costs. Amounts paid to and by the settlement agent are shown. Items marked "N/A" were paid outside the closing. They are shown here for information only and are not included in the totals.			
NAME AND ADDRESS OF BORROWER: RUSTIN R. HOWARD 2101 Scenic Highway, Apt. #D-101 Pensacola, FL 32503			
NAME AND ADDRESS OF SELLER: JOHN R. GLAS 1001 Old Metairie Drive Metairie, LA 70001			
NAME AND ADDRESS OF LENDER:			
PROPERTY LOCATION: 3 Calle Hermosa Pensacola Beach, FL 32561			
SETTLEMENT AGENT: Emmanuel, Sheppard & Condon (850) 433-6581 Contact: Janet Rogers		PLACE OF SETTLEMENT: 30 S. Spring Street Pensacola, FL 32501	
SETTLEMENT DATE: 02/27/2004		DISBURSEMENT DATE: 02/27/2004	

SUMMARY OF BORROWER(S) TRANSACTION		K. SUMMARY OF SELLER(S) TRANSACTION	
0. GROSS AMOUNT DUE FROM BORROWER :		400. GROSS AMOUNT DUE TO SELLER :	
1. Contract sales price	1,529,226.28	401. Contract sales price	1,529,226.28
2. Personal Property		402. Personal Property	
3. Settlement charges to borrower (line 1400)	8,642.57	403.	
4.		404.	
5.		405.	
Adjustments for items paid by Seller in advance		Adjustments for items paid by Seller in advance	
6. City/town taxes		406. City/town taxes	
7. County taxes		407. County taxes	
8. Assessments		408. Assessments	
9. SRJA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21	409. SRJA Lease @ \$1293.82/yr 02/27/2004 to 03/03/20	21.21
0.		410.	
1.		411.	
2.		412.	
0. Gross Amount Due From Borrower	1,537,890.06	420. Gross Amount Due Seller	1,529,247.49
0. AMOUNTS PAID BY OR IN BEHALF OF BORROWER :		500. REDUCTIONS IN AMOUNT DUE TO SELLER :	
1. Deposit or earnest money	35,250.00	501. Excess deposit (see instructions)	
2. Principal amount of new loan(s)		502. Settlement charges to seller (line 1400)	57,738.10
3. Existing loan(s) taken subject to		503. Existing loan(s) taken subject to	
4.		504. Payoff Mortgage to AmSouth Bank	229,622.17
5.		505. Payoff Mortgage to Bank of America	92,051.82
6.		506.	
7.		507.	
8.		508.	
9.		509.	
Adjustments for items unpaid by Seller in advance		Adjustments for items unpaid by Seller in advance	
0. City/town taxes		510. City/town taxes	
1. County taxes		511. County taxes	
2. Assessments		512. Assessments	
3. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40	513. MSBU/Fire Assmt 01/01/2004 to 02/27/2004	64.40
4.		514.	
5.		515.	
6.		516.	
7.		517.	
8.		518.	
9.		519.	
0. Total Paid By/For Borrower	35,314.40	520. Total Reduction Amount Due Seller	379,476.49
0. CASH AT SETTLEMENT FROM/TO BORROWER :		600. CASH AT SETTLEMENT TO/FROM SELLER :	
1. Gross Amount due from borrower (line 120)	1,537,890.06	601. Gross amount due to seller (line 420)	1,529,247.49
2. Less amounts paid by/for borrower (line 220)	35,314.40	602. Less reductions in amt. due seller (line 520)	379,476.49
3. Cash [X]From []To Borrower	1,502,575.66	603. Cash [X]To []From Seller	1,149,771.00

SETTLEMENT CHARGES		
700. Total Sales/Broker's Commission based on price		
701. Listing Realtor Commission To: Tanner Realty	Paid from Borrower's Funds at Settlement	Paid from Seller's Funds at Settlement
702. Selling Realtor Commission		
703. Commission paid at Settlement		13,680.00
800. ITEMS PAYABLE IN CONNECTION WITH LOAN		
801. Loan Origination Fee		
802. Loan Discount		
803. Appraisal Fee To: WHITNEY NATIONAL BANK	450.00	
804. Credit Report To: EQUIFAX	18.00	
805. Lender's Inspection Fee		
806. Mortgage Insurance Application Fee		
807. Underwriting fee To: WHITNEY NATIONAL BANK	200.00	
808. Document Preparation Fee To: WHITNEY NATIONAL BANK	100.00	
809. Flood Certification Fee To: GEOTRAC	10.00	
810. Tax Service Fee To: WHITNEY NATIONAL BANK	71.00	
900. ITEMS REQUIRED BY LENDER TO BE PAID IN ADVANCE		
901. Interest from 12/03/2004 to 01/01/2005 @ 5 1/4% To: WHITNEY NATIONAL BANK	1,479.00	
902. Mortgage Insurance Premium for		
903. Hazard Insurance Premium for (Windstorm) To: Underwood-Anderson	1,913.00	
904. Hazard Insurance Premium To: Underwood-Anderson	947.00	
000. RESERVES DEPOSITED WITH LENDER		
001. Hazard insurance 3 months @ 159.42 per month To: WHITNEY NATIONAL BANK	478.26	
002. Mortgage insurance		
003. City property taxes		
004. County property taxes 4 months @ 211.35 per month To: WHITNEY NATIONAL BANK	845.40	
005. Annual assessments		
006.		
007.		
008. Aggregate Accounting Adjustment To: WHITNEY NATIONAL BANK	-211.42	
100. TITLE CHARGES		
101. Settlement or closing fee To: Emmanuel, Sheppard & Condon	250.00	
102. Abstract or title search To: Attorneys Title Insurance Fund	85.00	
103. Title examination To: Emmanuel, Sheppard & Condon	25.00	
104. Title insurance binder		
105. Document preparation To: Emmanuel, Sheppard & Condon	200.00	
106. Notary Fees		
107. Attorney's Fees		
(Includes above item numbers:)		
108. Title Insurance To: Attorneys Title Insurance Fund & ES&C	1,900.00	
(Includes above item numbers:)		
09. Lender's coverage 292,000.00 @ 25.00		
10. Owner's coverage 360,000.00 @ 1,875.00		
11. Alta Form 8.1 FF9 To: Attorneys Title Insurance Fund & ES&C	215.00	
12.		
13. Overnight Courier & Handling Fees To: ES&C GL 600 10 Acct	20.00	20.00
200. GOVERNMENT RECORDING AND TRANSFER CHARGES		
01. Recording fees: Deed \$10.00 Mortgage \$0.00 To: Clerk of the Court	10.00	
02. City/county tax/stamps: Mortgage \$584.00 To: Clerk of the Court	584.00	
03. State tax/stamps: Deed \$2,520.00 Mortgage \$1,022.00 To: Clerk of the Court	1,022.00	2,520.00
04. Recording Releases To: ES&C GL 600.10 Acct.		20.00
05. Record Power of Attorney (Buyer) To: Clerk of the Court	10.00	
06. Record Power of Attorney (Seller) To: Clerk of the Court		18.50
300. ADDITIONAL SETTLEMENT CHARGES		
301. Survey To: Lands End Surveying, Inc.		385.00
302. Pest inspection To: Superior Termite & Pest Management		75.00
303. Termite Treatment To: Superior Termite & Pest Management	917.00	
304. Home Inspection To: C. A. Capital Corp. \$300 POC by Buyer to C. A. Capital C corp.		
305. Payoff #70701017752 To: CBSC/Cornell University	65.00	
306. Payoff \$359 \$188 \$144 & \$84 To: CBSC/Medical	775.00	
307. Payoff #1401600100000 To: Verizon Wireless	235.45	
400. Total Settlement Charges (enter on lines 103, Section J and 502, Section K)	12,613.62	16,718.50

I have carefully reviewed the HUD-1 Settlement Statement and to the best of my knowledge and belief, it is a true and accurate statement of all receipts and disbursements made on my part or by me in this transaction. I further certify that I have received a copy of HUD-1 Settlement Statement.

BROWER(S):

K. Howard
L. HOWARD By: *Maureen W. Howard*

SELLER(S):

Donna Lee
DONNA LEE By: *Donna Lee*

HUD-1 Settlement Statement which I have prepared is a true and accurate account of this transaction. I have caused or will cause the funds to be disbursed in accordance with this statement.

Emmanuel Sheppard & Condon
Emmanuel Sheppard & Condon

12/03/04
Date

Taxes have been prorated based on taxes for the year. Any re-proration will be handled between the buyer and seller. All utility bills (water, sewer, electric, cable and finance fees) have been paid or will be paid upon receipt of final bills.
FIND: It is a crime to knowingly make false statements to the United States on this or any other similar form. Penalties upon conviction can include a fine or imprisonment. For see: Title 18 U.S. Code Section 1001 and Section 1010.

138-2

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

CASE NO.: 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

The deposition of MARC M. MOSZKOWSKI, taken by the attorney for the Plaintiffs, commencing at approximately 9:25 a.m., on the 17th day of July, 2019, at 220 West Garden Street, Suite 603, Pensacola, Florida, before Connie L. Morse, Court Reporter and Notary Public at Large in and for the State of Florida.

1 I survived for more than two years on \$100 a month, and I
2 lost 55 pounds in the process.

3 Q I understand Ms. Tanner is a real estate
4 agent; is that correct?

5 A She is.

6 Q Does she do any real estate work for you?

7 A I have a question. Why do you ask me who she
8 was when you know perfectly well who she is?

9 Q I'm not here to answer your questions today.

10 A All right.

11 Q I'm here to find out what you know about the
12 case.

13 A Yes. She had worked for me on a real estate
14 deal in the spring of 2003.

15 Q And tell me how she -- I guess I want to
16 understand how Kathy introduced you and Rus to each other
17 and why that happened.

18 A You would need to ask her.

19 Q Well, did she tell you something, hey, I've
20 got a gentleman that can maybe provide some funding for some
21 of your projects? Was it something like that, or what
22 happened?

23 A Yeah. She said she knew a gentleman who was a
24 multi-millionaire who would be willing to invest in
25 projects, so talk to him.

1 A I don't think so. I could be wrong. Maybe a
2 thousand dollars or two.

3 Q Any substantial money?

4 A No.

5 Q Did Mr. Howard contribute money at that time;
6 do you know?

7 A I think he contributed \$5,000.

8 Q Did you all go out and hire a law firm to file
9 for the corporation?

10 A I didn't.

11 Q Did Mr. Howard?

12 A I believe he did.

13 Q Okay. Do you know the law firm he hired?

14 A I remember the name of one of the lawyers, but
15 I don't know if it was then or after. I don't know. But
16 the name was Chad McDaniel or McDaniels.

17 Q The company Deep obviously wasn't formed?

18 A No, because Deep, it's such a common name that
19 it was not available, so I proposed DeepGulf.

20 Q And that company was formed; is that correct?

21 A Yeah.

22 Q The shareholders at the time of formation were
23 whom?

24 A Were Rus Howard, who contributed \$5,000, as I
25 remember; and me, who contributed all the know-how.

1 subject to this agreement in 2005?

2 A In 2005 I hadn't read it.

3 Q That's not my question. Do you have any
4 reason to believe that you weren't subject to terms of this
5 agreement other than your argument that maybe you hadn't
6 read it in 2005 when you signed it?

7 A Give me an example.

8 Q Well, there are paragraphs related to
9 noncompetition, nonsolicitation of customers, those sorts of
10 things. Do you believe that you are subject to those
11 provisions?

12 A Perhaps.

13 Q Why do you say perhaps?

14 A Well, for one thing, you know, during all that
15 time Mr. Howard was not raising money for the company, so I
16 had to continue to work, and my work before I founded the
17 company was to work as a consultant and work in the oil and
18 gas business. The other thing is Mr. Howard knew 100
19 percent of everything I was doing. So I expected Mr. Howard
20 to tell me if I did anything that was incorrect. He never
21 told me that I did anything that was incorrect with regard
22 to those contracts.

23 On the other hand, he profited from those
24 contracts because I used the proceeds of those contracts to
25 support the company, to pay for my upkeep, to pay for the

1 binding.

2 THE WITNESS: You know, to this day -- and I'm
3 not a totally ignorant person. I have some
4 education. I understand English. To this day I
5 don't understand everything in this agreement. It's
6 so constricting that basically what it says is that
7 I'm an indentured servant even if I don't receive a
8 salary and I was sent back to where I came from.

9 So, basically, I don't understand this, but I
10 don't think I willfully did anything to go against
11 this agreement. And I also believe that if I had
12 done anything against this agreement, I would have
13 counted on Mr. Howard to tell me, hey, Marc, you
14 cannot do that because of the agreement. And, yeah,
15 I'm not an attorney, and this agreement is very
16 complex.

17 Q (By Mr. Ball) Are you still an officer of
18 DeepGulf, Inc. today?

19 A Yeah, it's been confirmed by Mr. Howard.

20 Q If you'll read paragraph 1 of this agreement
21 for me as well. Just read it to yourself.

22 A Yeah, I'm familiar with this agreement.

23 Q How do you understand -- what do you
24 understand that paragraph to mean?

25 A I understand that I should not accept

1 employment with any business or entity that is in
2 competition with the products or services being conceived,
3 designed, created, et cetera. But I also understand that
4 starting in 2008, I became the general manager of a company
5 that was not necessarily in competition and that I did not
6 make a secret of it and that Mr. Howard was fully aware of
7 that, and he never told me anything. You know, he's the
8 secretary of the company. He was the one I would trust to
9 tell me if anything was an issue. He never said anything.
10 And that was 11 years ago. Now, I'm not sure that Toke Oil
11 and Gas was in competition with DeepGulf. That is in
12 competition? No, I don't think it was in competition, but,
13 of course, it can be argued.

14 Q So you see that it could be argued either way;
15 is that correct?

16 A Yeah. I think the whole document is very --
17 what's the word -- ambiguous, and at the same time it's
18 extremely onerous.

19 Q But you signed it anyway?

20 A Oh, yeah, I signed whatever Mr. Howard was
21 giving me to sign, especially on the -- when was that?
22 Maybe September. Maybe I had been traveling. I can tell
23 you exactly where I was on the 15th of September, 2005.

24 Q That's okay. I don't need to know that.

25 A I had probably been, possibly been traveling

1 Inc.

2 Q So then what happened next? So there was this
3 e-mail exchange and a telephone conversation, although it
4 may not have been that you had the telephone conversation,
5 but there were these exchanges of contact information or
6 whatever. Then at some point you decided to go over to East
7 Timor to examine the opportunity; is that correct?

8 A So I think that was September 10th. The phone
9 conversation was inconsequential. What was of importance
10 were the number of e-mails that were exchanged, and then the
11 man floated the idea of my coming to Timor to give a
12 presentation.

13 Q Mr. Mitaxa?

14 A Mitaxa, yeah. And it took quite a while. And
15 on October 26, 2007, I decided to travel, and I bought
16 airline tickets with my own money. I didn't receive a
17 salary at the time.

18 Q Were you in contact with Mr. Howard or other
19 members of the board of directors saying, hey, I'm heading
20 over to East Timor October 26 or something like that? Did
21 you all have -- were you informing the other members of the
22 board of directors of this?

23 A I was inundating Mr. Howard with information.
24 I had been trying for years to involve Mr. Howard as much as
25 possible. He knew everything. I called him from Timor. I

1 directors said, oh, we need a president director general.
2 Do you want to be the president director general?

3 Q And how did you respond?

4 A Well, it took me about ten seconds of internal
5 conversation with myself to say, yes, of course, because if
6 I'm the president director general of Toke Oil and Gas, I
7 will be able to control the money in Toke -- well, at the
8 time it was Toke Petroleum. And I would be able to maximize
9 the revenue for DeepGulf. We would not be dependent on
10 someone else. I would make sure that the projects were well
11 managed, and I would make sure to send as much money as
12 possible to DeepGulf, Inc.

13 Q So I still don't understand. Why didn't you
14 just use Toke Petroleum?

15 A Because it would take too long to replace the
16 president director with another one, plus I was a foreigner.
17 It would take too long. And we had -- so I would think this
18 was like late February, early March 2008. So it would -- I
19 believe. So it would take too long. So their lawyer
20 decided, okay, what we need is a new company. We'll keep
21 Toke Petroleum the way it is, but we need a new company, and
22 let's call it Toke Oil and Gas. So that's the reason why
23 they had another Toke.

24 Q I'm going to show you a document. It's
25 entitled Toke Oil and Gas, S.A. Unanimous Shareholder

1 the island. It was an extremely dangerous place to be.

2 Q Okay. So did you tell the board of directors
3 of DeepGulf at that time that you felt that there were
4 reasons that it could not own the interest in Toke Oil and
5 Gas, S.A.?

6 A Yeah, and I was saying it.

7 MR. BOLLER: Can we clarify? When you make
8 reference to the board of directors, can you
9 identify whether that is still just Mr. Howard and
10 Mr. Moszkowski?

11 MR. BALL: I'm asking if he talked to anyone
12 on the board of directors at that time.

13 THE WITNESS: Yeah. I was talking with Mr.
14 Howard virtually every single day and sometimes
15 several times every single day. So I was saying
16 East Timor was in a state of civil war, and East
17 Timor was a brand new government. And, of course,
18 the job that Toke Petroleum was supposed to do,
19 which was the survey of the Timor Sea, for which I
20 had finally found someone who was willing to do it,
21 a company in Hong Kong.

22 So the client was the government of East
23 Timor. The contractor was Toke Oil and Gas. And we
24 had no choice by Toke Oil and Gas. Toke Oil and Gas
25 invited us to come to Timor, not to take the

1 A Yeah.

2 Q Did you relay those concerns specifically
3 about the contractual liability and whatnot to Mr. Howard or
4 anyone else that may have been on the board of directors at
5 that time?

6 A Nonstop. I had no secret from Mr. Howard.
7 You see, we've said --

8 Q Let me ask you another question. Did you have
9 those conversations by e-mail or by telephone or by Skype
10 message? How were those?

11 A Mostly by telephone or by voice when I was
12 here, mostly vocal.

13 Q Do you recall any e-mails that would have
14 relayed that way?

15 A Typically it's not the thing you want to put
16 in an e-mail.

17 Q Okay.

18 A Because, you know, it's very sensitive. And I
19 would also tell Bill Lott, who I think by that time some
20 money had been raised, and by that time I think he was
21 already a director. So my big concern was how can we put --
22 even if it had been legal, but it was not legal, it was not
23 legal for us to have DeepGulf between the subcontractor and
24 the government. But even if it had been legal, it would
25 have been reckless, and you know that because I put it in my

1 defenses I don't know how many times because the government
2 fails, and then EGS takes us to court to Singapore.

3 Now, by having Toke Oil and Gas here, what we
4 do is that we funnel as much money as possible to DeepGulf.
5 And if the government fails, well, then EGS takes Toke Oil
6 and Gas to court and me personally instead of taking the
7 company. So by putting my name here, I was protecting the
8 company. I was not trying to take anything from the
9 company. I was going on the frontline to get exposed to
10 hazard.

11 Q I understand your point.

12 MR. BOLLER: Can I make a point here? If the
13 deponent is going to ask questions of counsel, I
14 want counsel under oath because he's asked you a
15 series of questions.

16 MR. BALL: Counsel is not going to go under
17 oath or answer.

18 MR. BOLLER: That was a poor attempt at
19 levity.

20 THE WITNESS: Did I ask questions?

21 MR. BOLLER: Did you ask questions?

22 Q (By Mr. Ball) Let me move on to another
23 question for you, Mr. Moszkowski.

24 A And by the way --

25 Q Let me --

1 talking about an ultra deepwater survey.

2 Q Okay.

3 A The pipeline was way in the future.

4 Q Okay. But for the bureaucratic issues you
5 talked about and your concerns about liability and your
6 concerns about the state of affairs in East Timor, could
7 DeepGulf, Inc. have performed the survey that you're
8 discussing?

9 A No way.

10 Q Or found somebody to perform that survey?

11 A Okay. You mean could DeepGulf, Inc. have been
12 here?

13 Q Yes, sir.

14 A Well, first of all, the people who invited us,
15 Toke, they didn't invite us to go to Timor to steal the
16 business from them. They were business people. They
17 invited us to subcontract for them so that they would make a
18 lot of money like any business, you know. Americans don't
19 have a monopoly on greed. So we never had this opportunity.
20 You mean that all of a sudden these people, very nicely,
21 there they go into oblivion so that we can replace them?
22 No. Toke Oil and Gas was here, and you could not move it.
23 It would have been reckless anyhow to try to remove them.
24 There was no opportunity for DeepGulf here to replace Toke
25 Oil and Gas. It was not the deal.

1 answer to this e-mail to this day.

2 Q (By Mr. Ball) Are you familiar with that
3 e-mail? Is that an e-mail that you sent to Mr. Howard?

4 A Yes, sir.

5 Q And in that e-mail you claim that you had to
6 rewrite all the accounting and financials at the end of 2010
7 after finding that Gino Favaro never kept the books for
8 Toke; is that right?

9 A Yeah.

10 Q Just a minute ago you said you weren't really
11 familiar with the financials while you were working with
12 Toke?

13 A No, I said that I was keeping an accounting of
14 everything on the project.

15 Q A financial accounting?

16 A Okay. Look at the date, 2012. That was after
17 the project. During the project I was not doing the
18 accounting.

19 Q After the fact you said you had to rewrite all
20 the accounting and financials for Toke?

21 A I did, and I sent the statements to Mr.
22 Howard.

23 Q How did you do that? How did you rewrite the
24 financials for Toke?

25 A I analyzed the -- I was in Timor. I analyzed

1 A I know I related it to Bill Lott. This I know
2 for sure. And for me it was a matter of course that,
3 obviously, Rus Howard could not have ignored that I had some
4 revenue since my tax exposure was 160 percent of my DeepGulf
5 salary. And he knew everything about it.

6 Q Let me ask you this.

7 A Intimately.

8 Q How did he know that?

9 A Because we were talking all the time because
10 he came to my estate in France, because in 2006 I tried to
11 borrow 50 percent of my tax exposure because there was a
12 deal at the time with the government that if I paid 50
13 percent before my aunt died then it would be okay. We
14 discussed it for a long time, then he decided not to give me
15 a loan, which was perfectly okay. Then he arranged this
16 fraudulent loan between his friend Mr. Rumsey and me for the
17 last installment. He knew everything about my tax payments.

18 Q Did you ever show Mr. Howard your tax return
19 for those time periods?

20 A He established them.

21 Q I'm asking you the question. Did you ever
22 show Mr. Howard your tax returns for that time period?

23 A Mr. Howard established my tax returns during
24 that period.

25 Q When you say established, what do you mean?

1 conversations with Bill Lott and other than perhaps this
2 inference that you're trying to make about Mr. Howard knew
3 about my taxes, and therefore, he knew about the payments
4 from Toke, were there any direct conversations of, hey, Mr.
5 Howard, I'm receiving -- I've received \$345,000 from Toke
6 Oil and Gas?

7 A I don't remember. What I remember, that I
8 sent all the information by e-mail in 2011 and 2012 with the
9 detail of the director salaries, and he acknowledged it.

10 Q You sent that in financial statements; is that
11 correct?

12 A Yeah.

13 Q You didn't send it in a form of a narrative
14 from you saying that I am receiving these monies or
15 something like that in an e-mail or some kind of other
16 communication; is that correct?

17 A I don't think I should have. Now, Mr. Howard
18 was free to ask me any question he wanted, which he didn't
19 because he didn't care.

20 Q But you've answered my question. I
21 understand. Now, tell me about your relationship with Mr.
22 Howard over time.

23 A He was one of my two or three best friends.
24 We went flying a lot. I trusted him with my life.

25 Q That was in the 2004, '5, '6 time period?

1 never purchased.

2 Q Tell me about that, the shares of the original
3 shareholder. Which original shareholder?

4 A Vicente Ximenes and myself.

5 Q Are you saying your shares were never
6 transferred properly?

7 A They were never paid to me, but it was not a
8 lot. It was only \$100. But I don't remember Mr. Howard
9 giving me \$100. But more importantly, the payment to
10 Vicente Ximenes was never made.

11 Q How much was Vicente's payment?

12 A He was supposed to receive \$100,001.

13 Q He received some of that, correct?

14 A No, he received none of that.

15 Q Has he complained to you about that?

16 A No.

17 Q Is that a problem?

18 A No.

19 MR. BOLLER: Again, question.

20 THE WITNESS: Sorry.

21 MR. BOLLER: Pause, answer.

22 THE WITNESS: Okay.

23 Q (By Mr. Ball) And there was an assignment, a
24 document that assigned Vicente's shares to DeepGulf; is that
25 correct?

1 Q When you were paid by Toke Oil and Gas, how
2 was your salary or payment determined?

3 A It depended on the availability of funds.

4 Q Was it voted upon by the board of directors?
5 How was that determined?

6 A There was no board of directors.

7 Q Sure there was.

8 A Okay. There was East Timor. You ever been in
9 that kind of country? And plus, at the time it was only
10 Vicente Ximenes and me. I never received money while Gino
11 Favaro was in the company. And the way he would approve
12 that, he was the one signing the checks, signing the wire
13 transfers.

14 Q Would you make a request of Vicente and say, I
15 need some payment, or how did that occur? How did you get
16 paid?

17 A I told Vicente, okay, I need to pay my taxes.
18 At first I told Vicente, I'm in a quandary. I received less
19 from DeepGulf than my taxes. One day he said, why don't you
20 take some of the money that I'm taking? I'm going to give
21 you that money.

22 Q Did Vicente reduce the amount that he was
23 taking?

24 A Yeah.

25 Q So Vicente was receiving more than \$110,000 at

1 one point?

2 A Yeah.

3 Q Did he reduce what he was taking by \$110,000 a
4 year so that you could take it and pay taxes?

5 A \$110,000, that was what I received from
6 DeepGulf. If I had not received any money from Toke, it
7 would have gone to Vicente, not to anybody else. And he
8 would have spent it.

9 Q Did you ever relay that to the board of
10 directors at DeepGulf, that Vicente reduced his payment and
11 you received more?

12 A No. By the way, I relayed it in my defenses
13 like a dozen times.

14 Q But prior to the litigation, did you ever
15 relay it to anybody at DeepGulf?

16 A No, because to me, obviously, Mr. Howard, they
17 didn't pay any attention to this because despite the
18 financial statement that I sent him, despite our talking
19 about those financial statements, he never asked me a
20 question about director salaries. So, obviously, to me he
21 didn't give a damn. By the way, as long as money was
22 flowing in, he did give a damn.

23 Q Again, I want to make sure that we are clear
24 on this. The only document that you sent to Mr. Howard that
25 may have indicated that salaries were being paid or

1 me and they call it the board, Mr. Howard. Not the board.
2 I don't have a problem with the board. I have a problem
3 with Mr. Howard. So if they sought to uncover the detail,
4 if they really had sought to uncover the details, they would
5 have uncovered the details, whatever details I have, but not
6 by accusing me of being a thief before uncovering the
7 details.

8 Q Did the board do anything else to seek the
9 details?

10 A Yeah, through insulting me and calling me a
11 thief.

12 Q But other than that, prelitigation, pre --

13 A No.

14 Q -- these problems arising?

15 A No. Predispute, never. You see, Mr. Howard
16 received the financial documents in 2011, 2012. He never
17 asked a question. Evidently he didn't care.

18 Q I'm trying to make sure we don't go over
19 ground we've already covered, so it will take me a second.

20 Allegation 64, are you there, Mr. Moszkowski?

21 A Say it again. Am I here?

22 Q Allegation No. 64, are you on that page?

23 A Yeah.

24 Q Can you review that statement, please?

25 A DeepGulf began to seek additional funding for

1 brains of the operation, I guess, with regard to the
2 technological matters in East Timor. I mean, you're the
3 only one that really knew what was going on there, correct?

4 A If you're trying to flatter me --

5 Q Is it working?

6 A No, you succeed.

7 Q Okay.

8 A I love it.

9 Q But you're the only one who knew about those
10 matters?

11 A Yeah.

12 Q You're the only one that knew about any
13 activities going on in East Timor; is that correct?

14 A Yes, sir.

15 Q No one else in DeepGulf, as far as you knew,
16 knew about that stuff?

17 A Except what I told him. And you may have
18 noticed I'm talkative. I don't retain information. I talk
19 too much. So how I could have hidden stuff from Mr. Howard
20 for 15 years is beyond my understanding.

21 Q Paragraph 71 says, Moszkowski prohibited Rus
22 Howard from contacting clients and any individual in East
23 Timor to obtain or confirm information. And you deny that.
24 Is that correct?

25 A Yes.

1 A No. The contract was in the visa.

2 Q Count III, work and labor done. One sentence
3 makes up this complaint.

4 A Okay.

5 Q Have you had a chance to read paragraph 7?

6 A I worked for the plaintiff for several years
7 without any compensation from 2013 until now or whenever
8 some of my credentials were removed unilaterally by Mr.
9 Howard. And during that period I returned an income to the
10 company. So I worked as a consultant, had all of my revenue
11 as a consultant credited to the company and still did not
12 receive a salary. I believe that the company owes me money
13 for that -- salary for that money that I returned to the
14 company.

15 Q So what revenues were received by DeepGulf
16 subsequent to 2012 because I know that's when the East
17 Timor --

18 A I think it was about -- I think it was
19 \$100,000 exactly.

20 Q Total?

21 A I think. There was a total received from that
22 French contractor of \$125,000. So let's say it was -- yeah,
23 it was a little over \$100,000.

24 Q That French contractor, what is that?

25 A That was the French client that I consulted

1 you?

2 A That's what any other company would do.

3 Q I think I understand your position.

4 A The question is not that I was denied a green
5 card. It's that after 20 years I still don't have a green
6 card, and I will never have one.

7 Q Count V of your counterclaim is entitled fraud
8 based upon promise to pay. I'll let you read through the
9 series of allegations under that count, and then you tell me
10 what the basis for -- what the factual basis for your count
11 is, count V.

12 A That Mr. Howard promised on several occasions
13 that he would raise funds, millions of dollars, which would
14 have made those projects possible, and he never did. As a
15 consequence, there was no money in the company, and as a
16 consequence, I was -- you know, in March 2013 he stopped
17 paying me any money.

18 Q DeepGulf stopped paying you money, correct?

19 A He was DeepGulf at the time. He was the only
20 one with power on the bank account.

21 Q But your money came from DeepGulf, correct?
22 They were written on DeepGulf checks?

23 A Okay. The checks were written by Mr. Howard.

24 Q My question is, your checks came from
25 DeepGulf, correct?

1 texting conversation.

2 A What is this? This doesn't make much sense to
3 me.

4 Q This is something we received from you in
5 response to some of our questions.

6 A This?

7 Q Okay. We provided it to you. I'm sorry.

8 A Yeah, because this date is September 28, 2012.
9 I received my last salary in March 2013. So why would he
10 send me that six months prior?

11 Q Let me ask you this: Did you ever agree in a
12 conversation with Mr. Howard to not accrue any further
13 executive officer payroll until the company had funds to
14 pay? Was that an agreement between you and Mr. Howard?

15 A This is also double entendres. I agreed that
16 he stop paying me salaries. I didn't agree that he wouldn't
17 owe me salaries once the money comes back.

18 Q Okay.

19 A You know, that's the kind of things he does.

20 Q Okay. So let me just ask the question, then
21 we can follow up with other questions. So it says, we
22 agreed not to accrue any further executive officer payroll
23 until the company has funds to pay. So is that something
24 that you agreed to or not?

25 A Okay. Tell me what is the exact significance

1 Q Why do you say probably?

2 A Probably because, like I said, this is a very
3 onerous noncompete agreement, so I probably could have
4 fought it in court. But the way it is, yeah, I was bound to
5 its terms until I fought it.

6 Q And in this letter you mentioned that you
7 refused to let Mr. Howard do his due diligence in Timor. We
8 already kind of went through that discussion.

9 A Yeah, because --

10 Q Hang on. Let me ask the question.

11 A I'm sorry. I'm sorry again.

12 Q You said you would refuse -- I want to make
13 sure that the answer you already gave answers the question
14 to that statement that you would not let Mr. Howard do his
15 due diligence in Timor. Is it the same answer that you gave
16 before?

17 A Yeah, that there was no due diligence because
18 there was nothing to do due diligence on. That's what I
19 meant. It was Mr. Howard that was complaining that I would
20 not allow him to do due diligence. There was nothing to do
21 due diligence on.

22 Q But you write -- this is the sentence, and let
23 me read the sentence, and I'll let you -- then I'm going to
24 ask you a question. I'll let you respond. Then Mr. Howard
25 became apparently obsessed with my refusal to let him

CERTIFICATE OF REPORTER

STATE OF FLORIDA)

COUNTY OF ESCAMBIA)

I, Connie L. Morse, Court Reporter, certify that I was authorized to and did stenographically report the foregoing deposition; and that the transcript is a true record and complete record of my stenographic notes; that the witness did not waive reading and signing.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney, or counsel connected with the action, nor am I financially interested in the action.

WITNESS my hand this 7th day of August, 2019.

CONNIE L. MORSE
Court Reporter

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

CASE NO.: 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

The deposition of RUSTIN HOWARD, taken by the attorney for the Defendant, commencing at approximately 10:20 a.m., on the 19th day of July, 2019, at 220 West Garden Street, Suite 603, Pensacola, Florida, before Connie L. Morse, Court Reporter and Notary Public at Large in and for the State of Florida.

1 Q And what damage do you allege was caused as a
2 result of these falsehoods that you say were Mr.
3 Moszkowski's responsibility?

4 A The damages would be suffered by any person
5 who invested in the corporation.

6 Q How?

7 A They would have invested under false and
8 misleading information.

9 Q Okay. And have you made a calculation of who
10 invested based on that information that you say was false
11 and misleading and what amounts?

12 A Every investor in the second round of funding
13 would have been damaged.

14 Q Okay. And is there a record of the investors
15 in the second round of funding and the amounts they
16 invested?

17 A Yes, there is.

18 Q And it has contact information for each of
19 those investors?

20 A Is there a record?

21 Q That was what the question was. Is there a
22 record that lists the investors in the second round of
23 funding and the amount that they invested and contact
24 information on each investor?

25 A There should be, yes.

1 that they suffered? I mean, their amounts of investments
2 are going to be listed.

3 A Yes.

4 Q Is it your position that the plaintiffs in
5 this lawsuit have no value now?

6 A That the plaintiffs have no value now?

7 Q Yeah. How do you calculate the loss that the
8 investors suffered? How do you make that determination?

9 A I don't know.

10 Q Do you believe that in your skills as a result
11 of your education and experience you have the ability to
12 ascertain what loss any particular investor in the second
13 round had as a result of these falsehoods you say were Mr.
14 Moszkowski's responsibility?

15 A I can't say that I do.

16 Q Based on your education and experience, can
17 you identify who would have the ability to ascertain what
18 damage any particular investor in the second round suffered
19 as a result of this alleged falsehood by Mr. Moszkowski in
20 the PPM?

21 A I can't say I know the name of anyone who
22 could.

23 Q But you feel like it would need to be somebody
24 other than yourself?

25 A Yes.

1 agreement. It looks to me like -- it's not clear who it's
2 written to. May 12, 2008. It refers to a verbal agreement
3 that Toke agrees to pay DeepGulf 10 percent of each of EGS'
4 invoices regarding the bathymetric survey.

5 Q And I'll represent to you that I printed the
6 wrong copy and that we have a copy signed by both you and
7 Vicente Ximenes and Gino Favaro, but this is the copy only
8 signed by you. So I just need you to verify, is that your
9 signature?

10 A That's my signature, yes.

11 Q And your understanding of the agreement as
12 reflected in this document is that there was to be 10
13 percent commission paid by Toke to DeepGulf based on EGS
14 invoices?

15 A Yes.

16 MS. BOLLER: Okay.

17 MR. BOLLER: I'm going to take over and try
18 to push us through to the end.

19 THE WITNESS: I need a bio break.

20 MR. BOLLER: Okay.

21 (A recess was taken.)

22 MR. BOLLER: Again, I want to express my
23 appreciation for the professional courtesy of
24 allowing questioning to be handled by my associate.

25 MR. BALL: Well, had I known she'd done a

1 Immigration Services?

2 A I would assume so.

3 Q Okay. Ready for the next question?

4 A Yeah.

5 Q Is the figure of \$756,000 an accurate figure
6 of the capital raised as a result of your efforts for
7 DeepGulf?

8 A That sounds like a good number.

9 Q And was that sum paid in cash and deposited
10 into the DeepGulf accounts, or were there some deferrals or
11 payment arrangements for those sums of money?

12 A All proceeds were in cash, check, cash or
13 check.

14 Q Is it your position today that Toke Oil and
15 Gas, S.A. as a party plaintiff in this cause is a
16 corporation that is still in existence?

17 MR. BALL: I object to the form, but go ahead.

18 THE WITNESS: Marc did all things Toke. If he
19 stopped keeping the company current, he would know
20 that.

21 Q (By Mr. Boller) Did you take any steps to
22 ascertain whether it was still in existence when you
23 prepared and filed this lawsuit?

24 A No.

25 Q Did you make any effort to verify that Toke

1 had a valid and current business license, Toke the plaintiff
2 in this lawsuit, has a current and valid business license?

3 A No.

4 (Defendant's Exhibit 18 was marked for
5 identification.)

6 Q (By Mr. Boller) Have you been able to
7 identify what's been marked as Defendant's Exhibit 18 of
8 which you have a copy?

9 A Yes.

10 Q What is that?

11 A Board of directors meeting minutes on October
12 15, 2007.

13 Q And is that your signature?

14 A Yes.

15 Q And was that document prepared by you?

16 A Probably.

17 Q Does it reflect that the defendant was
18 present?

19 A It does.

20 Q Was he, in fact, present?

21 A At least by telephonic communication, if not
22 in person.

23 Q Okay. If he was present by telephonic
24 communication, would that not have been reflected on the
25 minutes?

CERTIFICATE OF REPORTER

STATE OF FLORIDA)
COUNTY OF ESCAMBIA)

I, Connie L. Morse, Court Reporter, certify that I was authorized to and did stenographically report the foregoing deposition; and that the transcript is a true record and complete record of my stenographic notes; that the witness did not waive reading and signing.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney, or counsel connected with the action, nor am I financially interested in the action.

WITNESS my hand this 8th day of August, 2019.

CONNIE L. MORSE
Court Reporter

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v. CASE NO. 3:18-CV-1466-TKW-MJF

MARC M. MOSZKOWSKI,
Defendant.

_____ /

The deposition of WILLIAM B. LOTT, JR., was taken by the attorney for the Plaintiffs, commencing at 10:00 a.m., on the 31st day of July 2019, at the offices of Wierzbicki Court Reporting, 220 West Garden Street, Suite 603, Pensacola, Florida, reported by David A. Deik, CP, CPE, Professional Reporter, an Approved Reporter of the United States District Court.

1 reason he didn't do it that way is because he had -- if
2 he had -- had sent money from Toke to DeepGulf, and
3 DeepGulf paid Marc, then Marc would have had to pay
4 income taxes on it.

5 Even though he made the money over in
6 Timor, which doesn't require him to pay taxes, he took
7 the money from Toke to his bank account in France and
8 paid his taxes, of which Mr. Howard was fully aware of
9 from the very beginning all the way along.

10 And the first time I ever really knew he
11 was aware was when we were in France snow skiing, and we
12 had had the conversation about paying the inheritance
13 tax and where it stood.

14 And, you know, I'd have -- you'd have to
15 show me a timeline of when that was, but I'm sure we
16 could come up with that. But we talked in detail
17 about -- And I'm sure the amounts were -- I paid so
18 much; I owe so much.

19 Q. Okay. Okay. So let me move on to another
20 question.

21 So did Mr. Moszkowski ever say or threaten
22 that he was going to leave the company and take his --
23 hang on -- take his intellectual property with him or
24 start a new company to compete with DeepGulf?

25 A. Marc said, "If I can't -- if we can't

CERTIFICATE OF REPORTER

STATE OF FLORIDA)
COUNTY OF ESCAMBIA)

I, DAVID A. DEIK, CP, CPE, Professional Court Reporter, do hereby certify that I was authorized to and did stenographically report the deposition of WILLIAM B. LOTT, JR.; that a review of the transcript was requested; and that the foregoing transcript, pages 1 through 188 is a true record of my stenographic notes.

I further certify that I am not a relative, employee, or attorney, or counsel to any of the parties, nor am I a relative or employee of any of the parties' attorney or counsel connected with the action, nor am I financially interested in the action.

DATED this 9th day of August 2019.

s /David A. Deik

DAVID A. DEIK, CP, CPE
Professional Court Reporter